IFB NO. W912P826BA056

US Army Corps
of Engineers ®
New Orleans District

Mississippi River, Baton Rouge to the Gulf

Southwest Pass Hopper Dredge

Contract No. 9-2026 (OM26009)

Plaquemines Parish, Louisiana

Construction Solicitation

DEPARTMENT OF THE ARMY
CORPS OF ENGINEERS, NEW ORLEANS DISTRICT
7400 LEAKE AVENUE
NEW ORLEANS, LOUISIANA 70118-3651

REPLY TO
ATTENTION OF

SOLICITATION: W912P826BA056

FOR: Mississippi River, Baton Rouge to Gulf, Southwest Pass Hopper Dredge Contract No. 9-2026 (OM26009)

TO OPEN:

I. NOTE THE AFFIRMATIVE ACTION PROGRAM REQUIREMENT OF THE EQUAL OPPORTUNITY CLAUSE WHICH MAY APPLY TO THE CONTRACT RESULTING FROM THIS SOLICITATION.

II. NOTE THE CERTIFICATION OF NONSEGREGATED FACILITIES IN THIS SOLICITATION. *Bidders, offerors and applicants are cautioned to note the "Certification of Non-segregated Facilities" in the solicitation. Failure of a bidder or offeror to agree to the certification will render his bid or offer non-responsive to the terms of solicitations involving awards of contracts exceeding $10,000 which are not exempt from the provisions of the Equal Opportunity clause.*

III. Prospective contractors must register in the System for Award Management (SAM). See FAR Clause 52.204-7 for required information. The website for SAM is https://www.sam.gov. You will be required to provide your company's Dun and Bradstreet number along with an original, signed notarized letter identifying the authorized Entity Administrator before the registration will be activated. If you do not already have a D&B number, one can be requested from Dun and Bradstreet at (800) 333-0505 or http://fedgov.dnb.com/webform. Contractors must complete, and submit with their bid, the provisions located in section 00600. A bidder may also submit, in lieu of the completed section 00600, a complete hard copy of their Online Representations and Certifications which is located within the System for Award Management (SAM). Prospective contractors with expired or inactive Representations and Certifications in SAM at time of award will be deemed unresponsive.

Bidders must provide full, accurate, and complete information as required by this solicitation and its attachments. The penalty for making false statements in bids is prescribed in 18 U.S.C. 1001. (FAR 52.214-4 APR 1984).

DESCRIPTION AND MAGNITUDE OF WORK: The work consists of furnishing one fully crewed and equipped self-propelled trailing suction type hopper dredge. Work will be performed in Mississippi River and Southwest Pass and possibly in other areas inside and outside of the New Orleans District.

NOTE: ALL WORK UNDER THIS CONTRACT SHALL BE PERFORMED IN ACCORDANCE WITH THE PROVISIONS OF EM 385-1-1 "Safety and Occupational Health Requirements"

ALL INQUIRIES REGARDING THIS SOLICITATION

SHOULD BE MADE TO THE FOLLOWING:

Cori A. Caimi

AND/OR

Jeff Sprunger

CONTRACT SPECIALISTS

U.S. ARMY CORPS OF ENGINEERS, NEW ORLEANS DISTRICT

E-MAILS: Cori.A.Caimi@USACE.ARMY.MIL

PHONE: (504) 862-1352

AND/OR

jeffrey.s.sprunger@usace.army.mil

PHONE: (504) 862-1631

COLLECT CALLS NOT ACCEPTED

NOTE: FOR THE MOST PROMPT REPSONSE, PLEASE SEND ALL QUESTIONS VIA

E-MAIL

SOLICITATION, OFFER, AND AWARD *(Construction, Alteration, or Repair)*	1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
	W912P826BA056	[X] SEALED BID (IFB) INVITATION FOR BID [ ] NEGOTIATED (RFP) REQUEST FOR PROPOSAL	08 MAY 2026	1 of 69

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER	5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER
		OM26009

7. ISSUED BY	CODE W912P8	8. ADDRESS OFFER TO
W07V ENDIST N ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES CORI CAIMI, EMAIL: CORI.A.CAIMI@USACE.ARMY.MIL TELEPHONE: 504-862-1352		

9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(Include area code) (NO COLLECT CALLS)*
	CORI CAIMI	504-862-1352

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

PROJECT TITLE: MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS HOPPER DREDGE CONTRACT NO. 9-2026 (OM26009)
PROJECT LOCATION: PLAQUEMINES

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS HOPPER DREDGE CONTRACT NO. 9-2026 (OM26009)

THIS IS AN UNRESTRICTED PROCUREMENT.

*THIS SOLICITATION WILL BE OPENED BY AMENDMENT.

MAGNITUDE OF CONSTRUCTION: BETWEEN $10,000,000.00 AND $25,000,000.00

THE WORK CONSISTS OF FURNISHING ONE FULLY CREWED AND EQUIPPED SELF-PROPELLED TRAILING SUCTION TYPE HOPPER DREDGE. WORK WILL BE PERFORMED IN MISSISSIPPI RIVER AND SOUTHWEST PASS AND POSSIBLY IN OTHER AREAS INSIDE AND OUTSIDE OF THE NEW ORLEANS DISTRICT.

11. The contractor shall begin performance within 5 calendar days and complete it within 137 calendar days after receiving [ ] award, [X] notice to proceed. This performance period is [ ] mandatory [ ] negotiable. *(See* FAR 52.211-10 *).*

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b.)*	12b. CALENDAR DAYS
[X] YES [ ] NO	1

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and ______ copies to perform the work required are due at the place specified in Item 8 by 10:30 AM *(hour)* local time 07 MAY 2028 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee [X] is, [ ] is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*

15. TELEPHONE NUMBER *(Include area code)*

16. REMITTANCE ADDRESS *(Include only if different than Item 14.)*

CODE FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within ________ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)*

AMOUNTS ▶

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS
(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

20b. SIGNATURE

20c. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

22. AMOUNT

23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* ▶ ITEM

25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT
☐ 10 U.S.C. 3204(a) (   ) ☐ 41 U.S.C. 3304(a) (   )

26. ADMINISTERED BY

27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return ________ copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*

31a. NAME OF CONTRACTING OFFICER *(Type or print)*

30b. SIGNATURE

30c. DATE

31b. UNITED STATES OF AMERICA

BY

31c. DATE

Section 00 00 00 - Procurement and Contracting Requirements

Instrument Name: Mississippi River, Baton Rouge to Gulf, Southwest Pass Hopper Dredge Contract No. 9-2026 (OM26009)

Mississippi River, Baton Rouge to Gulf, Southwest Pass Hopper Dredge Contract No. 9-2026 (OM26009) This is an unrestricted procurement. *This Solicitation will be opened by Amendment. Magnitude of Construction: Between $10,000,000.00 and $25,000,000.00 The work consists of furnishing one fully crewed and equipped self-propelled trailing suction type hopper dredge. Work will be performed in Mississippi River and Southwest Pass and possibly in other areas inside and outside of the New Orleans District.

Appendix A: Example Instructions to Bidders
QUESTION AND ANSWER VIA PROJNET

ALL SUBMITTED QUESTIONS FOR THIS PROJECT AND THE ANSWERS PROVIDED SHALL BE VIEWED IN BIDDER INQUIRY IN PROJNET AT (https://www.projnet.org)

Technical inquiries and/or questions relating to this solicitation shall be submitted via Bidder Inquiry in ProjNet at (https://www.projnet.org) No Later Than (NLT) **To Be Determined .** To submit or review inquiry items, prospective vendors will need to use the Bidder Inquiry Key presented below and follow the instructions listed below the key for access. **Emailed inquiries and/or questions will not be accepted.** A prospective vendor who submits a comment /question will receive an acknowledgement of their comment/question via email. Another email to the same address will notify the prospective vendor once the reply is available for viewing.

The Bidder Inquiry Key is: MMAH3I-3G5GFK

Specific Instructions for First Time ProjNet Bid Inquiry Access:

1. From the ProjNet home page linked above, click on **Quick Add** on the upper right side of the screen.
2. Identify the Agency. This should be marked as **USACE.**
3. Key. Enter the **Bidder Inquiry Key** listed above.
4. Email. Enter the email address you would like to use for communication.
5. Click Continue. A page will then open saying that a user account was not found and will ask you to create one using the provided form.
6. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
7. Click Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Specific Instructions for Future ProjNet Bid Inquiry Access:

1. For future access to ProjNet, you will not be provided any type of password. You will utilize your Secret Question and Secret Answer to log in.
2. From the ProjNet home page linked above, click on **Quick Add** on the upper right side of the screen.
3. Identify the Agency. This should be marked as **USACE.**
4. Key. Enter the **Bidder Inquiry Key** listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Click Continue. A page will then open asking you to enter the answer to your Secret Question.
7. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

Bid Bond (See Instructions on Page 3)	Date Bond Executed (Must Not Be Later Than Bid Opening Date)	**OMB Control Number: 9000-0001 Expiration Date: 1/31/2027**

Principal (Legal Name And Business Address)	Type Of Organization ("X" One) ☐ Individual ☐ Partnership ☐ Joint Venture ☐ Corporation ☐ Other (Specify)
	State Of Incorporation

Surety(ies) (Name And Business Address)

Penal Sum Of Bond					Bid Identification	
Percent Of Bid Price	Amount Not To Exceed				Bid Date	Invitation Number
	Million(s)	Thousand(s)	Hundred(s)	Cents	For (Construction, Supplies Or Services)	

Obligation:

We, the Principal and Surety(ies) are firmly bound to the United States of America (hereinafter called the Government) in the above penal sum. For payment of the penal sum, we bind ourselves, our heirs, executors, administrators, and successors, jointly and severally. However, where the Sureties are corporations acting as co-sureties, we, the Sureties, bind ourselves in such sum "jointly and severally" as well as "severally" only for the purpose of allowing a joint action or actions against any or all of us. For all other purposes, each Surety binds itself, jointly and severally with the Principal, for the payment of the sum shown opposite the name of the Surety. If no limit of liability is indicated, the limit of liability is the full amount of the penal sum.

Conditions:

The Principal has submitted the bid identified above.

Therefore:

The above obligation is void if the Principal - (a) upon acceptance by the Government of the bid identified above, within the period specified therein for acceptance (sixty (60) days if no period is specified), executes the further contractual documents and gives the bond(s) required by the terms of the bid as accepted within the time specified (ten (10) days if no period is specified) after receipt of the forms by the Principal; or (b) in the event of failure to execute such further contractual documents and give such bonds, pays the Government for any cost of procuring the work which exceeds the amount of the bid.

Each Surety executing this instrument agrees that its obligation is not impaired by any extension(s) of the time for acceptance of the bid that the Principal may grant to the Government. Notice to the Surety(ies) of extension(s) is waived. However, waiver of the notice applies only to extensions aggregating not more than sixty (60) calendar days in addition to the period originally allowed for acceptance of the bid.

Witness:

The Principal and Surety(ies) executed this bid bond and affixed their seals on the above date.

Principal

Signature(s)	1. (Seal)	2. (Seal)	3. (Seal)	Corporate Seal
Name(s) And Title(s) (Typed)	1.	2.	3.	

Individual Surety(ies)

Signature(s)	1. (Seal)	2. (Seal)
Name(s) (Typed)	1.	2.

Corporate Surety(ies)

Surety A	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		
Surety B	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		
Surety C	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		
Surety D	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		

Surety E	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		

Surety F	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		

Surety G	Name And Address		State Of Incorporation	Liability Limit ($)	Corporate Seal
	Signature(s)	1.	2.		
	Name(s) And Title(s) (Typed)	1.	2.		

Instructions

1. This form is authorized for use when a bid guaranty is required. Any deviation from this form will require the written approval of the Administrator of General Services.
2. Insert the full legal name and business address of the Principal in the space designated "Principal" on the face of the form. An authorized person shall sign the bond. Any person signing in a representative capacity (e.g., an attorney-in-fact) must furnish evidence of authority if that representative is not a member of the firm, partnership, or joint venture, or an officer of the corporation involved.
3. The bond may express penal sum as a percentage of the bid price. In these cases, the bond may state a maximum dollar limitation (e.g., 20% of the bid price but the amount not to exceed ____________ dollars).
4. (a) Corporations executing the bond as sureties must appear on the Department of the Treasury's list of approved sureties and must act within the limitations listed therein. The value put into the Liability Limit block is the penal sum (i.e., the face value) of the bond, unless a co-surety arrangement is proposed.

(b) When multiple corporate sureties are involved, their names and addresses shall appear in the spaces (Surety A, Surety B, etc.) headed "Corporate Surety(ies)." In the space designated "Surety(ies)" on the face of the form, insert only the letter identifier corresponding to each of the sureties. Moreover, when co-surety arrangements exist, the parties may allocate their respective limitations of liability under the bond, provided that the sum total of their liability equals 100% of the bond penal sum.

(c) When individual sureties are involved, a completed Affidavit of Individual Surety (Standard Form 28) for each individual surety, shall accompany the bond. The Government may require the surety to furnish additional substantiating information concerning its financial capability.

5. Corporations executing the bond shall affix their corporate seals. Individuals shall execute the bond opposite the word "Corporate Seal"; and shall affix an adhesive seal if executed in Maine, New Hampshire, or any other jurisdiction requiring adhesive seals.
6. Type the name and title of each person signing this bond in the space provided.
7. In its application to negotiated contracts, the terms "bid" and "bidder" shall include "proposal" and "offeror."

PROJECT TABLE OF CONTENTS

-- End of Project Table of Contents --

SECTION TABLE OF CONTENTS

DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 10 00

BID SCHEDULE

-- End of Section Table of Contents --

SECTION 00 10 00

BID SCHEDULE

PART 1 GENERAL

1.1 BIDDING SCHEDULES

SECTION 00 10 00 - BIDDING SCHEDULE

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS
HOPPER DREDGE CONTRACT NO. 9-2026
PLAQUEMINES PARISH, LOUISIANA
SOLICITATION NO. W912P826BA056

LOT ONE, 34 inch Inside Diameter (ID) Pump Suction, 14,788 cubic yard Nominal Hopper Capacity, Two Dragarms and all attendant plant

Bid Item	Description	Estimated Quantity	Unit	Unit Price	Total Price
0001	Mobilization and Demobilization	1	Job		
0002	Dredging	991	Hour		
Option 0003	Option Dredging	991	Hour	XXXXXXXX	
Option 0004	NMFS-Approved Protected Species Observers	30	Day		
Option 0005	Sea Turtle and Sturgeon Trawling and Relocation	30	Day		
Option 0006	Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation	1	Job		
				Total: LOT ONE BID	

SECTION 00 10 00 - BIDDING SCHEDULE

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS
HOPPER DREDGE CONTRACT NO. 9-2026
PLAQUEMINES PARISH, LOUISIANA
SOLICITATION NO. W912P826BA056

LOT TWO, 38 inch Inside Diameter (ID) Pump Suction, 12,430 cubic yard Nominal Hopper Capacity, Two Dragarms and all attendant plant

Bid Item	Description	Estimated Quantity	Unit	Unit Price	Total Price
0001	Mobilization and Demobilization	1	Job		
0002	Dredging	1035	Hour		
Option 0003	Option Dredging	1035	Hour	XXXXXXXX	
Option 0004	NMFS-Approved Protected Species Observers	30	Day		
Option 0005	Sea Turtle and Sturgeon Trawling and Relocation	30	Day		
Option 0006	Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation	1	Job		
				Total: LOT TWO BID	

SECTION 00 10 00 - BIDDING SCHEDULE

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS
HOPPER DREDGE CONTRACT NO. 9-2026
PLAQUEMINES PARISH, LOUISIANA
SOLICITATION NO. W912P826BA056

LOT THREE, 33.5 inch Inside Diameter (ID) Pump Suction, 9,400 cubic yard Nominal Hopper Capacity, Two Dragarms and all attendant plant

Bid Item	Description	Estimated Quantity	Unit	Unit Price	Total Price
0001	Mobilization and Demobilization	1	Job		
0002	Dredging	1364	Hour		
Option 0003	Option Dredging	1364	Hour	XXXXXXXX	
Option 0004	NMFS-Approved Protected Species Observers	30	Day		
Option 0005	Sea Turtle and Sturgeon Trawling and Relocation	30	Day		
Option 0006	Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation	1	Job		
			Total: LOT THREE BID		

SECTION 00 10 00 - BIDDING SCHEDULE

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS
HOPPER DREDGE CONTRACT NO. 9-2026
PLAQUEMINES PARISH, LOUISIANA
SOLICITATION NO. W912P826BA056

LOT FOUR, 39.37 inch Inside Diameter (ID) Pump Suction, 8,300 cubic yard Nominal Hopper Capacity, One Dragarm and all attendant plant

Bid Item	Description	Estimated Quantity	Unit	Unit Price	Total Price
0001	Mobilization and Demobilization	1	Job		
0002	Dredging	1790	Hour		
Option 0003	Option Dredging	1790	Hour	XXXXXXXX	
Option 0004	NMFS-Approved Protected Species Observers	30	Day		
Option 0005	Sea Turtle and Sturgeon Trawling and Relocation	30	Day		
Option 0006	Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation	1	Job		
				Total: LOT FOUR BID	

SECTION 00 10 00 - BIDDING SCHEDULE

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS
HOPPER DREDGE CONTRACT NO. 9-2026
PLAQUEMINES PARISH, LOUISIANA
SOLICITATION NO. W912P826BA056

LOT FIVE, 31.5 inch Inside Diameter (ID) Pump Suction, 6,540 cubic yard Nominal Hopper Capacity, Two Dragarms and all attendant plant

Bid Item	Description	Estimated Quantity	Unit	Unit Price	Total Price
0001	Mobilization and Demobilization	1	Job		
0002	Dredging	1868	Hour		
Option 0003	Option Dredging	1868	Hour	XXXXXXXX	
Option 0004	NMFS-Approved Protected Species Observers	30	Day		
Option 0005	Sea Turtle and Sturgeon Trawling and Relocation	30	Day		
Option 0006	Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation	1	Job		
				Total: LOT FIVE BID	

SECTION 00 10 00 - BIDDING SCHEDULE

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS
HOPPER DREDGE CONTRACT NO. 9-2026
PLAQUEMINES PARISH, LOUISIANA
SOLICITATION NO. W912P826BA056

LOT SIX, 30 inch Inside Diameter (ID) Pump Suction, 4,815 cubic yard Nominal Hopper Capacity, Two Dragarms and all attendant plant

Bid Item	Description	Estimated Quantity	Unit	Unit Price	Total Price
0001	Mobilization and Demobilization	1	Job		
0002	Dredging	1918	Hour		
Option 0003	Option Dredging	1918	Hour	XXXXXXXX	
Option 0004	NMFS-Approved Protected Species Observers	30	Day		
Option 0005	Sea Turtle and Sturgeon Trawling and Relocation	30	Day		
Option 0006	Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation	1	Job		
				Total: LOT SIX BID	

SECTION 00 10 00 - BIDDING SCHEDULE

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS
HOPPER DREDGE CONTRACT NO. 9-2026
PLAQUEMINES PARISH, LOUISIANA
SOLICITATION NO. W912P826BA056

LOT SEVEN, 27 inch Inside Diameter (ID) Pump Suction, 3,600 cubic yard Nominal Hopper Capacity, Two Dragarms and all attendant plant

Bid Item	Description	Estimated Quantity	Unit	Unit Price	Total Price
0001	Mobilization and Demobilization	1	Job		
0002	Dredging	2324	Hour		
Option 0003	Option Dredging	2324	Hour	XXXXXXXX	
Option 0004	NMFS-Approved Protected Species Observers	30	Day		
Option 0005	Sea Turtle and Sturgeon Trawling and Relocation	30	Day		
Option 0006	Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation	1	Job		
				Total: LOT SEVEN BID	

SECTION 00 10 00 - BIDDING SCHEDULE

MISSISSIPPI RIVER, BATON ROUGE TO GULF, SOUTHWEST PASS
HOPPER DREDGE CONTRACT NO. 9-2026
PLAQUEMINES PARISH, LOUISIANA
SOLICITATION NO. W912P826BA056

LOT EIGHT, 26 inch Inside Diameter (ID) Pump Suction, 4,000 cubic yard Nominal Hopper Capacity, Two Dragarms and all attendant plant

Bid Item	Description	Estimated Quantity	Unit	Unit Price	Total Price
0001	Mobilization and Demobilization	1	Job		
0002	Dredging	2558	Hour		
Option 0003	Option Dredging	2558	Hour	XXXXXXXX	
Option 0004	NMFS-Approved Protected Species Observers	30	Day		
Option 0005	Sea Turtle and Sturgeon Trawling and Relocation	30	Day		
Option 0006	Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation	1	Job		
Total: LOT EIGHT BID					

1.2 BID FORM NOTES

a. Bidders shall bid on all items including optional items. Failure to bid on all items will result in a non-responsive bid.

b. Bidders shall use the Item Number 0002 unit price to compute Option Item Number 0003 total price.

c. Any bid may be rejected if the Contracting Officer or his/her authorized representative determines in writing that it is unreasonable as to price. Unreasonableness of price includes not only the total price of the bid, but the prices for individual line items as well. Any bid may be rejected if the prices for any line items or subline items are materially unbalanced (see "Rejection of Individual Bids" FAR 14.306-3).

d. The Notice to Proceed (NTP): The successful bidder is advised that performance and payment bonds shall be submitted in accordance with the time frame in block 12B of SF 1442 after Notice of Award. The NTP will be issued after verification of acceptable performance and payment bonds. Within 48 hours after issuance of NTP, the Contractor shall initiate a meeting to discuss the submittal process with the Administrative Contracting Officer or his authorized representative. Physical work cannot start until the Resident Management System is set-up, the Accident Prevention Program and other required submittals have been submitted and approved, and all preliminary meetings called for under the contract have been conducted.

e. A bidder may be rejected as non-responsible if it cannot show the necessary capital, experience, or equipment needed to perform the work described under this solicitation (see "Responsible Prospective Contractors" FAR Subpart 9.1). Before the Government will award a contract based on this solicitation, the apparent low bidder shall establish that it is responsible and entitled to award of the contract.

f. The unit "Job" is synonymous with the previously used term "lump sum".

1.3 BIDDING

a. The bidder must select only one bid lot, determined by the class of dredge intended to be used. Bids which are submitted on an inappropriate bid lot will be declared non-responsive.

b. Bidders shall furnish unit prices for all items listed on the schedule of bid items that require unit prices. If the bidder fails to insert a unit price in the appropriate blank for required items but does furnish an extended total or an estimated amount for such items, the Government will deem the unit price to be the quotient obtained by dividing the extended estimated amount for that line item by the quantity. IF THE BIDDER OMITS BOTH THE UNIT PRICE AND THE EXTENDED ESTIMATED AMOUNT FOR ANY REQUIRED ITEM, THE BID WILL BE DECLARED NON-RESPONSIVE.

1.4 EVALUATION OF BIDS

a. To provide fair competition between dredges of different production rate and capacity, the required dredging quantities and any optional dredging quantities are based on an estimated quantity of shoal material and on the tested production rate of each dredge class.

b. Award will be made to that responsible Bidder presenting the lowest-priced responsive bid in response to this solicitation, regardless of the bid lot used.

c. The hourly quantity shown on the bid lots for Bid Items designated as "Dredging" are 100% pay time hours. The actual calendar duration of the contract may vary as a result of fractional pay time. Refer to Section 35 20 23.23, paragraph entitled "Dredging and Option Dredging Items" for additional information.

1.5 BIDDER QUALIFICATIONS

A pre-award survey will be required. Before award, the apparent low bidder shall provide documentation to satisfy the following definitive responsibility criteria. The bidder must establish responsibility by providing sufficient documentation for review and approval for the following criteria: the dredge must meet the equipment requirements, and the dredge must be available to commence dredging within the time required in the specifications as stated in the paragraph entitled "Conditions of Contract Award". An apparent low bidder who is not able to meet the definitive responsibility criteria will be deemed non-responsible and will be ineligible for award:

Bidders shall furnish in their bid package the following:

(a) A completed "Hopper Dredge and Attendant Plant Data Sheet" (see Section 35 20 23.23) for the dredge the Contractor will use under this solicitation; and

(b) Documentation to prove that the dredge and attendant plant are available and not already obligated for the performance of other work which would delay commencement of dredging. If the proposed dredge and attendant plant are not currently performing work or obligated under a contract, the bidder must submit a statement that the dredge and attendant plant can commence dredging within the time required in the specifications. If the proposed dredge and attendant plant are currently performing work or obligated under a contract, the bidder must submit approved release documentation along with a statement that the dredge and attendant plant can commence dredging within the time required in the specifications. The approved release documentation must be issued by the entity currently utilizing the dredge and attendant plant, and the documentation must clearly indicate the approved release date of the dredge and attendant plant from its current work commitment.

(i) The following timeframes for contract award and Notice to Proceed are the Government's best estimate and will be used during evaluation of the bidder's submitted availability documentation. The Government does not warrant the accuracy of the below estimated dates, and the Government will not be liable for any delay in award or issuance of Notice to Proceed, regardless of cause. These dates are for informational purposes only and do not create any legal obligation on the part of the Government.

(ii) It is anticipated that contract award will be made within 5 to 7 calendar days after the bid opening date.

(iii) It is anticipated that Notice to Proceed will be issued within 1 to 3 calendar days after receipt of performance and payment bonds from the successful bidder. Note: In the event this solicitation is used to award a contract months in advance of the required date to commence dredging, the Notice to Proceed may be held and issued months after receipt of performance and payment bonds.

If the apparent low bidder fails to furnish the "Hopper Dredge and Attendant Plant Data Sheet" or the availability documentation within his/her bid package, the apparent low bidder will have 24 hours after the time of the bid opening to provide the Contracting Officer the documents. If the apparent low bidder fails to furnish the proper documentation within 24 hours after the time of the bid opening, the respective bidder will be declared non-responsible and the next apparent low bidder will be evaluated as stated in the paragraphs below.

Upon receipt of the apparent low bidder's completed "Hopper Dredge and Attendant Plant Data Sheet" for the dredge that will be used to perform work under this solicitation, the "Hopper Dredge and Attendant Plant Data Sheet" will be evaluated to ensure that the dredge meets the equipment requirements. Upon receipt of the apparent low bidder's availability documentation, the availability documentation will be evaluated to ensure that the dredge can commence dredging within the time required in the specifications.

If, after review, the Government determines that the submitted documents satisfy the equipment requirements and the availability requirement, the Government will proceed with award of the contract to the apparent low bidder provided all other requirements for award have been satisfied.

If, after review, the Government determines that the submitted documents do not satisfy the equipment requirements or the availability requirement, the Government will give the apparent low bidder 24 hours to resubmit the documents.

If, after a second review, the Government determines that the submitted documents do not satisfy the equipment requirements or the availability requirement, the Government will declare the apparent low bidder to be non-responsible. The Government will thereafter perform the described pre-award survey on the next apparent low bidder and will do so with each successive apparent low bidder until it is determined that an apparent low bidder has submitted documents that satisfy the equipment requirements and the availability requirement. The apparent low bidder that does satisfy the equipment requirements and the availability requirement will be deemed responsible and eligible for award provided all other requirements for award have been satisfied.

1.6 CONDITIONS OF CONTRACT AWARD

a. Award will be made as a whole to one bidder. The dredge and attendant plant offered in the bidding schedule shall be complete with full operating personnel and in operating status for the contract period. EM 385-1-1, Chapter 19, "Floating Plant and Marine Activities" shall be complied with at all times. NOTE: All work under these specifications shall be performed in accordance with the provisions of EM 385-1-1 "Safety and Occupational Health Requirements", latest edition.

b. The Government may award the contract at the total bid price, comprised of the base items and option item(s); however, the Government will not be obligated to exercise any option item(s).

c. The number of hours on each bid lot is an estimated quantity. The dredge and attendant plant will be retained for an approximate number of days according to the table below starting no later than 120 hours after issuance of the Notice to Proceed.

APPROXIMATE HOPPER DREDGE CONTRACT DURATION

Bid Lot	Pump Inside Diameter (inches)	Hopper Size (cubic yards)	Number of Dragarms	Approximate Number of Contract Days for Item 0002	Approximate Number of Contract Days for Option Item 0003
1	34	14788	2	66	66
2	38	12430	2	68	68
3	33.5	9400	2	83	83
4	39.37	8300	1	102	102
5	31.5	6540	2	106	106
6	30	4815	2	108	108
7	27	3600	2	127	127
8	26	4000	2	137	137

The time required for completion of the contract shall be established as the number of calendar days listed in column "Approximate Number of Contract Days for Item 0002" for the applicable bid lot. In the event Option Item 0003 is fully exercised under the terms of the contract, the time required for completion of the contract shall be extended by the number of calendar days listed in column "Approximate Number of Contract Days for Option Item 0003" for the applicable bid lot. In the event Option Item 0003 is partially exercised, the contract completion date shall be extended using the following formula:

> [(partial option hours exercised)/(option hours listed in bid schedule for applicable bid lot)] x (calendar days listed in column "Approximate Number of Contract Days for Option Item 0003" for the applicable bid lot).

d. The bidder must be capable of providing for assignment of the dredge and all attendant plant, complete and in full operating condition in all respects, and to commence dredging within 120 hours after issuance of the Notice to Proceed.

1.7 OTHER BIDDER REQUIREMENTS

a. Bidders shall register in the System for Award Management (SAM) database in accordance with FAR 52.204-7-NOV 2024.

b. Bidders shall use Rapid Vendor Payment. See the following web based instructions for the submission of invoices: https://www.mvn.usace.army.mil/Business-With-Us/Contracting/Rapid-Vendor-Payment/.

1.8 PRE-AWARD INSPECTION OF PLANT

a. The apparent low bidder shall make the dredge and attendant plant available for inspection, to determine compliance with these specifications, as soon as practicable after bids are opened and prior to contract award. If deficiencies are found during the inspection, the bidder will be notified in writing, which may be transmitted by email or facsimile. Upon receipt of such notice, the bidder shall correct all deficiencies at least two calendar days in advance of the projected contract award date.

b. Two calendar days before the projected award date or upon notification by the bidder that the deficiencies have been corrected, a Government representative will re-inspect the dredge and attendant plant. If at that time the dredge and attendant plant do not meet the requirements of these specifications, the bidder will be rejected as non-responsible.

c. The Government may choose to waive the pre-award inspection. Waiver of the pre-award inspection does not relieve the bidder from the requirement to provide a dredge and attendant plant in full compliance with the specifications. By bidding on this solicitation, the bidder is stating that the provided dredge and attendant plant is in full compliance with the specifications and can perform all requirements as stated in the specifications.

1.9 OPTION ITEMS

a. The Government may require the delivery of, in whole or part, any Option Items. The Government may exercise an Option Item by written notice to the Contractor at any time after Notice to Proceed and up to 3 calendar days prior to the estimated completion date of the base line item or any previously exercised option.

b. No additional mobilization/demobilization will be paid to the Contractor for Option Item work performed within the work region, except for Option Item "Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation" if Option Item "Sea Turtle and Sturgeon Trawling and Relocation" is exercised. The Contractor shall commence performance of optional work no more than 3 calendar days after the time the Contractor receives the Government's Notice to Proceed with the optional work.

PART 2 PRODUCTS (Not Used)

PART 3 EXECUTION (Not Used)

-- End of Section --

Section 00 21 00 - Instructions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	2026-02		
52.214-3	Amendments to Invitations for Bids. (Deviation)	2026-02		
52.214-4	False Statements in Bids.	1984-04		
52.214-5	Submission of Bids. (Deviation)	2026-02		
52.214-6	Explanation to Prospective Bidders.	1984-04		
52.214-7	Late Submissions, Modifications, and Withdrawals of Bids. (Deviation)	2026-02		
52.214-12	Preparation of Bids.	1984-04		
52.214-34	Submission of Offers in the English Language.	1991-04		
52.214-35	Submission of Offers in U.S. Currency.	1991-04		
52.225-10	Notice of Buy American Requirement-Construction Materials.	2014-05		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		

DFARS Provisions Incorporated by Reference

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	2023-01		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.216-1	Type of Contract. (Deviation 2026-O0038)	2026-02		

Type of Contract (Feb 2026) (Deviation 2026-O0038)

The Government contemplates award of a firm-fixed price[Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.228-1	Bid Guarantee.	1996-09		

Bid Guarantee (Sept 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds-

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be 20 percent of the bid price or $3,000,000, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of clause)

52.252-1	Solicitation Provisions Incorporated by Reference.	1998-02

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acqusition.gov________[Insert one or more Internet addresses]

(End of provision)

52.252-3	Alterations in Solicitation.	1984-04

Alterations in Solicitation (Apr 1984)

Portions of this solicitation are altered as follows:

____ ____ ____

(End of clause)

52.252-5	Authorized Deviations in Provisions.	2020-11

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any ____[insert regulation name](48 CFR Chapter____) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section 00 22 00 - Supplementary Instructions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-4	Evaluation of Options Exercised at Time of Contract Award. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	2026-02		

Evaluation of Options (Feb 2026) (Deviation 2026-O0038)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

Section 00 45 00 - Representations and Certifications

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.229-12	Tax on Certain Foreign Procurements.	2021-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-2	Certificate of Independent Price Determination.	1985-04		

Certificate of Independent Price Determination (Apr 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision ____[insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.214-14	Place of Performance-Sealed Bidding.	1985-04

Place of Performance-Sealed Bidding (Apr 1985)

(a) The bidder, in the performance of any contract resulting from this solicitation, [ ] intends, [ ] does not intend [check applicable box] to use one or more plants or facilities located at a different address from the address of the bidder as indicated in this bid.

(b) If the bidder checks "intends" in paragraph (a) of this provision, it shall insert in the spaces provided below the required information:

Place of Performance (Street Address, City, State, County, ZIP Code)
Name and Address of Owner and Operator of the Plant or Facility if Other than Bidder

____ ____

____ ____

(End of provision)

52.219-2	Equal Low Bids. (Deviation 2026-O0038)	2026-02

Equal Low Bids (Feb 2026) (Deviation 2026-O0038)

(a) This provision applies to small business concerns only.

(b) The bidder's status as a labor surplus area (LSA) concern may affect entitlement to award in case of tie bids. If the bidder wishes to be considered for this priority, the bidder must identify, in the following space, the LSA in which the costs to be incurred on account of manufacturing or production (by the bidder or the first-tier subcontractors) amount to more than 50 percent of the contract price.

____________ ____________

(c) Failure to identify the labor surplus areas as specified in paragraph (b) of this provision will preclude the bidder from receiving priority consideration. If the bidder is awarded a contract as a result of receiving priority consideration under this provision and would not have otherwise received award, the bidder shall perform the contract or cause the contract to be performed in accordance with the obligations of an LSA concern.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	**Title**	**Effective**	**Alternate**	**Variation**

		Date	Deviation	Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section 00 70 00 - Conditions of the Contract

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-7	Option for Increased Quantity-Separately Priced Line Item.	1989-03		

Option for Increased Quantity-Separately Priced Line Item (Mar 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within after Notice to Proceed and up to three calendar days prior to the estimated completion date of the basic line item or any previously exercised option.[insert in the clause the period of time in which the Contracting Officer has to exercise the option]. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

52.236-16	Quantity Surveys. (Alternate I)	2026-02	Alternate I	1984-04

Alternate I (Apr 1984). If it is determined at a level above that of the Contracting Officer that it is impracticable for Government personnel to perform the original and final surveys, and the Government wishes the Contractor to perform these surveys, substitute the following paragraph (b) for paragraph (b) of the basic clause:

(b) The Contractor shall conduct the original and final surveys and surveys for any periods for which progress payments are requested. All these surveys shall be conducted under the direction of a representative of the Contracting Officer, unless the Contracting Officer waives this requirement in a specific instance. The Government shall make such computations as are necessary to determine the quantities of work performed or finally in place. The Contractor shall make the computations based on the surveys for any periods for which progress payments are requested.

Section 00 72 00 - General Conditions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	2014-05		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	2014-05		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.213-4	Terms and Conditions-Simplified Acquisitions (Noncommercial). (Deviation 2026-O0038)	2026-02		
52.214-18	Preparation of Bids-Construction.	1984-04		
52.214-19	Contract Award-Sealed Bidding-Construction.	1996-08		

52.214-29	Order of Precedence-Sealed Bidding.	1986-01
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	2026-02
52.219-9	Small Business Subcontracting Plan. (Deviation 2026-O0038)	2026-02
52.219-33	Nonmanufacturer Rule. (Deviation 2026-O0038)	2026-02
52.222-30	Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Method).	2018-08
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.228-2	Additional Bond Security.	1997-10
52.228-11	Individual Surety-Pledge of Assets.	2021-02
52.228-14	Irrevocable Letter of Credit.	2014-11
52.228-17	Individual Surety-Pledge of Assets (Bid Guarantee).	2021-02
52.232-8	Discounts for Prompt Payment.	2002-02

52.232-15	Progress Payments Not Included.	1984-04
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02
52.236-2	Differing Site Conditions. (Deviation 2026-O0038)	2026-02
52.236-3	Site Investigation and Conditions Affecting the Work. (Deviation 2026-O0038)	2026-02
52.236-5	Material and Workmanship. (Deviation 2026-O0038)	2026-02
52.242-5	Payments to Small Business Subcontractors.	2017-01
52.243-4	Changes. (Deviation 2026-O0038)	2026-02
52.243-5	Changes and Changed Conditions. (Deviation 2026-O0038)	2026-02

52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.246-12	Inspection of Construction.	1996-08		
52.249-1	Termination for Convenience of the Government (Fixed-Price) (Short Form).	1984-04		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7003	Control of Government Personnel Work Product.	1992-04		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		

252.223-7008	Prohibition of Hexavalent Chromium.	2023-01
252.225-7048	Export-Controlled Items.	2013-06
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.236-7000	Modification Proposals--Price Breakdown.	1991-12
252.236-7007	Additive or Deductive Items.	1991-12
252.243-7001	Pricing of Contract Modifications.	1991-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-9	Option to Extend the Term of the Contract.	2000-03		

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 3 days[60days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 6(months) (years).

(End of clause)

52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	2026-02

Employment Eligibility Verification (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products

and petroleum products. Per 46 CFR 525.1 (c)(2), "bulk cargo" means cargo that is loaded and carried in bulk onboard ship without mark or count, in a loose unpackaged form, having homogenous characteristics. Bulk cargo loaded into intermodal equipment, except LASH or Seabee barges, is subject to mark and count and, therefore, ceases to be bulk cargo.

Employee assigned to the contract means an employee who was hired after November 6, 1986 (after November 27, 2009 in the Commonwealth of the Northern Mariana Islands), who is directly performing work, in the United States, under a contract that is required to include the clause prescribed at 22.1802-2. An employee is not considered to be directly performing work under a contract if the employee-

(1) Normally performs support work, such as indirect or overhead functions; and

(2) Does not perform any substantial duties applicable to the contract.

Subcontract means any contract, as defined in 2.101, entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract. It includes but is not limited to purchase orders, and changes and modifications to purchase orders.

Subcontractor means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime Contractor or another subcontractor.

United States, as defined in 8 U.S.C. 1101(a)(38), means the 50 States, the District of Columbia, Puerto Rico, Guam, the Commonwealth of the Northern Mariana Islands, and the U. S. Virgin Islands.

(b) Enrollment and verification requirements.

(1) If the Contractor is not enrolled as a Federal Contractor in E-Verify at time of contract award, the Contractor must-

(i) Enroll. Enroll as a Federal Contractor in the E-Verify program within 30 calendar days of contract award;

(ii) Verify all new employees. Within 90 calendar days of enrollment in the E-Verify program, begin to use E-Verify to initiate verification of employment eligibility of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3) of this section); and

(iii) Verify employees assigned to the contract. For each employee assigned to the contract, initiate verification within 90 calendar days after date of enrollment or within 30 calendar days of the employee's assignment to the contract, whichever date is later (but see paragraph (b)(4) of this section).

(2) If the Contractor is enrolled as a Federal Contractor in E-Verify at time of contract award, the Contractor must use E-Verify to initiate verification of employment eligibility of-

(i) All new employees.

(A) Enrolled 90 calendar days or more. The Contractor must initiate verification of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3) of this section); or

(B) Enrolled less than 90 calendar days. Within 90 calendar days after enrollment as a Federal Contractor in E-Verify, the Contractor must initiate verification of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3) of this section); or

(ii) Employees assigned to the contract. For each employee assigned to the contract, the Contractor must initiate verification within 90 calendar days after date of contract award or within 30 days after assignment to the contract, whichever date is later (but see paragraph (b)(4) of this section).

(3) If the Contractor is an institution of higher education (as defined at 20 U.S.C. 1001(a)); a State or local government or the government of a Federally recognized Indian tribe; or a surety performing under a takeover agreement entered into with a Federal agency pursuant to a performance bond, the Contractor may choose to verify only employees assigned to the contract, whether existing employees or new hires. The Contractor must follow the applicable verification requirements at (b)(1) or (b)(2) respectively, except that any requirement for verification of new employees applies only to new employees assigned to the contract.

(4) Option to verify employment eligibility of all employees. The Contractor may elect to verify all existing employees hired after November 6, 1986 (after November 27, 2009, in the Commonwealth of the Northern Mariana Islands), rather than just those employees assigned to the contract. The Contractor must initiate verification for each existing employee working in the United States who was hired after November 6, 1986 (after November 27, 2009, in the Commonwealth of the Northern Mariana Islands), within 180 calendar days of-

(i) Enrollment in the E-Verify program; or

(ii) Notification to E-Verify Operations of the Contractor's decision to exercise this option, using the contact information provided in the E-Verify program Memorandum of Understanding (MOU).

(5) The Contractor must comply, for the period of performance of this contract, with the requirements of the E-Verify program MOU.

(i) The Department of Homeland Security (DHS) or the Social Security Administration (SSA) may terminate the Contractor's MOU and deny access to the E-Verify system in accordance with the terms of the MOU. In such case, the Contractor will be referred to a suspending and debarring official.

(ii) During the period between termination of the MOU and a decision by the suspending and debarring official whether to suspend or debar, the Contractor is excused from its obligations under paragraph (b) of this clause. If the Contractor is not suspended, debarred, or subject to a voluntary exclusion, then the Contractor must reenroll in E-Verify.

(c) Web site. Information on registration for and use of the E-Verify program can be obtained via the Internet at the Department of Homeland Security Web site: https://www.e-Verify.gov.

(d) Individuals previously verified. The Contractor is not required by this clause to perform additional employment verification using E-Verify for any employee-

(1) Whose employment eligibility was previously verified by the Contractor through the E-Verify program;

(2) Who has been granted and holds an active U.S. Government security clearance for access to confidential, secret, or top secret information in accordance with the National Industrial Security Program Operating Manual; or

(3) Who has undergone a completed background investigation and been issued credentials pursuant to Homeland Security Presidential Directive (HSPD)-12, Policy for a Common Identification Standard for Federal Employees and Contractors.

(e) Subcontracts. The Contractor must include the requirements of this clause, including this paragraph (e) (appropriately modified for identification of the parties), in each subcontract that-

(1) Is for-

(i) Services (except for commercial services that are part of the purchase of a COTS item (or an item that would be a COTS item, but for minor modifications), performed by the COTS provider, and are normally provided for that COTS item); or

(ii) Construction;

(2) Has a value of more than $3,500; and

(3) Includes work performed in the United States.

(End of clause)

52.225-9	Buy American-Construction Materials. (Deviation 2026-O0038)	2026-02

Buy American-Construction Materials (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Domestic construction material means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

____________[Contracting Officer to list applicable excepted materials or indicate "none"]

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) For domestic construction material that is not a critical item or does not contain critical components.

(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic

offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) For domestic construction material that is a critical item or contains critical components.

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute or Balance of Payments Program.

(d) Data. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison

Construction material description	Unit of measure	Quantity	Price (dollars)*
Item 1:			
Foreign construction material.	____	____	____
Domestic construction material.	____	____	____
Item 2:			
Foreign construction material.		____	____
Domestic construction material.	____	____	____

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.][Include other applicable supporting information.]

(End of clause)

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It [ ] is [ ] is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 [ ] a full exemption, or [ ] partial or no exemption

[Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

52.232-5	Payments under Fixed-Price Construction Contracts.	2014-05

Payments under Fixed-Price Construction Contracts (May 2014)

(a) Payment of price. The Government shall pay the Contractor the contract price as provided in this contract.

(b) Progress payments. The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) Contractor certification. Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime

contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

____ (Name)

____ (Title)

____ (Date)

(d) Refund of unearned amounts. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8th day after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) Retainage. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) Title, liability, and reservation of rights. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) Reimbursement for bond premiums. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) Final payment. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of1940 (31 U.S.C.3727 and 41 U.S.C. 6305).

(i) Limitation because of undefinitized work. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) Interest computation on unearned amounts. In accordance with 31 U.S.C. 3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

52.232-27	Prompt Payment for Construction Contracts.	2017-01

Prompt Payment for Construction Contracts (Jan 2017)

Notwithstanding any other payment terms in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer. Definitions of pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(3) concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) Invoice payments-

(1) Types of invoice payments. For purposes of this clause, there are several types of invoice payments that may occur under this contract, as follows:

(i) Progress payments, if provided for elsewhere in this contract, based on Contracting Officer approval of the estimated amount and value of work or services performed, including payments for reaching milestones in any project.

(A) The due date for making such payments is 14 days after the designated billing office receives a proper payment request. If the designated billing office fails to annotate the payment request with the actual date of receipt at the time of receipt, the payment due date is the 14th day after the date of the Contractor's payment request, provided the designated billing office receives a proper payment request and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(B) The due date for payment of any amounts retained by the Contracting Officer in accordance with the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts, is as specified in the contract or, if not specified, 30 days after approval by the Contracting Officer for release to the Contractor.

(ii) Final payments based on completion and acceptance of all work and presentation of release of all claims against the Government arising by virtue of the contract, and payments for partial deliveries that have been accepted by the Government (e.g., each separate building, public work, or other division of the contract for which the price is stated separately in the contract).

(A) The due date for making such payments is the later of the following two events:

(1) The 30th day after the designated billing office receives a proper invoice from the Contractor.

(2) The 30th day after Government acceptance of the work or services completed by the Contractor. For a final invoice when the payment amount is subject to contract settlement actions (e.g., release of claims), acceptance is deemed to occur on the effective date of the contract settlement.

(B) If the designated billing office fails to annotate the invoice with the date of actual receipt at the time of receipt, the invoice payment due date is the 30th day after the date of the Contractor's invoice, provided the designated billing office receives a proper invoice and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) Contractor's invoice. The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(2)(i) through (a)(2)(xi) of this clause. If the invoice does not comply with these requirements, the designated billing office must return it within 7 days after receipt, with the reasons why it is not a proper invoice. When computing any interest penalty owed the Contractor, the Government will take into account if the Government notifies the Contractor of an improper invoice in an untimely manner.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of mailing or transmission.)

(iii) Contract number or other authorization for work or services performed (including order number and line item number).

(iv) Description of work or services performed.

(v) Delivery and payment terms (e.g., discount for prompt payment terms).

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) For payments described in paragraph (a)(1)(i) of this clause, substantiation of the amounts requested and certification in accordance with the requirements of the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts.

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (e.g., 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(xi) Any other information or documentation required by the contract.

(3) Interest penalty. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(3)(i) through (a)(3)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment and there was no disagreement over quantity, quality, Contractor compliance with any contract term or condition, or requested progress payment amount.

(iii) In the case of a final invoice for any balance of funds due the Contractor for work or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(4) Computing penalty amount. The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor for payments described in paragraph (a)(1)(ii) of this clause, Government acceptance or approval is deemed to occur constructively on the 7th day after the Contractor has completed the work or services in accordance with the terms and conditions of the contract. If actual acceptance or approval occurs within the constructive acceptance or approval period, the Government will base the determination of an interest penalty on the actual date of acceptance or approval. Constructive acceptance or constructive approval requirements do not apply if there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. These requirements also do not compel Government officials to accept work or services, approve Contractor estimates, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(ii) The prompt payment regulations at 5 CFR1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes, and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(5) Discounts for prompt payment. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with the prompt payment regulations at 5 CFR part 1315.

(6) Additional interest penalty.

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR part 1315 in addition to the interest penalty amount only if-

(A) The Government owes an interest penalty of $1 or more;

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The Contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(6)(ii) of this clause, postmarked not later than 40 days after the date the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall-

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest was due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible-

(1) The designated payment office that receives the demand will annotate it with the date of receipt provided the demand is received on or before the 40th day after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40th day after payment was made.

(b) Contract financing payments. If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) Subcontract clause requirements. The Contractor shall include in each subcontract for property or services (including a material supplier) for the purpose of performing this contract the following:

(1) Prompt payment for subcontractors. A payment clause that obligates the Contractor to pay the subcontractor for satisfactory performance under its subcontract not later than 7 days from receipt of payment out of such amounts as are paid to the Contractor under this contract.

(2) Interest for subcontractors. An interest penalty clause that obligates the Contractor to pay to the subcontractor an interest penalty for each payment not made in accordance with the payment clause-

(i) For the period beginning on the day after the required payment date and ending on the date on which payment of the amount due is made; and

(ii) Computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(3) Subcontractor clause flowdown. A clause requiring each subcontractor to-

(i) Include a payment clause and an interest penalty clause conforming to the standards set forth in paragraphs (c)(1) and (c)(2) of this clause in each of its subcontracts; and

(ii) Require each of its subcontractors to include such clauses in their subcontracts with each lower-tier subcontractor or supplier.

(d) Subcontract clause interpretation. The clauses required by paragraph (c) of this clause shall not be construed to impair the right of the Contractor or a subcontractor at any tier to negotiate, and to include in their subcontract, provisions that-

(1) Retainage permitted. Permit the Contractor or a subcontractor to retain (without cause) a specified percentage of each progress payment otherwise due to a subcontractor for satisfactory performance under the subcontract without incurring any obligation to pay a late payment interest penalty, in accordance with terms and conditions agreed to by the parties to the subcontract, giving such recognition as the parties deem appropriate to the ability of a subcontractor to furnish a performance bond and a payment bond;

(2) Withholding permitted. Permit the Contractor or subcontractor to make a determination that part or all of the subcontractor's request for payment may be withheld in accordance with the subcontract agreement; and

(3) Withholding requirements. Permit such withholding without incurring any obligation to pay a late payment penalty if-

(i) A notice conforming to the standards of paragraph (g) of this clause previously has been furnished to the subcontractor; and

(ii) The Contractor furnishes to the Contracting Officer a copy of any notice issued by a Contractor pursuant to paragraph (d)(3)(i) of this clause.

(e) Subcontractor withholding procedures. If a Contractor, after making a request for payment to the Government but before making a payment to a subcontractor for the subcontractor's performance covered by the payment request, discovers that all or a portion of the payment otherwise due such subcontractor is subject to withholding from the subcontractor in accordance with the subcontract agreement, then the Contractor shall-

(1) Subcontractor notice. Furnish to the subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon ascertaining the cause giving rise to a withholding, but prior to the due date for subcontractor payment;

(2) Contracting Officer notice. Furnish to the Contracting Officer, as soon as practicable, a copy of the notice furnished to the subcontractor pursuant to paragraph (e)(1) of this clause;

(3) Subcontractor progress payment reduction. Reduce the subcontractor's progress payment by an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (e)(1) of this clause;

(4) Subsequent subcontractor payment. Pay the subcontractor as soon as practicable after the correction of the identified subcontract performance deficiency, and-

(i) Make such payment within-

(A) Seven days after correction of the identified subcontract performance deficiency (unless the funds therefor must be recovered from the Government because of a reduction under paragraph (e)(5)(i)) of this clause; or

(B) Seven days after the Contractor recovers such funds from the Government; or

(ii) Incur an obligation to pay a late payment interest penalty computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty;

(5) Notice to Contracting Officer. Notify the Contracting Officer upon-

(i) Reduction of the amount of any subsequent certified application for payment; or

(ii) Payment to the subcontractor of any withheld amounts of a progress payment, specifying-

(A) The amounts withheld under paragraph (e)(1) of this clause; and

(B) The dates that such withholding began and ended; and

(6) Interest to Government. Be obligated to pay to the Government an amount equal to interest on the withheld payments (computed in the manner provided in 31 U.S.C. 3903(c)(1)), from the 8th day after receipt of the withheld amounts from the Government until-

(i) The day the identified subcontractor performance deficiency is corrected; or

(ii) The date that any subsequent payment is reduced under paragraph (e)(5)(i) of this clause.

(f) Third-party deficiency reports-

(1) Withholding from subcontractor. If a Contractor, after making payment to a first-tier subcontractor, receives from a supplier or subcontractor of the first-tier subcontractor (hereafter referred to as a "second-tier subcontractor") a written notice in accordance with 40 U.S.C. 3133, asserting a deficiency in such first-tier subcontractor's performance under the contract for which the Contractor may be ultimately liable, and the Contractor determines that all or a portion of future payments otherwise due such first-tier subcontractor is subject to withholding in accordance with the subcontract agreement, the Contractor may, without incurring an obligation to pay an interest penalty under paragraph (e)(6) of this clause-

(i) Furnish to the first-tier subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon making such determination; and

(ii) Withhold from the first-tier subcontractor's next available progress payment or payments an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (f)(1)(i) of this clause.

(2) Subsequent payment or interest charge. As soon as practicable, but not later than 7 days after receipt of satisfactory written notification that the identified subcontract performance deficiency has been corrected, the Contractor shall-

(i) Pay the amount withheld under paragraph (f)(1)(ii) of this clause to such first-tier subcontractor; or

(ii) Incur an obligation to pay a late payment interest penalty to such first-tier subcontractor computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(g) Written notice of subcontractor withholding. The Contractor shall issue a written notice of any withholding to a subcontractor (with a copy furnished to the Contracting Officer), specifying-

(1) The amount to be withheld;

(2) The specific causes for the withholding under the terms of the subcontract; and

(3) The remedial actions to be taken by the subcontractor in order to receive payment of the

amounts withheld.

(h) Subcontractor payment entitlement. The Contractor may not request payment from the Government of any amount withheld or retained in accordance with paragraph (d) of this clause until such time as the Contractor has determined and certified to the Contracting Officer that the subcontractor is entitled to the payment of such amount.

(i) Prime-subcontractor disputes. A dispute between the Contractor and subcontractor relating to the amount or entitlement of a subcontractor to a payment or a late payment interest penalty under a clause included in the subcontract pursuant to paragraph (c) of this clause does not constitute a dispute to which the Government is a party. The Government may not be interpleaded in any judicial or administrative proceeding involving such a dispute.

(j) Preservation of prime-subcontractor rights. Except as provided in paragraph (i) of this clause, this clause shall not limit or impair any contractual, administrative, or judicial remedies otherwise available to the Contractor or a subcontractor in the event of a dispute involving late payment or nonpayment by the Contractor or deficient subcontract performance or nonperformance by a subcontractor.

(k) Non-recourse for prime contractor interest penalty. The Contractor's obligation to pay an interest penalty to a subcontractor pursuant to the clauses included in a subcontract under paragraph (c) of this clause shall not be construed to be an obligation of the Government for such interest penalty. A cost-reimbursement claim may not include any amount for reimbursement of such interest penalty.

(l) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(iv) Contractor point of contact.

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of clause)

52.236-7	Permits and Responsibilities. (Deviation 2026-O0038)	2026-02

Permits and Responsibilities (Feb 2026) (Deviation 2026-O0038)

(a) The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses and permits, and for complying with any Federal, State, and municipal laws, codes, and regulations applicable to the performance of the work.

(b) The Contractor shall be responsible for all damages to persons or property that occur as a result of the Contractor's fault or negligence.

(c) The Contractor shall be responsible for all materials delivered and work performed until completion and acceptance of the entire work, except for any completed unit of work which may have been accepted under the contract.

(End of clause)

52.236-13	Accident Prevention. (Deviation 2026-O0038)	2026-02

Accident Prevention (Feb 2026) (Deviation 2026-O0038)

(a) The Contractor shall provide and maintain work environments and procedures that-

(1) Safeguard the public and Government personnel, property, materials, supplies, and equipment exposed to Contractor operations and activities;

(2) Avoid interruptions of Government operations and delays in project completion dates; and

(3) Control costs in the performance of this contract.

(b) In addition, for contracts for construction or dismantling, demolition, or removal of improvements, the Contractor shall-

(1) Provide appropriate safety barricades, signs, and signal lights;

(2) Comply with the standards issued by the Secretary of Labor at 29 CFR part 1926 and 29 CFR part 1910 ; and

(3) Ensure that any additional measures the Contracting Officer determines to be reasonably necessary for the purposes are taken.

(c) If this contract is for construction or dismantling, demolition or removal of improvements with any Department of Defense agency or component, the Contractor shall comply with all pertinent provisions of the latest version of U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, in effect on the date of the solicitation.

(d)

(1) If the Contracting Officer becomes aware of any noncompliance with these requirements or any condition that poses a serious or imminent danger to the health or safety of the public or Government personnel, the Contracting Officer will notify the Contractor orally, with written confirmation, and request immediate initiation of corrective action.

(2) This notice, when delivered to the Contractor or the Contractor's representative at the work site, shall be deemed sufficient notice of the noncompliance and that corrective action is required.

(3) After receiving the notice, the Contractor shall immediately take corrective action.

(4) If the Contractor fails or refuses to promptly take corrective action, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been

taken.

(5) The Contractor shall not be entitled to any equitable adjustment of the contract price or extension of the performance schedule on any stop-work order issued under this clause.

(e) The Contractor shall insert the substance of this clause, including this paragraph (e), in subcontracts.

(End of clause)

52.236-17	Layout of Work. (Deviation 2026-O0038)	2026-02

Layout of Work (Feb 2026) (Deviation 2026-O0038)

(a) The Contractor shall lay out its work from Government-established base lines and benchmarks provided on the drawings.

(b) The Contractor shall be responsible for all measurements in connection with the layout.

(c) The Contractor shall furnish, at its own expense, all stakes, templates, platforms, equipment, tools, materials, and labor required for the layout.

(d) The Contractor shall be responsible for executing the work to the lines and grades that may be established or indicated by the Contracting Officer.

(e)

(1) The Contractor shall be responsible for maintaining and preserving all stakes and other marks established by the Contracting Officer until authorized to remove them.

(2) If such marks are destroyed by the Contractor, the Contracting Officer may replace them and deduct the expense of the replacement from any amounts due or to become due to the Contractor.

(End of clause)

52.242-14 Suspension of Work. 1984-04

Suspension of Work (Apr 1984)

(a) The Contracting Officer may order the Contractor, in writing, to suspend, delay, or interrupt all or any part of the work of this contract for the period of time that the Contracting Officer determines appropriate for the convenience of the Government.

(b) If the performance of all or any part of the work is, for an unreasonable period of time, suspended, delayed, or interrupted (1)by an act of the Contracting Officer in the administration of this contract, or (2)by the Contracting Officer's failure to act within the time specified in this contract (or within a reasonable time if not specified), an adjustment shall be made for any increase in the cost of performance of this contract (excluding profit) necessarily caused by the unreasonable suspension, delay, or interruption, and the contract modified in writing accordingly. However, no adjustment shall be made under this clause for any suspension, delay, or interruption to the extent that performance would have been so suspended, delayed, or interrupted by any other cause, including the fault or negligence of the Contractor, or for which an equitable adjustment is provided for or excluded under any other term or condition of this contract.

(c) A claim under this clause shall not be allowed-

(1) For any costs incurred more than 20 days before the Contractor shall have notified the Contracting Officer in writing of the act or failure to act involved (but this requirement shall not apply as to a claim resulting from a suspension order); and

(2) Unless the claim, in an amount stated, is asserted in writing as soon as practicable after the termination of the suspension, delay, or interruption, but not later than the date of final payment under the contract.

(End of clause)

52.252-2	Clauses Incorporated by Reference.	1998-02

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acqusition.gov ____ ____[Insert one or more Internet addresses]

(End of clause)

52.252-4	Alterations in Contract.	1984-04

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

____ ____ ____

(End of clause)

52.252-6	Authorized Deviations in Clauses.	2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any ____[insert regulation name] (48 CFR ____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	**Title**	**Effective Date**	**Alternate Deviation**	**Variation Effective Date**
252.236-7001	Contract Drawings and Specifications.	2000-08		

CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

(1) Check all drawings furnished immediately upon receipt;

(2) Compare all drawings and verify the figures before laying out the work;

(3) Promptly notify the Contracting Officer of any discrepancies;

(4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and

(5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

(1) Large-scale drawings shall govern small-scale drawings; and

(2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Title	File	Drawing No.
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

(End of clause)

252.236-7002	Obstruction of Navigable Waterways.	1991-12

OBSTRUCTION OF NAVIGABLE WATERWAYS (DEC 1991)

(a) The Contractor shall-

(1) Promptly recover and remove any material, plant, machinery, or appliance which the contractor loses, dumps, throws overboard, sinks, or misplaces, and which, in the opinion of the Contracting Officer, may be dangerous to or obstruct navigation;

(2) Give immediate notice, with description and locations of any such obstructions, to the Contracting Officer; and

(3) When required by the Contracting Officer, mark or buoy such obstructions until the same are removed.

(b) The Contracting Officer may-

(1) Remove the obstructions by contract or otherwise should the Contractor refuse, neglect, or delay compliance with paragraph (a) of this clause; and

(2) Deduct the cost of removal from any monies due or to become due to the Contractor; or

(3) Recover the cost of removal under the Contractor's bond.

(c) The Contractor's liability for the removal of a vessel wrecked or sunk without fault or negligence is limited to that provided in Sections 15, 19, and 20 of the River and Harbor Act of March 3, 1899 (33 U.S.C. 410 et.seq.).

(End of clause)

252.236-7004	Payment for Mobilization and Demobilization.	1991-12

PAYMENT FOR MOBILIZATION AND DEMOBILIZATION (DEC 1991)

(a) The Government will pay all costs for the mobilization and demobilization of all of the Contractor's plant and equipment at the contract lump sum price for this item.

(1) 60 percent of the lump sum price upon completion of the contractor's mobilization at the

work site.

(2) The remaining 40 percent upon completion of demobilization.

(b) The Contracting Officer may require the Contractor to furnish cost data to justify this portion of the bid if the Contracting Officer believes that the percentages in paragraphs (a)(1) and (2) of this clause do not bear a reasonable relation to the cost of the work in this contract.

(1) Failure to justify such price to the satisfaction of the Contracting Officer will result in payment, as determined by the Contracting Officer, of-

(i) Actual mobilization costs at completion of mobilization;

(ii) Actual demobilization costs at completion of demobilization; and

(iii) The remainder of this item in the final payment under this contract.

(2) The Contracting Officer's determination of the actual costs in paragraph (b)(1)of this clause is not subject to appeal.

(End of clause)

Section 00 73 00 - Supplementary Conditions

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: inspect DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
0002	Inspection and Acceptance Location Both Destination Instructions: inspect DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0003	Inspection and Acceptance Location Both Destination Instructions: inspect DoDAAC: W912P8 CountryCode: USA

	W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0004	Inspection and Acceptance Location Both Destination Instructions: inspect DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0005	Inspection and Acceptance Location Both Destination Instructions: inspect DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0006	Inspection and Acceptance Location Both Destination Instructions: inspect

	DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES

Overall Contract Delivery Period

0001	**Partial Delivery Schedule** Delivery Period From 01 May 2026 to 30 Apr 2028 1 Job **Quantity** 1 Job **Address and POC** Ship To DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
0002	**Partial Delivery Schedule** Delivery Period From 01 May 2026 to 30 Apr 2028 0 Hours **Quantity** 991 Hours **Address and POC** Ship To DoDAAC: W912P8

	CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0003	**Partial Delivery Schedule** Delivery Period From 01 May 2026 to 30 Apr 2028 0 Hours **Quantity** 991 Hours **Address and POC** Ship To DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0004	**Partial Delivery Schedule** Delivery Period From 01 May 2026 to 30 Apr 2028 0 Days **Quantity** 30 Days **Address and POC** Ship To DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES

Option Line Item 0005	**Partial Delivery Schedule** Delivery Period From 01 May 2026 to 30 Apr 2028 0 Days **Quantity** 30 Days **Address and POC** Ship To DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0006	**Partial Delivery Schedule** Delivery Period From 01 May 2026 to 30 Apr 2028 1 Job **Quantity** 1 Job **Address and POC** Ship To DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-

Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

____

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	_____
Issue By DoDAAC	_____
Admin DoDAAC	_____
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as

applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

____

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

SECTION TABLE OF CONTENTS

DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 73 00

SUPPLEMENTARY CONDITIONS

-- End of Section Table of Contents --

SECTION 00 73 00

SUPPLEMENTARY CONDITIONS

PART 1 GENERAL

1.1 SCOPE

This section includes supplements to the Federal Acquisition Regulations (FAR) requirements. Also included are applicable Department of Defense supplements (DFARS) and USACE Acquisition Instruction (UAI) to the FAR.

PART 2 PRODUCTS (Not Used)

PART 3 EXECUTION

3.1 DELIVERY OF PLANT

a. Delivery of the dredge and attendant plant and commencement of dredging shall be completed within 120 hours after issuance of the Notice to Proceed. For bidding purposes, the delivery site will be the Mississippi River, Head of Passes, Mile 0.0; however, the starting assignment for the dredge may require initial mobilization to any location within the primary or secondary dredging region, for which an equitable adjustment will be made for any additional costs if it is determined that the additional costs were incurred due to the change of the delivery location. Upon arrival of the dredge and all of the attendant plant at the delivery site, the plant may be inspected by Government personnel to determine whether any deficiencies have developed since the time the plant was brought into compliance pursuant to the pre-award inspection. The Contractor will be notified of acceptance or rejection of the plant. If accepted, the dredge will be given an assignment immediately.

b. The Contracting Officer may waive the requirement for the Pre-award Inspection of Plant listed in Section 00 10 00. Such waiver does not affect the inspection of the plant upon delivery.

3.2 PROSECUTION, OPTION AND COMPLETION

a. The estimated completion time of the contract will initially be determined as the date and time obtained by adding the hours in "Dredging" Payment Item to the date and time that the Contractor began start of pay time hours. During the course of work, the completion time may change as a result of fractional pay time (refer to Section 35 20 23.23, paragraph entitled "Dredging and Option Dredging Items") or award of option hours or any portion thereof. The contract will be considered complete when the available hours run out at the designated dumpsite when the last load is dumped.

b. This contract shall extend for an approximate duration as described in Section 00 10 00, paragraph entitled "Conditions of Contract Award". If all necessary work is completed prior to the approximate duration completion time, the Government will release the dredge and declare the contract complete.

c. Upon completion of the specified work, the dredge and attendant plant will be released to the Contractor at the location of the last assignment. It should be noted that the location of the last assignment could be either in a primary or secondary dredging region as specified in Section 35 20 23.23, paragraph entitled "Primary Dredging Region" or Section 35 20 23.23, paragraph entitled "Secondary Dredging Regions". All cost of final demobilization will be paid as stated in Section 35 20 23.23, paragraph entitled "Measurement and Payment". No other payment will be made.

d. If the Contracting Officer so notifies the Contractor of the Government's intent to exercise an option, in whole or part, the Contractor shall continue work on that part of the option hours specified by the Contracting Officer at the option unit price specified in the bidding schedule, subject to the provisions of Section 35 20 23.23, paragraph entitled "Dredging and Option Dredging Items". Any exercise of the option in part does not obligate the Government to the full extent of the option.

3.3 CONTRACTOR PERFORMANCE EVALUATIONS - CONSTRUCTION

In accordance with the provisions of Subpart 36.201/42.1502(e)(Evaluation of Contractor Performance) of the Federal Acquisition Regulation (FAR), construction contractor's performance shall be evaluated throughout the performance of the contract. The United States Army Corps of Engineers (USACE) follows the procedures outlined in Engineering Regulation 415-1-17 to fulfill this FAR requirement. For construction contracts awarded at or above $700,000.00, the USACE will evaluate contractor's performance and prepare a performance report using the Contractor Performance Assessment Reporting System (CPARS), which is now a web-based system. After an evaluation (interim or final) is written up by the USACE, the Contractor will have the ability to access, review and comment on the evaluation for a period of 30 days. Accessing and using CPARS requires specific software, called PKI certification, which is installed on the user's computer. The certification is a Department of Defense requirement and was implemented to provide security in electronic transactions. The certification software could cost approximately $110 - $125 per certificate per year and is purchased from an External Certificate Authorities (ECA) vendor. Current information about the PKI certification process and for contacting vendors can be found on the web site: www.cpars.gov. If the Contractor wishes to participate in the performance evaluation process, access to CPARS and PKI certification is the sole responsibility of the Contractor.

3.4 CONSTRUCTION AND ARCHITECT-ENGINEER (A-E) CONTRACTS (UAI 5131.105)

(d)(2)(i)(B) In accordance with FAR 31.105(e)(1)(E), for the predetermined schedule of construction equipment use rates, use Engineer Pamphlet (EP) 1110-1-8, Construction Equipment Ownership and Operating Expense Schedule.

(End of special contract requirement)

Note 1: Costs for repairs or overhauling are not allowed.

Note 2: A copy of the "EQUIPMENT OWNERSHIP AND OPERATING EXPENSE SCHEDULE" (Region III) can be obtained from the following website: https://www.publications.usace.army.mil/Portals/76/Users/182/86/2486/EP%201110-1-8_RV1-12.pdf?ver=x6psY-gBPGg5dSOqQdjEMg%3d%3d.

3.5 VETERANS EMPLOYMENT EMPHASIS FOR U.S. ARMY CORPS OF ENGINEERS CONTRACTS (UAI 5122.1302-100)

In addition to complying with the requirements outlined in FAR Part 22.13, FAR Provision 52.222-38, FAR Clause 52.222-35, FAR Clause 52.222-37, DFARS 222.13 and Department of Labor regulations, U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant contract, USACE contractors are encouraged to seek out highly qualified veterans to perform services under this contract. The following resources are available to assist USACE contractors in their outreach efforts:

U.S. Department of Labor Veterans' Employment and Training Service (VETS): https://www.dol.gov/vets/

Federal Veteran Employment Information: www.fedshirevets.gov/index.aspx

Veterans Opportunity to Work (VOW) Program: http://benefits.va.gov/vow/

U.S. Army Warrior Transition Command Employment Index: https://warriorcare.dodlive.mil/Care-Coordination/Education-Employment-Initiative/#:~:text=Are%20you%20an%20active%20duty,your%20E2I%20Regional%20Coordinator%20today!

Hiring Our Heroes Initiative: www.uschamberfoundation.org/hiring-our-heroes.

3.6 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK - CONSTRUCTION (APR 1984)

The Contractor shall be required to (a) commence work under this contract within 5 calendar days after issuance of the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work no later than the days described in Section 00 10 00, paragraph entitled "Conditions of Contract Award". The time stated for completion shall include final cleanup of the premises.

(End of condition)

Note: The term "commence work" in this clause refers to commence dredging.

3.7 SITE VISIT (CONSTRUCTION) (FEB 1995)

(a) The conditions, Differing Site Conditions, and Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) Site visits may be arranged during normal duty hours by contacting:
Name: Mr. Chuck Freeman, NOAO
Address: 43020 Highway 23, Venice, LA 70091
Telephone: (504) 862-1554

3.8 VARIATION IN ESTIMATED QUANTITY (APR 1984)

If the quantity of a unit-priced item in this contract is an estimated quantity and the actual quantity of the unit-priced item varies more than

15 percent above or below the estimated quantity, an equitable adjustment in the contract price shall be made upon demand of either party. The equitable adjustment shall be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity. If the quantity variation is such as to cause an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the Contracting Officer within 10 days from the beginning of the delay, or within such further period as may be granted by the Contracting Officer before the date of final settlement of the contract. Upon the receipt of a written request for an extension, the Contracting Officer shall ascertain the facts and make an adjustment for extending the completion date as, in the judgement of the Contracting Officer, is justified.

-- End of Section --

Section 01 00 00 - General Requirements

Requirements

Mississippi River, Baton Rouge to Gulf, Southwest Pass Hopper Dredge Contract No. 9-2026 (OM26009)

0001
Product Service Code : Y1KF

0002
Product Service Code : Y1KF

SECTION TABLE OF CONTENTS

DIVISION 01 - GENERAL REQUIREMENTS

SECTION 01 30 00

ADMINISTRATIVE REQUIREMENTS

-- End of Section Table of Contents --

SECTION 01 30 00

ADMINISTRATIVE REQUIREMENTS

PART 1 GENERAL

1.1 MEASUREMENT AND PAYMENT

No separate measurement or payment will be made for administrative requirements as specified herein. All costs for the work covered under this section shall be distributed throughout the existing bid items, except as stated in the paragraph entitled "Accommodations and Meals for Inspectors".

1.2 ACCOMMODATIONS AND MEALS FOR INSPECTORS

1.2.1 General

The Contractor shall furnish to the Government Inspectors on board the dredge, or other craft upon which they are employed, bottled water and a suitable room for an office. The office shall be fully equipped and maintained to the satisfaction of the Government Inspectors aboard the dredge. The office shall be lighted, heated, ventilated, and air conditioned to the satisfaction of the Inspectors. Power surge protectors shall be available for the protection of any of the Inspector's equipment he/she deems necessary to protect from electrical outlet power surges. All costs for furnishing, equipping, and maintaining the accommodations shall be included in the contract unit price per hour in the "Dredging" and "Option Dredging" items on the bidding schedule. If the Contractor fails to meet the requirements of this paragraph, the accommodations will be secured by the Inspector and the cost will be deducted from payments due the Contractor.

1.2.2 Office

The office shall be equipped with the following items, which must be supplied in a fully functional condition:

a. A desk with locking drawers and two sets of matching keys;

b. A swivel desk chair with a contoured seat, two arms, and adjustable height and back rest, all of which shall have fully cushioned and upholstered surfaces;

c. A two or more drawer legal sized file cabinet (subject to room size suitability);

d. A three foot by five foot drafting table, with a drafting table fluorescent light that is mechanically adjustable. This equipment shall include appropriate drafting instruments, as requested by the Inspector (subject to room size suitability);

e. A legal/letter sized capable copy machine - the Contractor may allow the use of his own in lieu of providing a separate one for the inspector;

f. Double convenience outlets to provide 110 volt power along with surge protectors to protect Government equipment; and

g. The Contractor shall provide at least one cellular telephone and one satellite telephone aboard the dredge. The telephones shall be available to Government personnel for conducting official Government business 24 hours per day, seven days per week. The contractor shall provide the Inspector's office with a cellular wireless Broadband / WiFi 802.11n capable router that accepts cellular data signals through satellite. The high speed internet service and associated equipment must be capable of providing adequate connection to allow the inspectors to import / export files through RMS (shall provide a minimum download speed of 10 Mbps and a minimum upload speed of 1.5 Mbps for the sole use of the Inspector). The contractor shall field verify that the service provider chosen has adequate continuous coverage throughout the site of work. The contractor shall be responsible for the installation, maintenance of, and the monthly service fees necessary to provide continuous high speed internet service for the duration of the contract. Final approval of the plant will not be made until this equipment is installed and in good working order.

1.2.3 Meals

If the Contractor maintains an establishment at the worksite for the subsistence of his own employees, then he shall furnish to inspectors, and Government agents who may visit the work on official business, meals of a quality satisfactory to the Contracting Officer. All meals shall be available for purchase by the Government's agents and inspectors at the cost of $3.25 per person per meal.

1.3 SEAWORTHINESS CERTIFICATION

All dredges and quarter boats not subject to USCG inspection and certification or not having a current American Bureau of Shipping (ABS) classification shall be inspected in the working mode annually by a marine surveyor accredited by the National Association of Marine Surveyors (NAMS) or the Society of Accredited Marine Surveyors (SAMS) and having at least five years experience in commercial marine plant and equipment. All other plant shall be inspected annually by a qualified person. The inspection shall be documented and a copy of the most recent inspection report shall be posted in a public area on board the vessel and a copy shall be furnished to the designated authority upon request. The inspection shall be appropriate for the intended use of the plant and shall, as a minimum, evaluate structural integrity and compliance with NFPA 302, Fire Protection Standard for Pleasure and Commercial Motor Craft. See EM 385-1-1, Chapter 19-5.

1.4 ENVIRONMENTAL LITIGATION

a. If the performance of all or any part of the work is suspended, delayed, or interrupted due to an order of a court of competent jurisdiction as a result of environmental litigation, then the Contracting Officer or his/her authorized representative, at the request of the Contractor, shall determine whether the order is due in any part to the acts or omissions of the Contractor or a Subcontractor at any tier and required by the terms of this contract. If it is determined that the order is not due in any part to acts or omissions of the Contractor or a Subcontractor at any tier, other than as required by the terms of this contract, then such suspension, delay, or interruption shall be considered as if ordered by the Contracting Officer or his/her authorized representative in the administration of this contract under the terms of the "Suspension of Work" (FAR 52.242-14) clause. The period of such suspension, delay or interruption shall be considered unreasonable and an adjustment shall be made for any increase in the cost of performance of this contract (excluding profit) as provided in that clause, subject to all the provisions thereof.

b. The term "environmental litigation", as used herein, means a lawsuit alleging that the work has an adverse effect on the environment or that the Government has not duly considered, either substantively or procedurally, the effect of the work on the environment.

1.5 STATE TAXES

a. The bid submitted shall not include any amount whatever for payment of any of the following taxes, fees or charges:

(1) The Louisiana "Severance Tax" imposed by LSA R.S. 47:631 and made applicable to the dredging of fill material from rivers and bodies of water within the State of Louisiana by the Severance Tax Regulations promulgated by the Collector of Revenue dated 31 March 1968.

(2) Any amounts claimed by the Louisiana Department of Wildlife and Fisheries for the privilege of removing fill from the water bottoms of the State of Louisiana.

b. If the Contractor is required to pay or bear the burden of any tax, fee or charge described in paragraph a.(1) and/or a.(2) above, the contract prices shall be increased by that amount which the Contractor is required to pay to the State of Louisiana; provided, however, that no increase in contract price shall be made for any liability the Contractor may incur as a result of his fault or negligence or his failure to follow the instructions of the Contracting Officer or his/her authorized representative.

c. The Contractor shall promptly notify the Contracting Officer or his/her authorized representative of all matters pertaining to taxes, fees, or charges as described herein which reasonably may be expected to affect the contract price and shall at all times follow the directions and instructions of the Contracting Officer or his/her authorized representative in regard to the payment of such taxes, fees, or charges.

d. Before any increase in contract price becomes effective in accordance with the provisions of this clause, the Contractor shall warrant in writing that no amount of such taxes, fees or charges was included in the contract price as a contingency reserve or otherwise.

1.6 RIGHTS-OF-WAY

a. The rights-of-entry required for the work to be constructed under this contract, within the rights-of-way limits indicated on the plates, have been obtained by the Government and are provided without cost to the Contractor. The Contractor shall make its own investigations to determine the conditions, restrictions and difficulties, which may be encountered in the transportation of equipment and material to and from the work site. The proposed work, including rights-of-way, as defined by these specifications and as shown on the plates, is in compliance with all applicable Federal and state environmental laws and regulations. Upon completion of the Contractor's work, rights-of-way furnished by the Government shall be returned to its original condition prior to construction unless otherwise noted.

b. If the Contractor proposes a deviation from the Government furnished rights-of-way for his convenience, the Contractor shall notify the Contracting Officer or their representative in writing. The Contractor shall not provide any permanent rights-of-way for the project. The Contractor is cautioned that any deviation to the Government furnished rights-of-way is subject to all applicable Federal and state environmental laws and regulations. Compliance with these environmental laws and regulations may require additional National Environmental Policy Act (NEPA) documents, cultural resources surveys, coordination with the Louisiana State Historical Preservation Officer, water quality certification, modification of the Federal consistency determination, etc. The Government is ultimately responsible for environmental compliance; therefore, the Government will determine the additional environmental coordination and documentation necessary for a proposed deviation to the Government furnished rights-of-way. For any environmental investigations the Government is to perform on areas outside of Government furnished rights-of-way, the Contractor shall provide sufficient rights of entry to the Government. The Contracting Officer will advise the Contractor of the additional environmental coordination and documentation that must be completed. The Government shall be responsible for any additional environmental compliance; however, the Contractor may conduct specific tasks identified by the Government. The Government will offer advice and assistance to the Contractor in conducting these tasks. Depending on the environmental impact of the proposed deviation, obtaining the coordination and documentation may not be approved or could take as much as 180 days for approval by the Government. The Government must review, approve, and ensure distribution of all environmental compliance documentation and ensure all comments on the same have been resolved before any utilization of any areas outside of the Government furnished rights-of-way. The Contractor shall reimburse the Government for actual expenses incurred for assistance in completing or attempting to complete additional environmental coordination and documentation, which expenses will not exceed one hundred thousand ($100,000) dollars. There is no guarantee that environmental compliance will be obtained; therefore, the Contractor shall assume all risks and liabilities associated with pursuing a deviation. Any delays resulting from the deviation and/or the environmental coordination and documentation shall not be made the basis of any Contractor claim for increase in the contract cost and/or increase in contract time. Deviations will be at Contractor's sole risk and liability, including, but not limited to, such liabilities associated with items such as hazardous substances regulated under the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et. seq.), and at no cost to the Government. Government assistance in obtaining additional environmental clearances does not relieve the Contractor of responsibility for complying with other Federal, state or local licenses and permits.

c. The following right-of-entry stipulations apply to specific primary and/or secondary dredging locations and shall be complied with as required.

(1) For Mississippi River Deep Draft Crossings:

(a) The roads on the crown or berm of the levees are not to be used during inclement weather, except in the case of an emergency.

(b) Wherever the levee crown is to be used for parking for any more than four vehicles, 48 hours notice shall be given the Atchafalaya Basin Levee District (ABLD) at telephone number (225) 387-2249 and fax number (225) 387-4742. Pontchartrain Levee District at telephone number (225) 869-9721 or (225) 869-9722 and fax number (225) 869-9723.

(c) The levee crown is not to be accessed during inclement weather without the approval from ABLD.

(d) Parking must be within the levee servitude and existing ramps.

(e) The Contractor shall contact the levee ramp owner at Fairview Crossing at (504)874-3625 before utilizing parking for that area.

(2) For Mississippi River and Southwest Pass:

(a) The U.S. Army Corps of Engineers, Venice Sub Office and Harbor will not be available to the Contractor for vehicle parking or vessel docking. Vessel docking will only be permitted for standby to pick-up and drop-off Government personnel.

1.7 MOBILIZATION OF ATTENDANT PLANT

Pursuant to Section 00 73 00, paragraph entitled "Delivery of Plant", mobilization of all attendant plant, if required, shall be concurrent with dredge mobilization. Failure to timely mobilize such auxiliary/attendant plant may result in one or more of the following actions by the Contracting Officer or his/her authorized representative: reasonable suspension (without Government cost) of work until required plant is provided and/or formulation of credit to offset deficient plant. The Government's rights under any other Contract Clause are preserved.

1.8 OBSTRUCTION OF CHANNEL

The Government will not undertake to keep the channel free from vessels or other obstructions, except to the extent of such regulations, if any, as may be prescribed by the Secretary of the Army, in accordance with the provisions of Section 7 of the River and Harbor Act of 8 August 1917. The Contractor will be required to conduct the work in such a manner as to obstruct navigation as little as possible and in the case the Contractor's plant so obstructs the channel as to make difficult or endanger the passage of vessels, said plant shall be promptly moved on the approach of any vessel to such an extent as may be necessary to afford a practicable passage. Upon the completion of the work, the Contractor shall promptly remove its plant, including ranges, buoys, piles and other markers placed under this contract in navigable waters or on shore.

1.9 WORK BY OTHERS

The Government may award other contracts for additional work in the area, or undertake work with its own personnel and equipment. The Contractor shall fully cooperate with such Contractors or Government forces and shall neither commit nor permit any act that may interfere with the performance of work by any other Contractor or Government forces.

1.10 CONTRACTOR'S RESPONSIBILITY

The Contractor shall be responsible for ensuring that all its employees strictly comply with all laws that may apply to operations under this contract. Compliance with the provisions of this section by subcontractors will be the responsibility of the Contractor. The Contractor assumes full responsibility for the safety of its employees, plant and materials and for any damage or injury done by or to them from any source or cause, except damage caused by negligent acts of the Government, its officers, agents or employees. Such damages will be the responsibility of the Government in accordance with applicable Federal laws. The terms "officer", "agent", and "employee" of the Government do not include persons in the employ of the Contractor and whose services have been furnished to the Government. The Contractor shall be responsible for the dredge, attendant plant and all additional equipment used for this contract. Should any of the aforementioned or parts thereof fall overboard or sink within the dredging region, the Contractor shall develop a plan to recover the sunken equipment or parts thereof at no additional cost to the Government. The Government will not be responsible to recover or assist in the recovery of the Contractor's sunken equipment or parts thereof.

1.11 SUPERVISION

At all times during performance of this contract and until the work is completed and accepted, the Contractor shall have on the worksite a competent superintendent who is satisfactory to the Contracting Officer and has authority to act for the Contractor. Inspectors appointed by the Contracting Officer will enforce strict compliance with the terms of the contract. The inspectors will keep a record of the work done, but neither the presence nor absence of inspectors shall relieve the Contractor of responsibility for the proper execution of the work in accordance with the contract and directives issued by the Contracting Officer.

1.12 AS-BUILT DRAWINGS

The Contractor will be furnished one set of plates for use in the preparation of properly scaled "As-Built" drawings. The Contractor shall submit an entire set of "As-Built" drawings, regardless of whether or not any dredging, disposal, or changes were made on those plates. The "As-Built" drawings shall be a record of the construction as completed by the Contractor. "As-Built" drawings shall include the following:

a. A Cover Page that shall include the project title, contract number and Contractor;

b. A Dredging Summary Sheet that shall include the following (at a minimum): dredging regions dredged, dredge name, dates dredged per each dredging region, yardage per each dredging region, disposal locations per each dredging region (include amount of loads and yardage for each disposal). If multiple dredges were used, the information shall include what each dredge dredged by date, yardage in each dredging region and disposal locations per dredging region (include amount of loads and yardage for each disposal);

c. A Utility Summary Sheet that shall list every utility (for both the dredging channel and disposal areas). For every utility, the following verified information shall be provided: C/L station, C/L XY-coordinate, right descending bank toe XY-coordinate, left descending bank toe XY-coordinate, minimum elevation, all horizontal information required to determine actual alignments of all utilities, utility size, utility type and POC information. In the notes column, state whether the utilities were dredged over, disposed on, skipped (state reasons why), and any issues with the utility owner. A sample Utility Summary Sheet is included at the end of this section. If the Contractor worked in multiple dredging regions, the Contractor shall fill out a separate Utility Summary Sheet for each dredging region. The Contractor shall also submit a copy of all utility as-builts, surveys, etc received from the owner. All utility as-builts shall be labeled such that each as-built has the current owner's name and pipeline location (C/L Station and Mile #) on it;

d. All information shown on the contract plates and a record of all completed work, including any deviations, modifications or changes from those plates, however minor, which may have been incorporated into the work;

e. Neat line and actual quantity by reach of dredging;

f. All additional work not appearing on the contract plates; and

g. Each various feature of work performed shall be distinguishable by color coding and/or symbology. As a minimum the following features shall be depicted on the as-built drawings:

(1) Contractor and dredge name.

(2) Contract number.

(3) Assignment number.

(4) Sheet number.

(5) Reach in which assignment is performed.

(6) Number of cuts.

(7) Dates dredged.

(8) Total loads in assignment.

(9) Yardage removed in assignment area.

(10) Number of loads going to the Ocean Dredged Material Disposal Site (ODMDS), to the Hopper Dredge Disposal Area (HDDA), or other Government designated disposal areas.

(11) Utility locations (for both the dredging channel and disposal areas) as verified by owners; including station, C/L XY-coordinate, minimum elevation, all horizontal information required to determine actual alignments of all utilities, utility

size, utility type and POC information.

(12) Channel markers, buoys, day markers, river miles, etc.

(13) Changes or modifications issued during the course of the contract.

The Government reserves the right to direct additional requirements. The Contractor shall submit the draft as-builts for review by email in PDF format to the New Orleans Area Office personnel. Upon approval/acceptance of the draft as-builts, the Contractor shall submit the final as-builts in both CADD and PDF format into RMS as a closeout submittal. Failure to submit final as-built drawing files as specified shall be cause for withholding any payment due to the Contractor under this contract. Approval and acceptance of final as-built drawings shall be accomplished before final payment is made to the Contractor.

1.13 FUEL CONSUMPTION REPORTING REQUIREMENTS

On the first day of each month, the Contractor shall furnish, to the Government Inspector, a report of the quantities of fuel consumed during the previous month in execution of the work covered by the contract. The quantities reported shall include fuel consumed by the Contractor and all of their subcontractors for the main plant and all support plant during the preceding month. This information may be consolidated and shall be included in the Report of Operations-Hopper Dredges, ENG Form No. 27A (costs).

1.14 GENERAL SECURITY REQUIREMENTS AND GUIDANCE

The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The COR will develop & implement site-specific risk measures to maintain positive control of all contractors (Access-Screening Training Records) and be technically proficient in AT/OPSEC. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

1.15 SUSPICIOUS ACTIVITY REPORTING TRAINING (e.g. iWATCH, CorpsWatch, or See Something, Say Something)

All contract personnel shall receive initial and annual refresher training from the Requiring Activity (RA) representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative, or law enforcement entity.

1.16 PRE-SCREEN CANDIDATES USING E-VERIFY PROGRAM

Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (https://www.e-verify.gov/) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

PART 2 PRODUCTS (Not Used)

PART 3 EXECUTION (Not Used)

-- End of Section --

Contract #: ____________________ Date submitted: ____________________

Dredge Name: ____________________

Name of Dredging Region: ____________________

Dredging Region Start Date: ____________________ , Dredging Region End Date: ____________________

Note: The Contractor shall fill out one sheet for each dredging region.

Utility Summary Sheet									
C/L Station/Mile #	C/L X, Y Coordinate	RDB Toe X, Y Coordinate	LDB Toe X, Y Coordinate	Minimum Elevation	Size and Type of Utility	Is the utility line properly marked with signage by the utility owner (yes/no) ? If no, what is the deficiency.	Owner Name	Owner Point of Contacts (email address, phone number, and physical address)	Notes: (e.g. - was line dredged over, disposed on, skipped (discuss reason why), any issues with owner, etc)

Note: The Contractor shall fill out one sheet for each dredging region.

Version: Dec 2025

SECTION TABLE OF CONTENTS

DIVISION 01 - GENERAL REQUIREMENTS

SECTION 01 33 00

SUBMITTAL PROCEDURES

-- End of Section Table of Contents --

SECTION 01 33 00

SUBMITTAL PROCEDURES

PART 1 GENERAL

1.1 SUMMARY

The Contracting Officer may request submittals in addition to those specified when deemed necessary to adequately describe the work covered in the respective sections.

Units of weights and measures used on all submittals shall be the same as those used in the contract.

Each submittal shall be complete and in sufficient detail to allow ready determination of compliance with contract requirements.

Each submittal shall be submitted, with its complete backup material.

1.2 MEASUREMENT AND PAYMENT

No separate measurement or payment will be made for submittal requirements as specified herein. All costs for the work covered under this section shall be distributed throughout the existing bid items. Payment for materials incorporated in the work will not be made if required approvals have not been obtained.

1.3 DEFINITIONS

1.3.1 Submittal Identification Definitions

Drawings

Submittals which graphically show relationship of various components of the work, schematic diagrams of systems, details of fabrication, layouts of particular elements, connections, and other relational aspects of the work.

Data

Submittals that provide calculations, descriptions, or documentation regarding the work.

Samples

Samples, including both fabricated and unfabricated physical examples of materials, products, and units of work as complete units or as portions of units of work.

Schedules

Tabular lists showing location, features, or other pertinent information regarding products, materials, equipment, or components to be used in the work.

Reports

Reports of inspections or tests, including analysis and interpretation of test results.

Certificates

Statement signed by an official authorized to certify on behalf of the manufacturer of a product, system or material, attesting that the product, system or material meets specified requirements. The statement must be dated after the award of the contract, must state the Contractor's name and address, must name the project and location, and must list the specific requirements that are being certified.

Instructions

Preprinted material describing installation of a product, system or material, including special notices and material safety data sheets, if any, concerning impedances, hazards, and safety precautions.

Statements

A document, required of the Contractor, or through the Contractor, from a supplier, installer, manufacturer, or other lower tier Contractor, the purpose of which is to confirm the quality or orderly progression of a portion of the work by documenting procedures, acceptability of methods or personnel, qualifications, or other verifications of quality.

Operation and Maintenance Manuals

Data that forms a part of an operation and maintenance manual.

Records

Documentation to record compliance with technical or administrative requirements.

1.4 SUBMITTAL CLASSIFICATION

Submittals are classified as follows:

1.4.1 Government Approved

Governmental approval is required for extensions of design, critical materials, deviations, equipment whose compatibility with the entire system must be checked and other items as designated by the Contracting Officer. Within the terms of the Contract Clause entitled "Specifications and Drawings for Construction" (FAR 52.236-21), they are considered to be "shop drawings". Any reference to Government approval by the Contracting Officer (CO) includes the approving authority of the CO, the Administrative Contracting Officer (ACO) or the Contracting Officer's representative (COR).

1.4.2 Information Only

All submittals not requiring Government approval will be for information only. They are not considered to be "shop drawings" within the terms of the Contract Clause referred to above.

1.5 SUBMITTAL PREPARATION

1.5.1 General

The Contractor shall submit all items listed on the Submittal Register (ENG Form 4288-R) or specified in the other sections of these specifications. The Contractor shall make submittals as required by the specifications. Submittals shall be submited via RMS. Proposed deviations from the contract requirements shall be clearly identified. Submittals shall include items such as: Contractor's, manufacturer's or fabricator's drawings; descriptive literature including (but not limited to) catalog cuts, diagrams, operating charts or curves; test reports; test cylinders; samples; O&M manuals (including parts list); certifications; warranties; and other such required submittals. Submittals requiring Government approval shall be scheduled and made prior to the acquisition of the material or equipment covered thereby. Samples remaining upon completion of the work shall be picked up and disposed of in accordance with manufacturer's Material Safety Data Sheets (MSDS) and in compliance with existing laws and regulations.

1.5.2 Procedures

Procedures for submittals will be stipulated by the Contracting Officer or his/her authorized representative after Notice to Proceed is issued.

1.6 TRANSMITTAL FORM (ENG FORM 4025-R)

The sample Transmittal Form (ENG Form 4025-R) attached to this section shall be used for submitting both Government approved and information only submittals in accordance with the instructions on the reverse side of the form. This form shall be properly completed by filling out all the heading blank spaces and identifying each item submitted. Special care shall be exercised to ensure proper listing of the specification paragraph and/or sheet number of the contract plates pertinent to the data submitted for each item.

1.7 INFORMATION ONLY SUBMITTALS

Normally submittals for information only will not be returned. Approval of the Contracting Officer is not required on information only submittals. The Government reserves the right to require the Contractor to resubmit any item found not to comply with the contract. This does not relieve the Contractor from the obligation to furnish material conforming to the plans and specifications; will not prevent the Contracting Officer from requiring removal and replacement of nonconforming material incorporated in the work; and does not relieve the Contractor of the requirement to furnish samples for testing by the Government laboratory or for check testing by the Government in those instances where the technical specifications so prescribe.

1.8 DEVIATIONS

For submittals that include proposed deviations requested by the Contractor, the column "variation" of ENG Form 4025-R shall be checked. The Contractor shall set forth in writing the reason for any deviations and annotate such deviations on the submittal. The Government reserves the right to rescind inadvertent approval of submittals containing unnoted deviations.

1.9 SUBMITTAL REGISTER (ENG FORM 4288-R)

The sample Submittal Register at the end of this section is one set of ENG Form 4288-R listing items of equipment and materials for which submittals are required by the specifications; this list may not be all-inclusive and additional submittals may be required. Columns "c" through "r" have been completed by the Government. The Contractor shall complete columns “a”, “b”, and “s” through “x”, and submit the completed register to the Contracting Officer within 5 calendar days after Notice to Proceed for approval. The approved submittal register will become the scheduling document and will be used to control submittals throughout the life of the contract. The submittal register and the progress schedules shall be coordinated. The Contractor is responsible for maintaining an effective submittal control system by reviewing, updating and submitting updated copies of the register to the Contracting Officer every 30 days.

1.10 SCHEDULING

Submittals covering component items forming a system or items that are interrelated shall be scheduled to be coordinated and submitted concurrently. Certifications to be submitted with the pertinent drawings shall be so scheduled. Adequate time (a minimum of 30 calendar days exclusive of mailing time) shall be allowed and shown on the register for review and approval. No delays, damages or time extensions will be allowed for time lost in late submittals.

1.11 CONTROL OF SUBMITTALS

The Contractor shall carefully control its procurement operations to ensure that each individual submittal is made on or before the Contractor scheduled submittal date shown on the approved "SUBMITTAL REGISTER".

1.12 GOVERNMENT APPROVED SUBMITTALS

Upon completion of review of submittals requiring Government approval, the submittals will be identified as having received approval via RMS. Any additional instructions will be provided by the Administrative Contracting Officer.

1.13 DISAPPROVED SUBMITTALS

The Contractor shall respond to all concerns expressed by the Contracting Officer and promptly make any corrections necessary to address those concerns. The Contractor shall promptly furnish a corrected submittal in the form and number of copies specified for the initial submittal. If the Contractor considers any correction indicated on the submittals to constitute a change to the contract, a notice in accordance with the Contract Clause "Changes" (FAR 52.243-4) shall be given promptly to the Contracting Officer.

1.14 APPROVED SUBMITTALS

The Contracting Officer's approval of submittals shall not be construed as a complete check, but will indicate only that the general method of construction, materials, detailing and other information are satisfactory. Approval will not relieve the Contractor of the responsibility for any error that may exist; the Contractor is responsible for dimensions, the design of adequate connections and details, and the satisfactory construction of all work. After submittals have been approved by the

Contracting Officer, no resubmittal for the purpose of substituting materials or equipment will be considered unless accompanied by an explanation of why a substitution is necessary.

1.15 STAMPS

Stamps used by the Contractor on the submittal data to certify that the submittal meets contract requirements is to be similar to the following:

CONTRACTOR
(Firm Name)
_____ Approved
_____ Approved with corrections as noted on submittal data and/or attached sheets(s)
SIGNATURE: ______________________
TITLE: ______________________
DATE: ______________________

PART 2 PRODUCTS (Not Used)

PART 3 EXECUTION (Not Used)

-- End of Section --

TRANSMITTAL OF SHOP DRAWINGS, EQUIPMENT DATA, MATERIAL SAMPLES, OR MANUFACTURER'S CERTIFICATES OF COMPLIANCE

For use of this form, see ER 415-1-10; the proponent agency is CECW-CE.

DATE

TRANSMITTAL NO.

SECTION I - REQUEST FOR APPROVAL OF THE FOLLOWING ITEMS (*This section will be initiated by the contractor*)

TO:	FROM:	CONTRACT NO.	CHECK ONE: ☐ THIS IS A NEW TRANSMITTAL ☐ THIS IS A RESUBMITTAL OF TRANSMITTAL ______

SPECIFICATION SEC. NO. (*Cover only one section with each transmittal*)	PROJECT TITLE AND LOCATION	THIS TRANSMITTAL IS FOR: (*Check one*) ☐ FIO ☐ GA ☐ DA ☐ CR ☐ DA/CR ☐ DA/GA

ITEM NO. (*See Note 3*)	DESCRIPTION OF SUBMITTAL ITEM (*Type size, model number/etc.*)	SUBMITTAL TYPE CODE (*See Note 8*)	NO. OF COPIES	CONTRACT DOCUMENT REFERENCE		CONTRACTOR REVIEW CODE	VARIATION Enter "Y" if requesting a variation (*See Note 6*)	USACE ACTION CODE (*Note 9*)
				SPEC. PARA. NO.	DRAWING SHEET NO.			
a.	b.	c.	d.	e.	f.	g.	h.	i.

REMARKS

I certify that the above submitted items had been reviewed in detail and are correct and in strict conformance with the contract drawings and specifications except as otherwise stated.

NAME OF CONTRACTOR

SIGNATURE OF CONTRACTOR

SECTION II - APPROVAL ACTION

ENCLOSURES RETURNED (*List by item No.*)	NAME AND TITLE OF APPROVING AUTHORITY	SIGNATURE OF APPROVING AUTHORITY	DATE

INSTRUCTIONS

1. Section I will be initiated by the Contractor in the required number of copies.

2. Each Transmittal shall be numbered consecutively. The Transmittal Number typically includes two parts separated by a dash (-). The first part is the specification section number. The second part is a sequential number for the submittals under that spec section. If the Transmittal is a resubmittal, then add a decimal point to the end of the original Transmittal Number and begin numbering the resubmittal packages sequentially after the decimal.

3. The "Item No." for each entry on this form will be the same "Item No." as indicated on ENG FORM 4288-R.

4. Submittals requiring expeditious handling will be submitted on a separate ENG Form 4025-R.

5. Items transmitted on each transmittal form will be from the same specification section. Do not combine submittal information from different specification sections in a single transmittal.

6. If the data submitted are intentionally in variance with the contract requirements, indicate a variation in column h, and enter a statement in the Remarks block describing he detailed reason for the variation.

7. ENG Form 4025-R is self-transmitting - a letter of transmittal is not required.

8. When submittal items are transmitted, indicate the "Submittal Type" (*SD-01 through SD-11*) in column c of Section I.
Submittal types are the following:

SD-01 - Preconstruction	SD-02 - Shop Drawings	SD-03 - Product Data	SD-04 - Samples	SD-05 - Design Data	SD-06 - Test Reports
SD-07 - Certificates	SD-08 - Manufacturer's Instructions	SD-09 - Manufacturer's Field Reports		SD-10 - O&M Data	SD-11 - Closeout

9. For each submittal item, the Contractor will assign Submittal Action Codes in column g of Section I. The U.S. Army Corps of Engineers approving authority will assign Submittal Action Codes in column i of Section I. The Submittal Action Codes are:

A -- Approved as submitted.	F -- Receipt acknowledged.
B -- Approved, except as noted on drawings. Resubmission not required.	X -- Receipt acknowledged, does not comply with contract requirements, as noted.
C -- Approved, except as noted on drawings. Refer to attached comments. Resubmission required.	G -- Other action required *(Specify)*
	K -- Government concurs with intermediate design. (*For D-B contracts*)
D -- Will be returned by separate correspondence.	R -- Design submittal is acceptable for release for construction. (*For D-B contracts*)
E -- Disapproved. Refer to attached comments.	

10. Approval of items does not relieve the contractor from complying with all the requirements of the contract.

SUBMITTAL REGISTER

(ER 415-1-10)

CONTRACT NO.

TITLE AND LOCATION: Mississippi River, Baton Rouge to Gulf, Southwest Pass Hopper Dredge Contract No. 9-2026

CONTRACTOR

SPECIFICATION SECTION

ACTIVITY NO	TRANS-MITTAL NO	ITEM NO	SPECIFICATION SECTION NUMBER	DESCRIPTION OF ITEM SUBMITTED	TYPE OF SUBMITTAL: DATA	DRAWINGS	INSTRUCTIONS	SCHEDULES	STATEMENTS	REPORTS	CERTIFICATES	SAMPLES	RECORDS	O&M MANUALS	CLASSIFICATION: INFORMATION ONLY	GOVERNMENT APPROVED	REVIEWER	CONTRACTOR SCHEDULE DATES: SUBMIT	APPROVAL NEEDED BY	MATERIAL NEEDED BY	CONTRACTOR ACTION: CODE	DATE	SUBMIT TO GOVERNMENT	GOVERNMENT ACTION: CODE	DATE	REMARKS
a.	b.	c.	d.	e.	f.	g.	h.	i.	j.	k.	l.	m.	n.	o.	p.	q.	r.	s.	t.	u.	v.	w.	x.	y.	z.	aa.
		1	01 30 00	As-Built Drawings		X										X	NOAO, ODT-D									
		2	01 35 26	Accident Prevention Program												X	SS									
		3	01 57 20.00 10	Environmental Protection Plan	X										X		ODT-E Attn: Jeff Corbino									
		4	35 20 23.23	Load Displacement Chart	X										X		ODT-D									
		5	35 20 23.23	Pump curve(s)	X										X		ODT-D									
		6	35 20 23.23	Plant Data Sheet	X										X		ODT-D									
		7	35 20 23.23	Ullage Table	X										X		ODT-D									
		8	35 20 23.23	Plan of Operations for Utility Crossing					X						X		NOAO									
		9	35 20 23.23	Utility As-builts and Surveys Received from the Owners	X	X									X		ODT-D									
		10	35 20 23.26	Letter of National Dredging Quality Management Program Certification							X				X		ODT-D									

ENG FORM 4288-R, JAN 97 EDITION OF MAR 95 IS OBSOLETE. PAGE _1_ OF _1_ PAGES (PROPONENT: CEMP-CE)

NOTE: THIS REGISTER IS NOT NECESSARILY COMPLETE. THE CONTRACTOR SHALL BE RESPONSIBLE FOR DEVELOPING A COMPREHENSIVE REGISTER.

SECTION TABLE OF CONTENTS

DIVISION 01 - GENERAL REQUIREMENTS

SECTION 01 35 26

GOVERNMENTAL SAFETY REQUIREMENTS

-- End of Section Table of Contents --

SECTION 01 35 26

GOVERNMENTAL SAFETY REQUIREMENTS

PART 1 GENERAL

1.1 SAFETY PROVISIONS

All work under these specifications shall be performed in accordance with the provisions of EM 385-1-1 "Safety and Occupational Health Requirements", latest edition. USCG Rules and regulations also are applicable.

1.2 MEASUREMENT AND PAYMENT

No separate measurement or payment will be made for governmental safety requirements as specified herein. All costs for the work covered under this section shall be distributed throughout the existing bid items.

1.3 SITE QUALIFICATIONS, DUTIES AND MEETINGS

1.3.1 Personnel Qualifications

1.3.1.1 Site Safety and Health Officer (SSHO)

1.3.1.1.1 SSHO Staffing for USACE Dredging Contracts

a. Dredging contracts may include several project sites; this contract will require a minimum of one full time level 1 SSHO(s) assigned per project site. SSHO may be level 2 or level 3 collateral duty in specific conditions listed below.

b. Example of one dredging project site is reflected in each of the following:

(1) a mechanical dredge, tug(s) and scow(s), scow route and material placement site; or

(2) a hydraulic pipeline dredge, attendant plant and material placement site; or,

(3) a hopper dredge (include land-based material placement site - if applicable.)

c. On individual dredging project sites with a work force less than eight employees, the SSHO may be a level 2 or level 3 collateral duty, with the same responsibilities of a full time level 1 SSHO.

d. Hopper dredges with USCG - Documented crews may designate an officer as a level 2 collateral-duty SSHO instead of having a full-time level 1 SSHO if the officer meets the SSHO training and experience requirements.

1.3.1.1.2 SSHO Requirements for Dredging

a. In addition to requirements stated elsewhere in this specification, the SSHO shall be present at the project site, located so they have full mobility and reasonable access to all major work operations, for at least one shift in each 24 hour period when work is being done. The SSHO, or Alternate SSHO, shall be available during all shifts for immediate verbal consultation and notification, either by phone or radio. The SSHO shall be a full-time, dedicated position, except as noted above. The SSHO (level 1 and level 2) shall report to a senior project (or corporate) official.

b. The SSHO shall inspect all work areas and operations during initial set-up and at least monthly observe and provide personal oversight on each shift during dredging operations for projects with many work sites, more often for those with less work sites.

c. For projects with multiple shifts or when SSHO is temporarily off-site, an Alternate level 2 SSHO will be assigned to insure SSHO coverage for the project at all times work activities are conducted. The Alternate SSHO must meet the same requirements and assume the responsibilities of the project SSHO. The Alternate SSHO position may be a collateral duty.

d. If the SSHO is off-site for a period longer than 24 hours, a qualified replacement SSHO shall be provided and shall fulfill the same roles and responsibilities as the primary/initial SSHO.

1.3.1.1.3 Designated Representative (DR) Requirements for Dredging

a. Designated Representatives (DR) are level 2 or level 3 collateral duty safety personnel, with safety duties in addition to their full-time occupation, and support and supplement the SSHO efforts in managing, implementing and enforcing the Contractor's Safety and Health Program. DRs shall be individual(s) with work oversight responsibilities, such as masters, mates, fill foremen and superintendents. DRs should not be positions requiring continuous mechanical or equipment operations, such as equipment operators.

b. A DR shall be appointed for all remote work locations more than 45 minutes' travel time from the SSHO's duty location, typically including dredged material placement sites, towing and scow operations and other operations.

c. The DRs will perform safety program tasks as designated by the SSHO and report safety findings to the level 1 or level 2 SSHO/Alternate SSHO. The SSHO shall document results of safety findings and provide information for inclusion in the CQC reports to the Government Representative on a daily basis.

1.3.1.1.4 Safety Personnel Training Requirements for Dredging

The SSHO shall meet the training and experience requirements of EM 385-1-1, Chapter 2-3.b. Level 1 SSHOs are not permitted to supervise non-safety personnel at the site of work.

1.3.1.2 Equipment Operator Authorization

The Contractor shall submit a list of designated personnel qualified and authorized to operate machinery and mechanized equipment in accordance withEM 385-1-1.

1.3.1.3 Crane/Derrick and Dragline Certification

The Contractor shall submit a copy of certification and performance test in accordance with EM 385-1-1.

1.3.2 Personnel Duties

1.3.2.1 Daily Inspections

The Contractor shall institute a daily inspection program to assure that safety requirements are being fulfilled. Reports of daily inspections shall be maintained at the jobsite. The reports shall be records of the daily inspections and resulting corrective actions. Each report shall include, as a minimum, the following:

a. Phase(s) of construction underway during the inspection.

b. Location(s) of areas where inspections were made.

c. Results of inspections shall be reported in a deficiency tracking log in accordance with EM 385-1-1, including nature of deficiencies observed and corrective action taken or to be taken, and the date and signature of the person responsible for its contents. The Contractor shall submit to the Government a copy of the daily inspection report form that's intended to be used as part of the Accident Prevention Plan for execution of the work.

1.4 ACCIDENT PREVENTION PROGRAM

Refer to the contract clause "Accident Prevention" (FAR 52.236-13). Within 24 hours after receipt of Notice of Award of the contract, the Accident Prevention Plan shall be submitted to the Contracting Officer or his/her authorized representative for review and acceptance. The Accident Prevention Plan must include a statement that describes the: Description, Magnitude, Major Scope of Work and Location(s). The program shall be submitted in the following format:

a. The Contractor shall submit ENG Form 6206 (Activity Hazard Analysis (AHA)), ENG Form 6292 (Site-Specific Safety & Occupational Health Plan Worksheet), ENG Form 6293 (Accident Prevention Plan (APP) Worksheet), and ENG Form 6282 (Site Safety and Health Officer Designation Letter). These ENG forms can be obtained from: https://www.publications.usace.army.mil/USACE-Publications/Engineer-Forms/.

b. The Contractor shall submit a copy of company policy statement regarding accident prevention.

c. When marine plant and equipment are in use under a contract, the method of fuel oil transfer shall be included on MVN Form 385-10R, Fuel Oil Transfer. The Fuel Oil Transfer form can be obtained from: https://www.mvn.usace.army.mil/About/Offices/Safety/Safety-Forms/.

The Contractor shall not commence physical work at the site until the program has been accepted by the Contracting Officer or his/her authorized representative. The Contractor may submit its Activity Hazard Analysis only for the first phase of construction provided that it is accompanied by an outline of the remaining phases of construction. All remaining phases shall be submitted and accepted prior to the beginning of work in each phase. Also refer to Chapters 2 and 19-8.d of EM 385-1-1.

1.5 DIVE PLAN

A Dive Plan shall be submitted as a safety submittal item of the contract Accident Prevention Plan. All contract diving operations shall be performed in accordance with EM 385-1-1, Chaper 30. At a minimum, the dive plan shall address items in EM 385-1-1, Chapter 30-7.c.

1.6 SAFETY SIGN

The Contractor shall furnish, erect, and maintain a Safety Sign at the site where indicated by the Contracting Officer. The sign shall conform to the requirements of this paragraph and the drawing included at the end of this section. The lettering shall be black, the safety circle and cross green, and the background white. When placed on a floating plant, the sign may be half size. The sign shall be erected as soon as practicable, but not later than 15 calendar days after the date established for commencement of work. The data required shall be current. The sign coordinator is Timothy Lacoste at (504) 862-2663. Upon completion of the work, the sign shall become the property of the Contractor and shall be removed from the job site. Sample safety signs and instructions are attached at the end of this section.

1.7 PROJECT SIGN

Prior to commencement of work, the Contractor shall construct a Project Sign at the site of the work at a location directed by the Contracting Officer. The sign, which will identify the work with the Corps of Engineers shall be 4 feet by 6 feet in size and shall conform to the requirements of the Project Sign Drawing and Installation Instructions attached at the end of this section. The lettering for the 2 feet by 4 feet section of the sign with the Corps logo and Army Star shall be white; all other lettering shall be black. Lettering for the project name shall be Helvetica Bold, all other lettering shall be Helvetica Regular. The sign coordinator is Timothy Lacoste at (504) 862-2663. Upon completion of the work, the sign shall become the property of the Contractor and shall be removed from the job site. Sample safety signs and instructions are attached at the end of this section.

1.8 MEANS OF ESCAPE FOR PERSONNEL QUARTERED OR WORKING ON FLOATING PLANT

Two means of escape shall be provided for assembly, sleeping and messing areas on floating plants. For areas involving ten or more persons, both means of egress shall be through standard sized doors opening to different exit routes. Where nine or fewer persons are involved, one of the means of escape may be a window (minimum dimensions 24-inch by 36-inch) that leads to a different exit route than the door. Refer to Chapter 19 of EM 385-1-1.

1.9 EMERGENCY ALARMS, SIGNALS AND DRILLS

1.9.1 Alarms

Emergency alarms shall be installed and maintained on all floating plant requiring a crew where it is possible for either a passenger or crewman to be out of sight or hearing from any other person. The alarm system shall be operated from the primary electrical system with standby batteries on trickle charge that will automatically furnish the required energy during an electrical system failure. A sufficient number of signaling devices shall be placed on each deck so that the sound can be distinctively heard at any point above the usual background noise. All signaling devices shall be so interconnected that actuation can occur from at least one strategic point on each deck.

1.9.2 Signals

1.9.2.1 Fire Alarm Signals

The general fire alarm signal shall be in accordance with 46 CFR Ch. I; Subpart E. 109.503 of the US Coast Guard Rules and Regulations for Cargo and Miscellaneous Vessels, Subchapters I & Ia, 1 Oct 98 (CG 257).

1.9.2.2 Abandon Ship Signals

The signal for abandon ship shall be in accordance with paragraph 109.503(b) of the publication cited in paragraph 1.9.2.1 above.

1.9.2.3 Man Overboard Signal

Hail and pass the word to the bridge. All personnel and vessels capable of rendering assistance shall respond.

1.9.3 Drills

Drills shall be in accordance with EM 385-1-1, Chapter 19-8.b.

1.10 SIGNAL LIGHTS

The Contractor shall display signal lights and conduct its operations in accordance with U. S. Coast Guard regulations governing lights and day signals to be displayed, as set forth in Commandant, U. S. Coast Guard Instruction M16672.2C, Navigation Rules, International - Inland (COMDTINST M16672); 33 CFR 81, Appendix A (International); and 33 CFR 84 through 33 CFR 90 (Inland) as applicable.

1.11 REPORTS

1.11.1 Accident Investigation and Reporting

The reporting and associated investigation of accidents and near misses is considered a leading indicator. The Contractor shall utilize the ENG Form 3394 (Mishap Notification and Investigation) to report accidents and near misses. ENG Form 3394 can be obtained from: https://www.publications.usace.army.mil/USACE-Publications/Engineer-Forms/.

1.12 HURRICANE PLAN

A detailed plan for protection and evacuation of personnel and plant in the event of an impending hurricane or storm is required as an enclosure to the Contractor's Accident Prevention Program. This plan shall be submitted to the Contracting Officer or his/her authorized representative for review and approval as part of the Accident Prevention Plan prior to the pre-construction conference. Work being performed to satisfy the Hurricane Plan will not be measured for payment. All costs for all work associated with the Hurricane Plan and providing the equipment required throughout the contract duration shall be distributed throughout the existing bid items. The plan shall include at least the following:

a. The time each phase will be put into effect. The time shall be the number of hours remaining for the storm to reach the worksite if it continues at the predicted speed and direction.

b. The safe harbor for personnel and plant specifically identified.

c. The name of the boat that will be used to move the plant, its type, capacity, speed and availability.

d. The estimated time necessary to move the plant to the safe harbor after movement is started.

e. An on-site review by the Contractor's supervisory personnel and the Government Inspector shall be conducted at the Government Inspector's discretion.

1.13 COMPREHENSIVE HAZARD COMMUNICATION PROGRAM

The Contractor shall develop, implement and maintain at the workplace a written, Comprehensive Hazard Communication Program (see Chapter 6 of EM 385-1-1) that includes identification of potential hazards as prescribed in 29 CFR Part 1910.1200 and/or 1926.59, effects of exposure and control measures to be used for chemical products and physical agents that may be encountered during the performance of work on this contract, provisions for container labeling, Material Safety Data Sheets and employee training program and other criteria in accordance with 29 CFR Part 1910.1200, 1926.59. Training shall include communication methods and systems to be used (i.e., voice, hand signals, radios or other means) and training in the use and understanding of material safety data sheets and chemical product hazard warning labels. Prior to bringing hazardous substances, as defined in 29 CFR 1910.1200 and/or 1926.59, onto the job site, a copy of the Hazard Communication Program and the Material Safety Data Sheet of each substance shall be provided to the Contracting Officer or his/her authorized representative and made available to the Contractor's employees as part of the Contractor's Accident Prevention Program.

PART 2 PRODUCTS (Not Used)

PART 3 EXECUTION

3.1 GROUND FAULT PROTECTION

All electrical equipment used on this contract shall be equipped with ground fault circuit interrupters, in accordance with EM 385-1-1, Chapter 11.

3.2 CONTROL OF HAZARDOUS ENERGY (LOCKOUT/TAGOUT)

The Contractor shall develop, implement and maintain at the workplace a written control of hazardous energy (lockout/tagout) system, in accordance with EM 385-1-1, Chapter 12.

3.3 RADIATION

If a production meter that uses nuclear materials is being used aboard the dredge, the Contractor shall perform the following requirements. The production meter nuclear device system designer and installer shall be qualified in these fields of expertise by the Nuclear Regulatory Commission (NRC). The Contractor shall obtain licensing and training as required by the NRC for its personnel aboard the dredge for the use of those components of the production meter containing or are affected by the nuclear source.

The Contractor shall implement a nuclear device awareness program as required by the NRC for all personnel aboard the dredge not directly involved in the activities of the nuclear device. The Contractor shall submit a nuclear device safety plan to the Government within 24 hours after issuance of Notice to Proceed. While a nuclear device is present aboard the dredge, the Contractor shall strictly adhere to all applicable NRC rules and regulations.

-- End of Section --

Below are two samples of the construction project identification sign showing how this panel is adaptable for use to identify either military (top), or civil works projects (bottom). The graphic format for this 4′ x 6′ sign panel follows the legend guidelines and layout as specified below. The large 4′ x 4′ section of the panel on the right is to be white with black legend. The 2′ x 4′ section of the sign on the left with the full Corps signature (reverse version) is to be screen printed Communications Red on the white background.

This sign is to be placed with the Safety Performance Sign shown on the following page. Mounting and fabrication details are provided on page 16.4.

Special applications or situations not covered in these guidelines should be referred to the District/Division sign coordinator.

Legend Group 1: One- to two-line description of Corps relationship to project.
Color: White
Typeface: 1.25″ Helvetica Regular
Maximum line length: 19″

Legend Group 2: Division or District Name (optional). Placed below 10.5″ Reverse Signature (6″ Castle).
Color: White
Typeface: 1.25″ Helvetica Regular

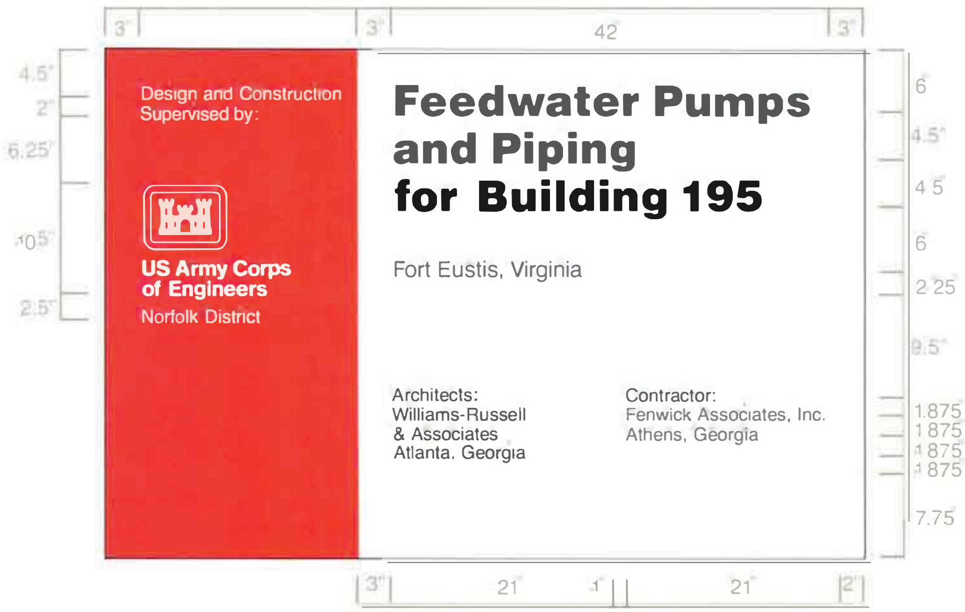
Legend Group 3: One- to three-line project title legend describes the work being done under this contract.
Color: Black
Typeface: 3″ Helvetica Bold
Maximum line length: 42″

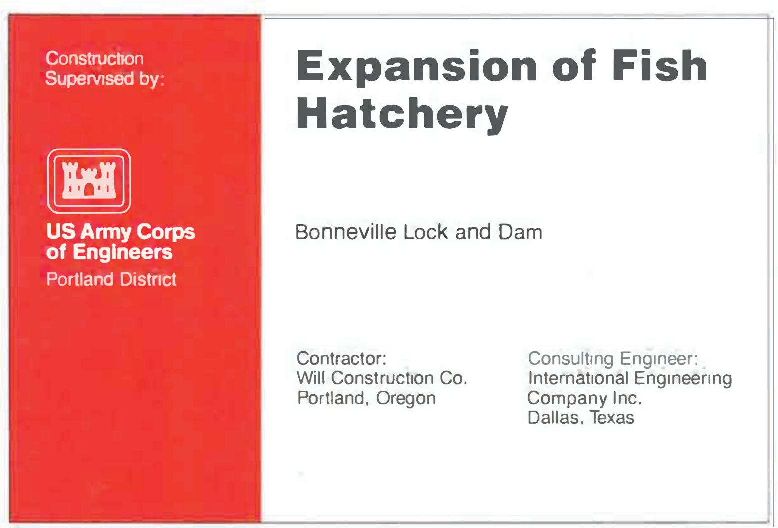
Legend Group 4: One- to two-line identification of project or facility (civil works) or name of sponsoring department (military).
Color: Black
Typeface: 1.5″ Helvetica Regular
Maximum line length: 42″

Cross-align the first line of Legend Group 4 with the first line of the Corps Signature (US Army Corps) as shown.

Legend Groups 5a-b: One- to five-line identification of prime contractors including: type (architect, general contractor, etc.), corporate or firm name, city, state. Use of Legend Group 5 is optional.
Color: Black
Typeface: 1.25″ Helvetica Regular
Maximum line length: 21″

All typography is flush left and rag right, upper and lower case with initial capitals only as shown. Letter- and word-spacing to follow Corps standards as specified in Appendix D.





Sign Type	Legend Size	Panel Size	Post Size	Specification Code	Mounting Height	Color Bkg/Lgd
CID-01	various	4′ x 6′	4″ x 4″	HDO-3	48″	WH-RD/BK

Each contractor's safety record is to be posted on Corps managed or supervised construction projectgs and mounted with the construction project identification sign specified on page 16.2.

The graphic format, color, size and typefaces used on the sign are to be reproduced exactly as specified below. The title with First Aid logo in the top section of the sign, and the performance record captions are standard for all signs of this type. Legend Groups 2 and 3 below identify the project and the contractor and are to be placed on the sign as shown.

Safety record numbers are mounted on individual metal plates and are screw-mounted to the background to allow for daily revisions to posted safety performance record.

Special applications or situations not covered in these guidelines should be referred to the District/Division sign coordinator.

Legend Group 1: Standard two-line title "Safety is a Job Requirement", with (8" od.) Safety Green First Aid logo. Color: To match PMS 347
Typeface: 3" Helvetica Bold
Color: Black

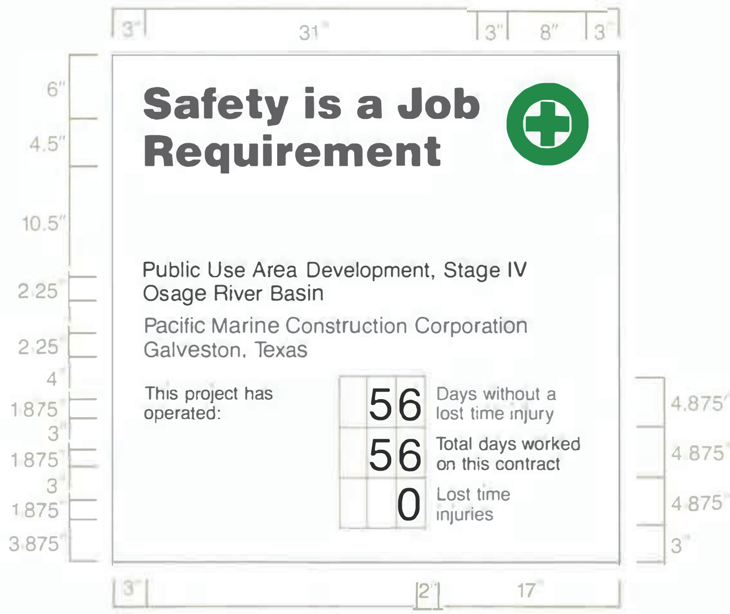
Legend Group 2: One- to two-line project title legend describes the work being done under this contract and name of host project.
Color: Black
Typeface: 1.5" Helvetica Regular
Maximum line length: 42"

Legend Group 3: One- to two-line identification: name of prime contractor and city, state address.
Color: Black
Typeface: 1.5" Helvetica Regular
Maximum line length: 42"

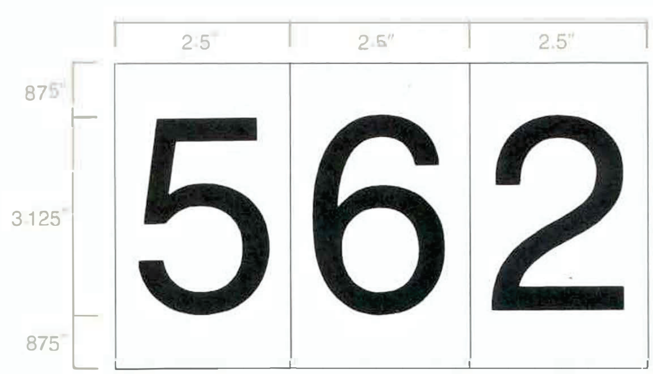
Legend Group 4: Standard safety record captions as shown.
Color: Black
Typeface: 1.25" Helvetica Regular

Replaceable numbers are to be mounted on white .060 aluminum plates and screw-mounted to background.
Color: Black
Typeface: 3" Helvetica Regular
Plate size: 2.5" x .5"

All typography is flush left and rag right, upper and lower case with initial capitals only as shown. Letter- and word-spacing to follow Corps standards as specified in Appendix D.



Sign Type	Legend Size	Panel Size	Post Size	Specification Code	Mounting Height	Color Bkg/Lgd
CID-02	various	4" x 4"	4" x 4"	HDO-3	48"	WH/BK-GR



All Construction Project Identification signs and Safety Performance signs are to be fabricated and installed as described below. The signs are to be erected at a location designated by the contracting officer and shall conform to the size, format, and typographic standards shown on pages 16.2-3. Detailed specifications for HDO plywood panel preparation are provided in Appendix B.

Shown below the mounting diagram is a panel layout grid with spaces provided for project information. Photocopy this page and use as a worksheet when preparing sign legend orders.

For additional information on the proper method to prepare sign panel graphics, contact the District sign coordinator.

The sign panels are to be fabricated from .75″ High Density Overlay Plywood. Panel preparation to follow HDO specifications provided in Appendix B.

Sign graphics to be prepared on a white non-reflective vinyl film with positionable adhesive backing.

All graphics except for the Communications Red background with Corps signature on the project sign are to be die-cut or computer-cut non-reflective vinyl, pre-spaced legends prepared in the sizes and typefaces specified and applied to the background panel following the graphic formats shown on pages 16.2-3.

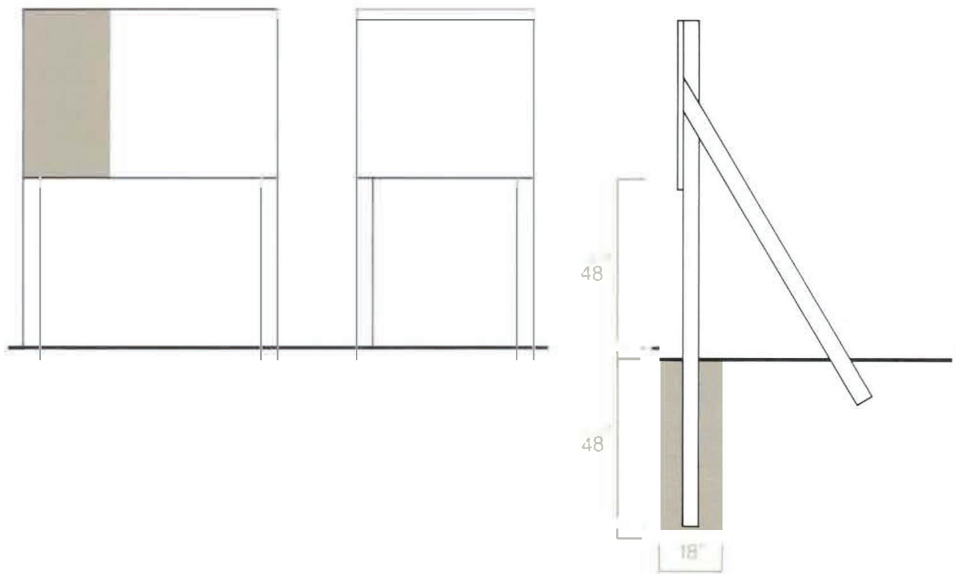
The 2′ x 4′ Communications Red panel (to match PMS-032) with full Corps signature (reverse version) is to be screen printed on the white background. Identification of the District or Division may be applied under the signature with white cut vinyl letters prepared to Corps standards. Large scale reproduction artwork for the signature is provided on page 4.8 (photographically enlarge from 6.875″ to 10.5″).

Drill and insert six (6) .375″ T-nuts from the front face of the HDO sign panel. Position holes as shown. Flange of T-nut to be flush with sign face.

Apply graphic panel to prepared HDO plywood panel following manufacturers' instructions.

Sign uprights to be structural grade 4″ x 4″ treated Douglas Fir or Southern Yellow Pine, No.1 or better. Post to be 12′ long. Drill six (6) .375″ mounting holes in uprights to align with T-nuts in sign panel. Countersink (.5″) back of hole to accept socket head cap screw (4″ x .375″).

Assemble sign panel and uprights. Imbed assembled sign panel and uprights in 4′ hole. Local soil conditions and/or wind loading may require bolting additional 2″ x 4″ struts on inside face of uprights to reinforce installation as shown.



Construction Project Sign
Legend Group 1: Corps Relationship

1.
2.

Legend Group 2: Division/District Name

1.
2.

Legend Group 3: Project Title

1.
2.
3.

Legend Group 4: Facility Name

1.
2.

Legend Group 5a: Contractor/A&E

1.
2.
3.
4.
5.

Legend Group 5b: Contractor/A&E

1.
2.
3.
4.
5.

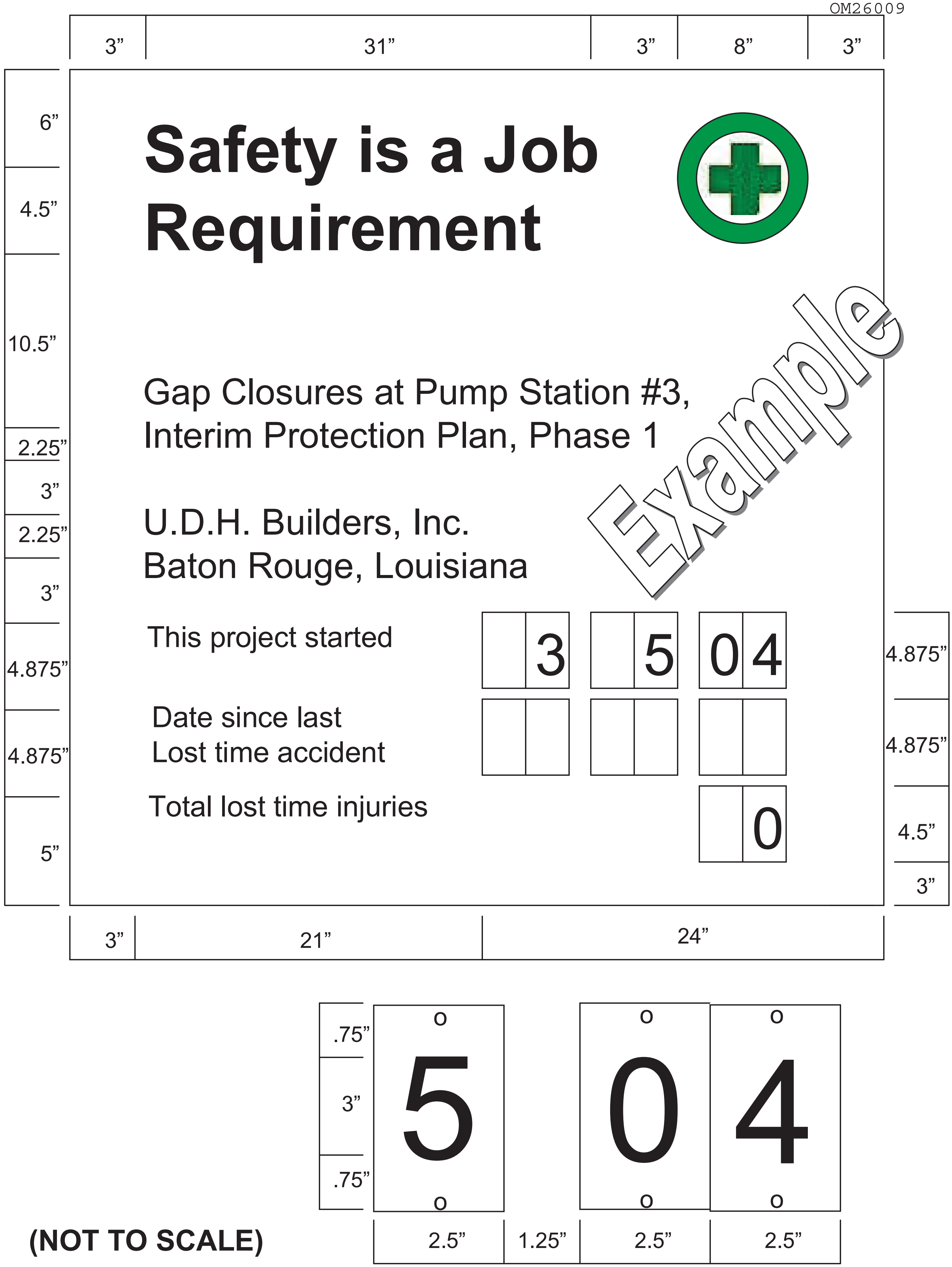
Safety Performance Sign
Legend Group 1: Project Title

1.
2.

Legend Group 2: Contractor/A&E

1.
2.


Design and Construction
Supervised by:
US Army Corps
of Engineers
New Orleans District
U.S. ARMY
7.875"
Replacement of
North Spillway
Gates
Vertically center the featured text group for the project location (below), depending on the number of text lines in the above project title.
Lock and Dam 12
Mississippi River
Contractor:
Oscar Construction Co.
Kansas City, Missouri
Consulting Engineer:
Wilmington, Rotheau, and
Eddings Engineering, Inc.
Chicago, Illinois
3"
21"
3"
42"
3"
3"
9"
10.5"
2.5"
6"
10.5"
6.5"
1.25"
.625"
1.25"
1.25"
1.25"
3"
1.5"
3"
1.5"
3"
12" (varies)
1.5"
.75"
1.5"
24" (varies)
1.25"
.625"
(etc.)
9"
2.25"
x
x
21"
1"
21"
2"


3”
31”
3”
8”
3”
6”
4.5”
10.5”
2.25”
3”
2.25”
3”
4.875”
4.875”
5”
Safety is a Job Requirement
Gap Closures at Pump Station #3,
Interim Protection Plan, Phase 1
U.D.H. Builders, Inc.
Baton Rouge, Louisiana
Example
This project started
3
5
04
Date since last
Lost time accident
Total lost time injuries
0
4.875”
4.875”
4.5”
3”
3”
21”
24”
.75”
3”
.75”
5
0
4
2.5”
1.25”
2.5”
2.5”

(NOT TO SCALE)

SECTION TABLE OF CONTENTS

DIVISION 01 - GENERAL REQUIREMENTS

SECTION 01 45 00.15 10

RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE (RMS CM)

-- End of Section Table of Contents --

SECTION 01 45 00.15 10

RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE (RMS CM)

PART 1 GENERAL

1.1 MEASUREMENT AND PAYMENT

No separate measurement or payment will be made for providing and maintaining a Resident Management System as described herein. All costs for the work covered under this section shall be distributed throughout the existing bid items.

1.2 CONTRACT ADMINISTRATION

The Government will use the Resident Management System (RMS) to assist in its monitoring and administration of this contract. The Government accesses the system using the Government Mode of RMS (RMS GM) and the Contractor accesses the system using the Contractor Mode (RMS CM). The term RMS will be used in the remainder of this section for both RMS GM and RMS CM. The joint Government-Contractor use of RMS facilitates electronic exchange of information and overall management of the contract. The Contractor shall access RMS to record, maintain, input, track, and electronically share information with the Government throughout the contract duration in the following areas:

Administration
Finances
Quality Control
Submittal Monitoring
Scheduling
Closeout
Import/Export of Data

The Government is working on transitioning from RMS to the new Construction Management Platform (CMP). The Contractor must be prepared to transition from the RMS to the CMP at any time throughout the contract duration. The Contractor's obligation to transition from the RMS to the CMP is a requirement of this contract. Therefore, there will be no additional time or increase in contract cost to complete this transition. In the event of the transition during the contract duration, RMS project information will be migrated to CMP by the Government and available in the CMP. After the transition, the Contractor must utilize the CMP to perform all contract administration functions previously required in RMS. After the transition, "RMS" and "CMP" will be synonymous for all "Resident Management System" and "RMS" references throughout the contract. Online training for the CMP will be made available to the Contractor.

1.2.1 Correspondence and Electronic Communications

For ease and speed of communications, the Contractor shall exchange correspondence and other documents in electronic format to the maximum extent feasible. Some correspondence, including pay requests and payrolls, are also to be provided in paper format with original signatures. Paper documents will govern, in the event of discrepancy with the electronic version.

1.2.2 Other Factors

Other portions of this document have a direct relationship to the reporting accomplished through RMS. Particular attention is directed to Contract Clause 52.236-15 "Schedules for Construction Contracts"; Contract Clause 52.232-27 "Prompt Payment for Construction Contracts"; Contract Clause 52.232-5 "Payments Under Fixed-Price Construction Contracts"; Section 01 33 00 SUBMITTAL PROCEDURES; and Section 01 35 26 GOVERNMENTAL SAFETY REQUIREMENTS.

1.3 RMS SOFTWARE

RMS is a web-based application. The Contractor shall download, install, and be able to utilize the latest version of the RMS software within 7 calendar days of issuance of the Notice to Proceed. RMS software, system requirements, user manuals, access and installation instructions, program updates, and training information are available from the RMS website (http://rms.usace.army.mil). The Government and the Contractor will have different access authorities to the same contract database through RMS. The common database will be updated automatically each time a user finalizes an entry or change.

1.4 CONTRACT DATABASE - GOVERNMENT

The Government will enter the basic contract award data in RMS prior to granting the Contractor access. The Government entries into RMS will generally be related to submittal reviews, correspondence status, and Quality Assurance (QA) comments, as well as other miscellaneous administrative information.

1.5 CONTRACT DATABASE - CONTRACTOR

Contractor entries into RMS establish, maintain, and update data throughout the duration of the contract. Contractor entries generally include prime and subcontractor information, daily reports, submittals, RFI's, schedule updates, and payment requests. RMS includes the ability to import attachments and export reports in many of the modules, including submittals. The contractor responsibilities for entries in RMS typically include the following items:

1.5.1 Administration

1.5.1.1 Contractor Information

The Contractor shall enter all current Contractor administrative data and information into RMS within 7 calendar days of receiving access to the contract in RMS. This includes, but is not limited to, Contractor's name, address, telephone numbers, management staff, and other required items.

1.5.1.2 Subcontractor Information

The Contractor shall enter all missing subcontractor administrative data and information into RMS CM within 7 calendar days of receiving access to the contract in RMS or within 7 calendar days of the signing of the subcontractor agreement for agreements signed at a later date. This includes name, trade, address, phone numbers, and other required information for all subcontractors. A subcontractor is listed separately for each trade to be performed.

1.5.1.3 Correspondence

The Contractor shall identify all Contractor correspondence to the Government with a serial number. The Contractor shall prefix correspondence initiated by the Contractor's site office with "S" and shall prefix letters initiated by the Contractor's home (main) office with "H". Letters shall be numbered starting from 0001 (e.g., H-0001 or S-0001). The Government's letters to the Contractor will be prefixed with "C" or "RFP".

1.5.1.4 Equipment

The Contractor shall enter and maintain a current list of equipment planned for use or being used on the jobsite, including the most recent and planned equipment inspection dates.

1.5.1.5 Reports

The Contractor shall track the status of the project utilizing the reports available in RMS. The value of these reports is reflective of the quality of the data input. These reports include the Progress Payment Request worksheet, Quality Control (QC) comments, Submittal Register Status, and Three-Phase Control worksheets.

1.5.1.6 Request For Information (RFI)

The Contractor shall create and track all Requests For Information (RFI) in the RMS Administration Module for Government review and response.

1.5.2 Finances

1.5.2.1 Pay Activity Data

The Contractor shall develop and enter a list of pay activities. The sum of pay activities equals the total contract amount, including modifications. Each pay activity must be assigned to a Contract Line Item Number (CLIN). The sum of the activities assigned to a CLIN equals the amount of each CLIN.

1.5.2.2 Payment Requests

The Contractor shall prepare all progress payment requests using RMS and shall update the work completed under the contract at least monthly, measured as percent or as specific quantities. After the update, the Contractor shall generate a payment request and prompt payment certification using RMS. The Contractor shall submit the signed prompt payment certification and payment request as well as supporting data either electronically or by hard copy. Unless waived by the Contracting Officer, a signed paper copy of the approved payment certification and request is also required and will govern in the event of discrepancy with the electronic version.

1.5.3 Quality Control (QC)

The contractor shall identify in his/her Contractor Quality Control Plan persons assigned as CQC System Manager and Alternate CQC System Manager. These individuals, within the onsite work organization, shall be responsible for overall management of CQC and have the authority to act in all CQC matters for the contractor. The CQC System Manager shall be a construction person with a minimum of 3 years (full time) experience in related equivalent work. This CQC System Manager shall be on the site at all times during construction and shall be employed by the prime contractor. The CQC System Manager may not have any other duties than quality control. When the alternate for the CQC System Manager is activated, he shall also have no other duties other than quality control.

1.5.3.1 Quality Control (QC) Reports

The Contractor's Quality Control (QC) Daily Report in RMS is the official report. The Contractor can use other supplemental formats to record QC data, but information from any supplemental formats are to be consolidated and entered into the RMS QC Daily Report. Any supplemental information may be entered into RMS as an attachment to the report. QC Daily Reports must be finalized and signed in RMS within 24 hours after the date covered by the report. The Contractor shall provide the Government a printed signed copy of the QC Daily Report, unless waived by the Contracting Officer.

1.5.3.2 Deficiency Tracking

The Contractor shall use the QC Daily Report Module to enter and track deficiencies. Deficiencies identified and entered into RMS by the Contractor or the Government will be sequentially numbered with a QC or QA prefix for tracking purposes. The Contractor shall enter each deficiency into RMS the same day that the deficiency is identified and shall monitor, track, and resolve all QC and QA entered deficiencies. A deficiency is not considered to be corrected until the Government indicates concurrence in RMS.

1.5.3.3 Three-Phase Control Meetings

The Contractor shall maintain scheduled and actual dates and times of preparatory and initial control meetings in RMS. Worksheets for the three-phase control meetings are generated within RMS.

1.5.3.4 Labor and Equipment Hours

The Contractor shall enter labor and equipment exposure hours on a daily basis and shall roll up the labor and equipment exposure data into a monthly exposure report.

1.5.3.5 Accident/Safety Reporting

Both the Contractor and the Government enter safety related comments in RMS as a deficiency. The Contractor shall monitor, track, and show resolution for safety issues in the QC Daily Report area of the RMS QC Module. In addition, the Contractor shall follow all reporting requirements for accidents and incidents as required in EM 385-1-1, Section 01 35 26 GOVERNMENTAL SAFETY REQUIREMENTS, and as required by any other applicable Federal, State or local agencies.

1.5.3.6 Definable Features of Work

The Contractor shall enter each feature of work into the RMS QC Module. A feature of work may be associated with a single or multiple pay activities; however, a pay activity is only to be linked to a single feature of work.

1.5.3.7 Activity Hazard Analysis

The Contractor shall import activity hazard analysis electronic document files into the RMS QC Module utilizing the document package manager.

1.5.4 Submittal Management

The Contractor shall enter all current submittal register data and information into RMS within 7 calendar days of receiving access to the contract in RMS. The information shown on the submittal register in Section 01 33 00 SUBMITTAL PROCEDURES will already be entered into the RMS database when access is granted. The Contractor shall group electronic submittal documents into transmittal packages to send to the Government, except very large electronic files, samples, spare parts, mock ups, color boards, or where hard copies are specifically required. The Contractor shall track transmittals and update the submittal register in RMS on a daily basis throughout the duration of the contract. The Contractor shall submit hard copies of all submittals unless waived by the Contracting Officer.

1.5.5 Schedule

The Contractor shall enter and update the contract project schedule in RMS by either manually entering all schedule data or by importing the Standard Data Exchange Format (SDEF) file.

1.5.6 Closeout

Closeout documents, processes and forms are managed and tracked in RMS by both the Contractor and the Government. The Contractor shall ensure that all closeout documents are entered, completed, and documented within RMS.

1.6 IMPLEMENTATION

Use of RMS as described in the preceding paragraphs is mandatory. The Contractor shall ensure that sufficient resources are available to maintain contract data within the RMS system. RMS is an integral part of the Contractor's required management of quality control.

1.7 NOTIFICATION OF NONCOMPLIANCE

The Contractor shall take corrective action within 7 calendar days after receipt of notice of RMS non-compliance by the Contracting Officer.

PART 2 PRODUCTS (Not Used)

PART 3 EXECUTION (Not Used)

-- End of Section --

SECTION TABLE OF CONTENTS

DIVISION 01 - GENERAL REQUIREMENTS

SECTION 01 57 20.00 10

ENVIRONMENTAL PROTECTION

-- End of Section Table of Contents --

SECTION 01 57 20.00 10

ENVIRONMENTAL PROTECTION

PART 1 GENERAL

1.1 SCOPE

The work covered by this section consists of furnishing all labor, materials, equipment and performing all work required for protection of fish and wildlife resources and for the prevention of environmental pollution during and as a result of dredging operations and related activities, except for those measures set forth in other technical portions of the specifications.

1.2 DEFINITIONS

1.2.1 Environmental Pollution and Damage

Environmental pollution and damage is the presence of chemical, physical, or biological elements or agents which adversely affect human health or welfare; unfavorably alter ecological balances of importance to human life; affect other species of importance to humankind; or degrade the environment aesthetically, culturally and/or historically.

1.2.2 Environmental Protection

Environmental protection is the prevention/control of pollution and habitat disruption that may occur to the environment during construction. The control of environmental pollution and damage requires consideration of land, water, and air; biological and cultural resources; and includes management of visual aesthetics; noise; solid, chemical, gaseous and liquid waste; radiant energy and radioactive material as well as other pollutants.

1.2.3 Protection of Fish and Wildlife

a. monitoring and keeping under control construction activities to minimize interference with, disturbance to and damage of fish and wildlife; and

b. providing sea turtle monitoring/protection equipment and observers (if required).

1.3 GENERAL REQUIREMENTS

Minimize environmental pollution and damage that may occur as the result of construction operations. The environmental resources within the project boundaries and those affected outside the limits of permanent work must be protected during the entire duration of this contract. Comply with all applicable environmental Federal, State and local laws and regulations. Any delays resulting from failure to comply with environmental laws and regulations will be the Contractor's responsibility.

1.4 SUBCONTRACTORS

The Contractor shall be responsible for ensuring that all subcontractors comply with these environmental clauses.

1.5 MEASUREMENT AND PAYMENT

If the Contractor is assigned to a Secondary Dredging Region, Option Item "NMFS-Approved Protected Species Observers", Option Item "Sea Turtle and Sturgeon Trawling and Relocation", and Option Item "Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation" may be exercised.

1.5.1 Environmental Protection and Sea Turtle Monitoring/Protection Equipment

No separate measurement or payment will be made for environmental protection and sea turtle monitoring/protection equipment. All costs for environmental protection requirements and sea turtle monitoring/protection equipment shall be included in the contract unit price per hour in the "Dredging" and "Option Dredging". The sea turtle monitoring/protection equipment is considered to be part of the dredge plant and the cost for such items shall be distributed accordingly.

1.5.2 Option Item: NMFS-Approved Protected Species Observers

A NMFS-Approved Protected Species Observer shall be on the dredge at all times while it's working. NMFS-Approved Protected Species Observers will be measured by the day. A day is defined as a 24-hour period beginning at 0000 hours and ending at 2400 hours of continuous observation. If the dredge is down due to delays caused by others or weather, the Contractor will be given up to 48 hours of Protected Species Observer days per occurrence. All costs for NMFS-Approved Protected Species Observers (including the observers, accommodations and meals for the observers, transportation of injured sea turtles and transportation of the observers, etc) shall be included in the contract unit price per day in the "NMFS-Approved Protected Species Observers" option item on the bidding schedule. Price and payment shall constitute full compensation for "NMFS-Approved Protected Species Observers".

1.5.3 Option Item: Sea Turtle and Sturgeon Trawling and Relocation

Sea turtle and sturgeon trawling and relocation will be measured by the day. A day is defined as a 24-hour period beginning at 0000 hours and ending at 2400 hours of continuous trawling and relocation. If the dredge is down due to delays caused by others or weather, the Contractor will be given up to 48 hours of Sea Turtle and Sturgeon Trawling and Relocation days per occurrence. All costs for sea turtle and sturgeon trawling and relocation (including all costs for furnishing labor, equipment, fuel, oil, materials, supplies, etc) shall be included in the contract unit price per day in the "Sea Turtle and Sturgeon Trawling and Relocation" option item on the bidding schedule. Price and payment shall constitute full compensation for "Sea Turtle and Sturgeon Trawling and Relocation".

Sea turtle and sturgeon trawling and relocation shall be performed as described in the paragraph entitled "Sea Turtle and Sturgeon Trawling and Relocation". No payment will be made for sea turtle and sturgeon trawling and relocation when the trawler's net tears, when trawling equipment breakdown is such that the trawler cannot operate as required, or when the trawler cannot operate due to weather. Payment will resume when trawling operations recommence.

1.5.4 Option Item: Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation

All costs for mobilization and demobilization of sea turtle and sturgeon trawling and relocation (including all costs for furnishing labor, equipment, fuel, oil, materials, supplies, etc) shall be included in the contract job price in the "Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation" option item on the bidding schedule. Price and payment shall constitute full compensation for "Mobilization and Demobilization of Sea Turtle and Sturgeon Trawling and Relocation".

1.6 REPORTS

1.6.1 Implementation and Reporting

Within 120 hours after receiving Notice to Proceed, the Contractor shall submit, in writing, proposals for environmental pollution control, disposal of debris and trash, and an Environmental Protection Plan.

When directed by the Contracting Officer to a Secondary Dredging Region, the Contractor shall re-submit the protected species portion of the Environmental Protection Plan applicable to that region.

1.6.2 Reporting of Pollution Spills (33 CFR 153.203)

If an oil spill or chemical release occurs during the performance of this contract, the Contractor shall contact the National Response Center at 1-800-424-8802, as soon as possible. If telephone communications are not possible, the nearest US Coast Guard office may be contacted by radio to report the spill. The Contractor shall comply with the instructions from the responding agency concerning containment and cleanup of the spill, and shall provide the Contracting Officer with a complete written report of the incident.

1.6.3 Trawling Report

Immediately after completing each day of relocation trawling, the Contractor shall notify the environmental point of contact, for the particular District the work is being performed, to convey the results of the trawl. The environmental point of contacts are listed in paragraph entitled "Sea Turtle Sightings". The results of each trawl shall be recorded on the Sea Turtle Trawling Report appended to the end of this section. In addition to the reporting requirements listed in Section 35 20 23.23, paragraph entitled "NMFS-Approved Protected Species Observer Reports", the Sea Turtle Trawling Report shall be furnished by the Contractor to the environmental point of contact for the particular District the work is being performed. Following completion of the project, a copy of the Contractor's log regarding sea turtles shall be forwarded to the environmental point of contact for the particular District the work is being performed and the Administrative Contracting Officer within ten working days.

1.7 ENVIRONMENTAL PROTECTION PLAN

The Contractor shall establish and maintain a plan for environmental protection, to assure compliance with contract specifications. The Contractor shall also maintain records of environmental protection for all dredging operations, including but not limited to the following:

a. Environmental pollution control plan;

b. Applicable Federal, State, and Local pollution control regulations;

c. Air Pollution - dust, smoke, noise, etc.;

d. Water Pollution - disposal of water, oil, etc.;

e. Land Pollution - debris disposal, restoration of temporary construction sites, etc.;

f. Training course for employees;

g. Environmental Protection Plan - protected species requirements, etc;

h. Corrective actions taken; and

i. Environmental Protection - Fish and Wildlife.

1.8 APPLICABLE REGULATIONS

In order to prevent, and to provide for abatement and control of any environmental pollution arising from construction activities in the performance of this contract, the Contractor and his/her subcontractors shall comply with all applicable Federal, State and Local laws, and regulations concerning environmental pollution control and abatement.

1.9 ENVIRONMENTAL ASSESSMENT OF CONTRACT DEVIATIONS

See Section 01 30 00, paragraph entitled "Rights-of-Way", for a deviation from the Government furnished drawings, plates or specifications (e.g., proposed borrow, disposal areas, staging areas, alternate access route, etc.).

1.10 NOTIFICATION OF NONCOMPLIANCE

The Contracting Officer will notify the Contractor, in writing, of any noncompliance with the environmental clauses and the corrective action to be taken. Such notice, when delivered to the Contractor or the Contractor's authorized representative at the site of work, shall be deemed sufficient for this purpose. If the Contractor fails or refuses to comply promptly, the Contracting Officer may issue an order stopping all or part of the work, until satisfactory corrective action has been taken. No part of time lost due to such a stop order shall be made the subject of a claim for time extensions or for excess costs or damages by the Contractor.

PART 2 PRODUCTS (Not Used)

PART 3 EXECUTION

3.1 JANITOR SERVICES

The Contractor shall furnish daily janitorial services for the dredge and attendant plant during the entire life of the contract. The bathroom facilities shall be kept clean and sanitary at all times. Facilities for the storage, preparation and serving of food will likewise be kept clean and sanitary. Services shall be performed at such a time and in such a manner to least interfere with operations and need only be accomplished when the facilities are in daily use.

3.2 DISCOVERY OF ARCHAEOLOGICAL REMAINS AND ARTIFACTS

3.2.1 Discovery of Archaeological Remains and Artifacts

If during the course of work, terrestrial and/or submerged resources (e.g., shipwrecks), archaeological artifacts (prehistoric or historic), unmarked graves, burials, human remains, or items of cultural patrimony are discovered, all work must stop immediately within a 350 ft radius buffer zone around the point of discovery unless there is reason to believe that the area of the discovery may extend beyond in which case the buffer zone will be expanded appropriately. The Contractor shall take all reasonable measures to avoid or minimize harm to the finds. Upon discovery, the Contractor shall inform the Government Inspector and Contracting Officer's Representative. The Contractor shall not proceed with work in the buffer zone until CEMVN Historic Preservation (HP) staff completes consultation with the State Historic Preservation Offices (SHPO), unless notified otherwise by the Government.

3.2.2 Louisiana Unmarked Human Burial Sites Preservation Act

Should the Government, Contractor, or Subcontractor encounter (or who knows or has reason to know that they have inadvertently) discovered unmarked graves (which may include shipwrecks), human remains, burials, funerary objects, sacred objects, or objects of cultural patrimony, all work must stop immediately within a 350 ft radius buffer zone around the point of discovery unless there is reason to believe that the area of the discovery may extend beyond in which case the buffer zone will be expanded appropriately. Discovery of remains and artifacts described herein requires action by both the Contractor and CEMVN to comply with the Louisiana Unmarked Human Burial Sites Preservation Act (R.S. 8:671 et seq.), Native American Graves Protection and Repatriation Act (25 U.S.C. §3001-3013, 18 U.S.C. § 1170), and the Archaeological Resources Protection Act of 1979 (16 U.S.C. §470aa - 470mm).

(1) The Contractor shall notify the law enforcement agency of the jurisdiction where the remains are located within 24 hours of the discovery.

(2) The Contractor shall provide telephone notification of the inadvertent discovery within 24 hours, with written confirmation, to the Louisiana Division of Archaeology, Government Inspector, and Contracting Officer's Representative.

(3) The Contractor shall not proceed with work in the buffer zone until CEMVN HP completes consultation with the SHPO, Tribe(s), and other parties that may have an interest in the discovery.

(4) The Government will implement measures to protect the discovery from theft and vandalism. Any human remains or other items in the immediate vicinity of the discovery must not be removed or otherwise disturbed. The Government will take immediate steps, if necessary, to further secure and protect inadvertently discovered human remains, burials, funerary objects, sacred objects, or objects of cultural patrimony, as appropriate, including stabilization, or covering the find location.

3.3 PROTECTION OF WATER RESOURCES

3.3.1 Contamination of Water

The Contractor shall not pollute any body of water with fuels, oils, bitumens, calcium chlorides, herbicides, insecticides, other materials harmful to fish, shellfish, or wildlife or with materials that may be a detriment to outdoor recreation. The redistribution or reinjection of pollutants pre-existing in dredged material or river water will not be considered as pollution caused by the Contractor.

3.3.2 Water Quality Monitoring

The Contractor shall assist the Government, using available on site plant and manpower, in monitoring the water quality aspects of the dredging and disposal operations.

3.4 DISPOSAL OF MATERIALS

a. The Contractor shall provide daily trash collection and cleanup of the dredge and attendant plant.

b. Disposal locations for waste materials, effluents, trash, garbage, oil, grease, chemicals, etc., shall be such that harmful debris will not enter the waterway adjacent wetlands, or the disposal areas; prevent the use of the area for recreation; or present a hazard to wildlife. Debris disposal shall be in accordance with applicable Federal, State and Local regulations and shall be performed in a manner approved by the Contracting Officer.

3.5 MAINTENANCE OF POLLUTION CONTROL FACILITIES

During the life of this contract, the Contractor shall maintain all facilities constructed for pollution control for as long as the operations creating the particular pollutant are being carried out, or until the material concerned has become stabilized to the extent that pollution is no longer being created. Early in the contract period the Contractor shall conduct a training course that will emphasize all phases of environmental protection. This course shall involve all Contractor personnel working on the contract. The Contractor shall notify the Contracting Officer of the scheduled time for this course so that the Contracting Officer's representative can attend.

3.6 PROTECTION OF FISH AND WILDLIFE

The Contractor shall keep construction activities under surveillance, management, and control to minimize interference with, disturbance to, and damage of fish and wildlife. Species that require specific attention, along with measures for their protection, shall be listed in the Contractor's Environmental Protection Plan. Species including, but not limited to the following sea turtle species: the kemp's ridley (Lepidochelys kempii), loggerhead (Caretta caretta), green sea turtle (Chelonia mydas) and the West Indian manatee shall be listed in the Contractor's Environmental Protection Plan. The submitted Environmental Protection Plan must be approved by the Contracting Officer prior to the start of construction activities.

3.6.1 Pump Operation

To minimize the potential of intercepting fish and wildlife, every effort shall be made to minimize pump operation while the dragheads are suspended in the water column including but not limited to the following:

a. When initiating dredging, suction through the dragheads shall be allowed just long enough to prime the pumps, then the dragheads must be placed firmly on the bottom.

b. When lifting the dragheads from the bottom, suction through the dragheads shall be allowed just long enough to clear the lines, then must cease.

c. Pumping water through the dragheads shall cease while maneuvering or during travel to/from the disposal area.

d. Raising the dragheads off the bottom to increase suction velocities is not acceptable. The primary adjustment for providing additional mixing water to the suction line shall be through water intake ports on top of the draghead. When dredging in regions which require equipment as described in paragraph entitled "Additional Sea Turtle Requirements", the act of placing a draghead on the bottom is a primary cause of sea turtle takes because it causes the sea turtle to be trapped directly beneath the draghead. The primary adjustment for providing additional mixing water to the suction line shall be through water intake ports on top of the draghead as described in Section 35 20 23.23, paragraph entitled "Dredge Plant", subparagraph f.

e. During turning operations the pumps must either be shut off or reduced in speed to the point where no suction velocity or vacuum exists.

3.7 ENDANGERED SPECIES PROTECTION

3.7.1 Sea Turtle Considerations

a. The Contractor shall instruct all Contractor personnel associated with the project of the potential presence of sea turtles and the need to avoid contact with these animals. All Contractor personnel shall be advised that there are civil and criminal penalties for harming, harassing or killing sea turtles, which are protected under the Endangered Species Act of 1973.

b. The Contractor shall be held responsible for any sea turtle harmed, harassed or killed as a result of construction activities not conducted in accordance with these specifications.

c. Prior to the commencement of dredging and throughout the dredging operations, the Government Inspector will inspect specific sea turtle requirements. The list of inspections that the Government Inspector will perform is on a sea turtle inspection checklist as described in the paragraph entitled "USACE Sea Turtle Inspection Checklist for Hopper Dredges" attached at the end of this section. Any deficiencies found by the Government Inspector will be handled as described in the paragraph entitled "Notification of Noncompliance".

3.7.2 Manatee Considerations

The West Indian manatee may be present in the project vicinity. The Contractor shall instruct all personnel associated with the project of the potential presence of manatees in the area and the need to avoid collisions with these animals. All construction personnel shall be advised that there are civil and criminal penalties for harming, harassing or killing manatees. Manatees are protected under the Marine Mammal Protection Act of 1972, and the Endangered Species Act of 1973. The Contractor shall be held responsible for any manatee harmed, harassed or killed as a result of construction activities not conducted in accordance with these specifications.

Manatee Signs. Prior to commencement of construction, each vessel involved in construction activities shall display at the vessel control station or in a prominent location, visible to all employees operating the vessel, a temporary sign at least 8.5-inch by 11-inch reading, "CAUTION: MANATEE HABITAT/IDLE SPEED IS REQUIRED IN CONSTRUCTION AREA." In the absence of a vessel, a temporary three foot by four foot sign reading "CAUTION: MANATEE AREA" shall be posted adjacent to the issued construction permit. A second temporary sign measuring 8.5-inch by 11-inch reading "CAUTION: MANATEE HABITAT. EQUIPMENT MUST BE SHUTDOWN IMMEDIATELY IF A MANATEE COMES WITHIN 50 FEET OF OPERATION" shall be posted at the dredge operator control station and at a location prominently adjacent to the issued construction permit. The Contractor shall remove the signs upon completion of construction.

a. Special operating conditions <u>if manatees are present</u> in the project area.

(1) If a manatee(s) is sighted within 100 yards of the project area, all appropriate precautions shall be implemented by the Contractor to ensure protection of the manatee. These precautions shall include the operation of all moving equipment no closer than 50 feet of a manatee. If a manatee is closer than 50 feet to moving equipment or the project area, the equipment shall be shut down and all construction activities shall cease to ensure protection of the manatee. Construction activities shall not resume until the manatee has departed and the 50-foot buffer has been reestablished.

(2) If a manatee(s) is sighted in the project area, all vessels associated with the project shall operate at "no wake/idle" speeds at all times, and vessels will follow routes of deep water whenever possible, until the manatee has departed the project area. Boats used to transport personnel shall be shallow-draft vessels, preferably of the light-displacement category, where navigational safety permits.

(3) If siltation barriers are used, they will be made of material in which manatees cannot become entangled, are properly secured, and are regularly monitored to avoid manatee entrapment.

b. Manatee Sighting Reports. Any sightings of manatees or collisions with a manatee shall be immediately reported to the Corps of Engineers. The points of contact within the Corps of Engineers will be the Administrative Contracting Officer and Mr. Jeff Corbino, PHONE (504) 862-1958, EMAIL: Jeffrey.M.Corbino@usace.army.mil.

3.8 SEA TURTLE SIGHTINGS

a. As a result of consultation under Section 7 of the Endangered Species Act of 1973, as amended, the U.S. Army Corps of Engineers has agreed to report any sea turtle activity to the NMFS. This reporting requirement is extended to contractors working for the U.S. Army Corps of Engineers. The Contractor shall notify the environmental personnel (point of contact), listed below for the particular District the work is being performed in of any sightings, collisions with, injuries or killing of sea turtles by telephone within 12 hours of the action. The notification should include the number and species of sea turtles (if known) impacted and the time the activity occurred.

New Orleans District
Mr. Jeff Corbino
Phone: 504-862-1958
Email: Jeffrey.M.Corbino@usace.army.mil

Galveston District
Ms. Lisa Finn
Phone: 409-766-3949
Email: Lisa.M.Finn@usace.army.mil

Mobile District
Ms. Angelia Lewis
Phone: (251) 694-4105
Email: Angelia.V.Lewis@usace.army.mil

b. If the Contractor's personnel observe any sea turtles in the vicinity of the work site, such sightings shall be promptly reported to the Government Inspector/Contracting Officer's Representative and to the NMFS-Approved Protected Species Observers, if observers are onboard the dredge. Partial List of NMFS-Approved Protected Species Observers is located in the paragraph entitled "Partial List of NMFS-Approved Protected Species Observers". If known, then the species of sea turtle should be reported as well. Sea turtle identification pamphlets shall be kept on the bridge of the dredge to aid in determining the species sighted.

3.9 ADDITIONAL SEA TURTLE REQUIREMENTS

3.9.1 NMFS-Approved Protected Species Observer Requirements

This paragraph applies only if Option Item "NMFS-Approved Protected Species Observers" is exercised and required.

a. Sea turtle requirements vary with location. See the table in the paragraph entitled "Primary and Secondary Dredging Regions: Sea Turtle Requirements Table" for locations where NMFS-Approved Protected Species Observers are required. For locations where Sea Turtle requirements are in effect and at the direction of the Contracting Officer, NMFS-Approved Protected Species Observers shall monitor the presence of sea turtles. A list of NMFS-Approved Protected Species Observer companies can be found at the NMFS website: https://www.fisheries.noaa.gov/new-england-mid-atlantic/careers-and-opportunities/protected-species-observer-trainers. A partial list is located in the paragraph entitled "Partial List of NMFS-Approved Protected Species Observers".

b. The observers shall be provided quarters and meals aboard the dredge at least equal to that of the dredge crew. The Contractor shall provide safety training for all observers working aboard the dredge. Observers will continuously monitor all of the hopper inflow and/or over flow screens, as required in the paragraph entitled "Sea Turtle Monitoring Equipment", 24 hours per day during dredging mode, to detect sea turtles or sea turtle parts. Screen monitoring shall be conducted as required to effectively watch these screens, based on the design, configuration and position thereof. The Contractor shall provide the observers cellular telephone 24 hours per day to ensure, in the event of a sea turtle take, the observers will be able to fulfill the requirements of the paragraph entitled "Sea Turtle Reporting".

c. The Contractor shall be responsible for assuring that:

(1) Any state or federal approvals necessary to conduct sea turtle monitoring as described in this contract are obtained.

(2) Any necessary state or federal clearances for the transportation of injured sea turtles to rehabilitation facilities are obtained.

(3) Temperatures in the waterway are recorded, in degrees Fahrenheit, at the water surface, every eight hours for the duration of each dredging assignment. The waterway mileage and latitude/longitude shall be recorded corresponding to each temperature reading.

(4) During transit of the dredge to or from the disposal site(s), the observers shall assure that the hopper screens are cleaned of debris and correctly re-installed on the dredge for return to dredging mode. Oservers shall report damage of the screens to the Contractor immediately upon detection of such damage and the screens shall be repaired or replaced before dredging is resumed.

(5) Complete sea turtle data reporting is made, as required in the paragraph entitled "Sea Turtle Reporting".

(6) Positively identified sea turtle parts are disposed of at the dredge material disposal site(s). All sea turtles, sturgeons, or portions thereof, recovered from the hopper screens or dragheads shall be photographed by the observers using a digital camera capable of recording images with a resolution of at least 300 dpi. Immediately following the incidental take of any protected species, digital photos of these takes shall be provided via e-mail, CD-ROM, or DVD-ROM to the Contracting Officer's Representative in a JPG or TIFF format. Digital photos of hopper dredge screens and dragheads shall be opportunistically taken to document the condition of sea turtle protection equipment. Digital photos of sea turtles, sturgeons, and sea turtle protection equipment shall be included or attached to the final project report to be provided to Mr. Jeff Corbino, US Army Corps of Engineers, New Orleans District, by the Contractor. The photos shall be attached to respective reports for documentation and later identification. Observers shall measure, weigh, tag, and release any uninjured sea turtles incidentally taken by the dredge. Sea turtle handling and tagging methods shall be performed in accordance with NMFS approved procedures. Injured sea turtles shall be transported to a rehabilitation facility such

as: Marineland at Marineland, Florida; Sea World at Orlando, Florida; or the Aquarium of the Americas at New Orleans, Louisiana. Observers or their authorized representative shall provide NMFS-approved containers for sea turtle transport.

(7) All live or dead sea turtles and sturgeons recovered in hopper screens and/or dragheads shall be tissue-sampled by the observers. Sea turtle tissue samples shall be taken in accordance with NMFS' Southeast Fisheries Science Center's procedures for sea turtle genetic analyses. Tissue sampling protocols can be found at the following USACE Jacksonville District website: https://www.fisheries.noaa.gov/national/endangered-species-conservation/atlantic-coast-sturgeon-tissue-research-repository. All sea turtle tissue samples shall be collected, properly stored, and mailed within 60 days of the completion of dredging work to:

NOAA, National Marine Fisheries Service
Southeast Fisheries Science Center
Attn: Lisa Belskis
75 Virginia Beach Drive
Miami, Florida 33149

Sturgeon tissue samples (i.e., fin clips or barbell clips) shall be taken in accordance with NMFS SERO's Protected Resources Division's Sturgeon Tissue Sampling Protocol found at the NMFS SERO PRD web site address: http://www.nefsc.noaa.gov/nefsc/publications/tm/tm215/tm215.pdf. All sturgeon tissue samples shall be collected, properly stored, and mailed within 60 days of the completion of dredging work to:

NOAA, National Marine Fisheries Service
Protected Resources Division
263 13th Avenue South
St. Petersburg, Florida 33701

d. The Contractor may choose to have the NMFS-Approved Protected Species Observers provide educational information to all dredge personnel on sea turtles.

3.9.2 Sea Turtle Reporting

For the Calcasieu River Bar Channel, the Contractor shall notify Mr. Jeff Corbino at Jeffrey.M.Corbino@usace.army.mil within 12 hours of a sea turtle sighting, collision, injury, or killing. The notification shall include the number, species of sea turtles impacted (if known), the time the activity occurred, and photographs of the impacted sea turtle (if available).

The remaining paragraphs apply if Option Item "NMFS-Approved Protected Species Observers" is exercised and required.

The NMFS-Approved Protected Species Observers shall maintain a log detailing all incidents, including sightings, collisions with, injuries, or killing of sea turtles occurring during the contract period. The results of the monitoring shall be recorded on copies of the observation sheets, entitled "Endangered Species Observer Program - Load Data Form", " Endangered Species Observer Program - Daily Report" and "Endangered Species Observer Program - Weekly Summary", attached at the end of this section or a similar form. For each load, screen watch data shall be consolidated on a single sheet prior to beginning a new sheet for the next load. An observation sheet shall be completed for each load whether or not sea turtles are sighted in the waterway or sea turtle parts are detected on the screens. Dredging shall not commence until the consolidated report is completed from the previous dredging load. If dredging is conducted at a location where NMFS-Approved Protected Species Observers are not required on the dredge, the Contractor shall notify the District point of contact listed in the paragraph entitled "Sea Turtle Sightings", of any sea turtle sightings or incidents. All consolidated and completed data reports shall be forwarded to the District point of contacts, and report copies shall be supplied to the Contracting Officer and Mr. Jeff Corbino (email: Jeffrey.M.Corbino@usace.army.mil) within 24 hours after completion of data reports. If dredging is conducted at a location where NMFS-Approved Protected Species Observers are required, the observers should notify the District point of contact of any sightings, collisions with, injuries or killing of sea turtles by telephone or email within 12 hours of the action. The notification should include the number and species of sea turtles impacted and the time the activity occurred.

Observer reports of protected species incidental takes must be emailed to NMFS' Southeast Regional Office (email: takereport.nmfsser@noaa.gov) within 24 hours of any sea turtle, sturgeon, or other protected species take. Examples of the incidental take forms entitled "Endangered Species Observer Program - Sturgeon Incidental Take Data Form", "Sea Turtle Incidental Data Form - Kemp's Ridley", "Sea Turtle Incidental Data Form - Loggerhead", "Sea Turtle Incidental Data Form - Green Sea Turtle" and "Marine Mammal Observation Data Form" are attached.

Depending on the number and/or species of sea turtles impacted in a single load or throughout the contract duration, the Contracting Officer or his/her representative may direct a temporary shut down of dredging while the District evaluates measures to reduce the likelihood of additional sea turtle takes.

3.10 SEA TURTLE MONITORING EQUIPMENT

a. Sea turtle requirements vary with location. See the table in the paragraph entitled "Primary and Secondary Dredging Regions: Sea Turtle Requirements Table" for locations where sea turtle monitoring equipment is required. For locations where Sea Turtle requirements are in effect or at the direction of the Contracting Officer, the dredge shall have either hopper in-flow screening correctly positioned or hopper overflow screening correctly installed if overflowing will occur. The method and location of screening selected shall depend on individual dredge design. The screens shall have openings no greater than four inch by four inch. If the Contracting Officer or his/her representative determines there is excessive screen clogging while dredging, the Government may direct the Contractor to increase the screen openings to six inch by six inch or larger. Therefore, the Contractor shall have screens on-board with screen openings of four inch by four inch, six inch by six inch and nine inch by nine inch. If the Contractor is directed to change the screen size but does not have the directed screen size on-board, the Contractor will be placed on 0% pay time hours until the directed screen size is in-place and dredged material starts flowing into the hopper. The screens shall sample 100 percent of the in flow or overflow, as applicable and shall remain installed for the period described at the beginning of this paragraph. The screen structure shall be designed to withstand all forces exerted on the screens during dredging operations. Screen design and operation shall be approved by the Contracting Officer's Representative prior to commencement of dredging. No dredging can proceed until screen design and operation is approved and in-place. Damaged screens shall be repaired by the Contractor before commencing dredging on the load subsequent to the time the damage is detected.

b. For locations where Sea Turtle requirements are in effect or at the direction of the Contracting Officer, the Contractor shall install and maintain floodlights, approved by the Contracting Officer, suitable for illumination of the screens to allow the observers to safely monitor the retained contents during non-daylight hours.

3.11 SEA TURTLE DEFLECTOR REQUIREMENTS

a. Sea turtle requirements vary with location. See paragraph entitled "Primary and Secondary Dredging Regions: Sea Turtle Requirements Table" for locations where sea turtle deflectors are required. For locations where Sea Turtle requirements are in effect or at the direction of the Contracting Officer, rigid sea turtle deflectors shall be in-place. No more than twelve hours after Government notice, the Contractor shall have rigid sea turtle deflectors installed and/or removed from the dredge dragheads, ready to return to dredging.

b. Refer to Section 35 20 23.23, paragraph entitled "Dredge Plant", for sea turtle deflector specifications.

3.12 SEA TURTLE AND STURGEON TRAWLING AND RELOCATION

This paragraph applies only if Option Item "Sea Turtle and Sturgeon Trawling and Relocation" is exercised and required.

3.12.1 Government Option

Sea turtle requirements vary with location. See the table in the paragraph entitled "Primary and Secondary Dredging Regions: Sea Turtle Requirements Table" for locations where sea turtle trawling and relocation is required. Sea Turtle and Sturgeon Trawling and Relocation, as specified herein, will be at the option and in the discretion of the Government to aid in preventing the taking of sea turtles during dredging operations with the approved sea turtle deflector in-place. Within 72 hours after receiving written directions from the Contracting Officer, the Contractor shall begin trawling for sea turtles to relocate them from the channel area. Relocation trawling shall be performed so as to not interfere with dredging operations in progress. If dredging operations cease for a period of 12 hours or more, relocation trawling shall be conducted for a minimum of 4 hours prior to resumption of dredging operations.

3.12.2 Suspension of Dredging and Relocation Trawling

Should there be a tearing of nets, or breakdown of other equipment that would cause the trawler to leave the area where dredging is underway during any period of time where relocation trawling is required, the dredge may continue to operate for up to 48 hours, as long as no sea turtles are taken, and subject to the discretion of the Contracting Officer. Should there be dangerously high seas that would cause the trawler to leave the dredging area when relocation trawling is required, the dredge may continue to operate, as long as no sea turtles are taken and subject to the discretion of the Contracting Officer.

3.12.3 Sea Turtle and Sturgeon Trawling Procedures

A NMFS-Approved Protected Species Observer shall be on the trawler at all times and conduct sea turtle and sturgeon trawling. Any captured sea turtles shall be relocated as directed by the NMFS-Approved Protected Species Observers a distance of five miles away west of the channel centerline. Any captured sturgeons shall be released immediately after capture and handling for measurements away from the dredging site or into already dredged areas. Methods and equipment shall be standardized including data sheets, nets, trawling direction to tide, length of station, length of tow, and number of tows per station. Data on each tow shall be recorded using the Sea Turtle Trawling Report appended to the end of this Section. The trawler shall be equipped with 60-foot nets constructed from eight inch mesh (stretch) fitted with mud rollers and flats as specified in the Turtle Trawl Nets Specifications appended to the end of this section. Paired net tows shall be made for 24 hours per day, as directed by the Contracting Officer or his/her authorized representative. The tows shall be performed in shifts, to be determined by the Contracting Officer or his/her authorized representative, and the trawler shall be available for operation 24 hours a day. Positions at the beginning and end of each tow shall be determined from GPS Positioning equipment. Refer to EM 1110-1-1003 "Navstar global positioning system surveying", paragraph 5.3 and Table 5-1, for acceptable GPS criteria.

3.12.4 Trawling Requirements

The Contractor shall be responsible for obtaining any and all permits related to trawling from the appropriate state and Federal agencies. All aspects of the trawling shall be coordinated with the U.S. Army Corps of Engineers, New Orleans Area Office, Administrative Contracting Officer.

Trawling operations shall be conducted in the vicinity of dredge operations, but shall maintain a safe distance from that dredge. NOTE: ALL TRAWLING ACTIVITIES, VESSELS AND EQUIPMENT SHALL COMPLY WITH THE CONTRACTOR'S ACCIDENT PREVENTION PLAN AND THE REQUIREMENTS OF THE U.S. ARMY CORPS OF ENGINEERS' EM 385-1-1, "SAFETY AND OCCUPATIONAL HEALTH REQUIREMENTS". Trawling shall be conducted with and against the tidal flow at a speed not to exceed 3.5 knots using repetitive trawls in the channel or other work area not to exceed 30-minutes (total time). Trawls shall be made in the center, green and red sides of the channel such that the total width of the channel bottom is trawled.

3.12.5 NMFS-Approved Protected Species Observers

Trawling shall be conducted under the supervision of a biologist approved by NMFS, which shall be located on the trawler at all times. A letter of approval from NMFS shall be provided to the Contracting Officer or his/her authorized representative prior to commencement of trawling. If trawling in Louisiana territorial waters outside of the shrimping season, the NMFS-Approved Protected Species Observers must also possess a Scientific Collecting Permit from the Louisiana Department of Wildlife and Fisheries (point of contact is Sarabeth Klueh-Mundy at 225-765-0239).

3.12.6 Sea Turtle Excluder Devices

Approval for trawling for sea turtles without Sea Turtle Excluder Devices (TEDs) must be obtained from NMFS (contact Nicole Bonine at 727-824-5336). Any necessary State or Federal clearances for the capture and relocation of sea turtles must also be obtained. Approvals must be submitted to the Contracting Officer or his/her authorized representative prior to trawling.

3.12.7 Water Quality And Physical Measurements

Water temperature measurements shall be taken at the water surface each day using a laboratory thermometer. Weather conditions shall be recorded from visual observations and instruments on the trawler. Weather conditions, air temperature, wind velocity and direction, sea state-wave height and precipitation shall be recorded on the Sea Turtle Trawling Report appended to the end of this Section. High and low tides shall be recorded.

3.12.8 Sea Turtle/Sturgeon Handling and Measurements

3.12.8.1 Handling

At least one crewmember who is a NMFS-Approved Protected Species Observer shall be on board the trawler during the trawl. The NMFS-Approved Protected Species Observers shall be responsible for handling of captured sea turtles and sturgeons. Each captured sea turtle or sturgeon shall be identified, scanned for PIT tags, measured, tagged, tissue sampled and released and data recorded on the Sea Turtle Tagging and Relocation Report appended to the end of this Section. Presence of PIT tags shall be scanned for by using a multi-frequency scanner capable of reading multiple frequencies (including 125-, 128-, 134- and 400-kHz tags) and reading tags deeply embedded in muscle tissue. Release of the sea turtles shall be accomplished at locations five miles west of the channel C/L, at time intervals designated by the NMFS-Approved Protected Species Observers, sufficient to ensure the viable handling and relocating of the sea turtles. Sea turtles and sturgeons may also be carefully transferred to another vessel for transportation to the release location to enable the relocation trawler to continue sweeping the dredging site.

3.12.8.2 Handling Fibropapillomatose Sea Turtles

Anyone handling sea turtles infected with fibropapilloma tumors shall either:

a. Clean all equipment that comes in contact with the sea turtle with mild bleach solution between the processing of each sea turtle, or

b. Maintain a separate set of sampling equipment for handling sea turtles displaying fibropapilloma tumors or lesions.

3.12.8.3 Measurements

a. Sea turtle measurements shall be recorded and shall include at a minimum: weight; straight-line length; straight-line width; and tail length. Sea turtles shall be tagged with NMFS #681 Inconel tags in each of the front flippers according to National Marine Fisheries Service (NMFS) protocol. Aseptic conditions shall be maintained for tags and tag attachment.

b. Sturgeon measurements shall be recorded and shall include at a minimum: weight; total length; and fork length.

3.12.9 Repair and Replacement of Damaged Trawl Nets

The Contractor, at the time of mobilization, shall provide trawl nets that meet the requirements specified in the Turtle Trawl Net Specifications at the end of this section. Trawl nets that are damaged shall be repaired or replaced by the Contractor at no additional expense to the Government. Tools, supplies and materials for repairing nets shall be kept aboard the trawler. In the event of damage to trawl nets, one hour will be allowed to either repair or replace them. The Contractor shall have at least one set of replacement nets immediately available at all times, to insure that the dredging work is not adversely delayed due to trawler down-time for replacing damaged nets. It is recommended that a second set of replacement nets be available aboard the trawler.

3.13 PARTIAL LIST OF NMFS-APPROVED PROTECTED SPECIES OBSERVERS

Christopher Slay, President * Coastwise Consulting (Environmental Consultants - Land, Sea, Air) 173 Virginia Avenue Athens, GA 30601 706-543-6859 904-261-8518 Fax/Tel 760-540-6655 Cell cslay@att.net Gib Frye, 865-771-0081	Trish Bargo* East Coast Observers, Inc. P.O. Box 6192 Norfolk, VA 23508 757-227-5779 757-965-6766 Fax 757-880-7636 Cell tbargo@eastcoastobservers.com	East West Technical Services, LLC P.O. Box 643864 Vero Beach, FL 32964 Phone: 860-910-4957

* Contractors that also provide sea turtle and sturgeon trawling and relocation services.

3.14 PRIMARY AND SECONDARY DREDGING REGIONS: SEA TURTLE REQUIREMENTS TABLE

Sea Turtle Requirements In Effect	New Orleans District			Mobile District All Locations	Galveston District All Locations
	Calcasieu River Bar Channel	Miss. River Southwest Pass	Miss. River Crossings		
Sea Turtle Reporting	Yes	No	No	Yes	Yes
Sea Turtle Screen Installed	No	No	No	Yes	Yes
Floodlights Installed	No	No	No	Yes	Yes
NMFS-Approved Protected Species Observers Required	No	No	No	Yes	Yes
Sea Turtle Deflectors Installed	Yes	No	No	Yes	Yes

Sea Turtle and Sturgeon Trawling and Relocation	No	No	No	CO	CO

Notes:

1. Sea turtle requirements shall not be in-place for locations showing an indication of "No". However, the Contracting Officer or his/her representative may require NMFS-Approved Protected Species Observers or sea turtle monitoring/protection equipment for locations showing an indication of "No".

2. The dredge shall arrive at the job site with the sea turtle requirements installed for locations where "Yes" is indicated.

3. For locations when "CO" is indicated, the requirement will be at the option and direction of the Contracting Officer.

4. Secondary dredging regions are not limited to the New Orleans District, Galveston District, and Mobile District. If other dredging regions are utilized, additional information will be provided related to the secondary dredging regions.

5. NMFS-Approved Protected Species Observers and inflow/overflow screens are no longer required for the Calcasieu River Bar Channel. The primary means of sea turtle protection for the Calcasieu River Bar Channel will be draghead deflectors and pump operational controls as specified in paragraphs entitled “Sea Turtle Deflector Requirements” and “Pump Operation”.

3.15 OPERATIONS AND DREDGING ENDANGERED SPECIES SYSTEM PROGRAM (ODESS)

3.15.1 Monitoring Endangered Species

Maintenance of US waterways for navigation is essential for national and international trade, job creation, and national security as well as for hydropower, flood protection, municipal water supply, agricultural irrigation, recreation, and regional development.

Typically, cutterhead pipeline, hopper, and mechanical dredges are used to maintain navigation depths in these channels and to construct new waterways. However, hopper dredging in the southeastern US potentially impacts five species of threatened or endangered sea turtles (Kemp's ridley, leatherback, loggerhead, green, and hawksbill) and sturgeon.

To monitor these impacts and assist in the evaluation of these data, the US Army Corps of Engineers (USACE) Engineer Research and Development Center (ERDC) created the Sea Turtle Data Warehouse (STDW) in 1992. The database was designed as a central repository for current and historical data on impacted sea turtles.

In 2014 the US Army Corps of Engineers, National Dredging Quality Management Program (DQM), at the request of USACE Headquarters (HQUSACE), partnered with ERDC; the US Army Corps of Engineers, Mobile District, Spatial Data Branch (CESAM-OP-J) and Bowhead to develop a new and enhanced STDW database and website. This new Program is referred to as the Operations & Dredging Endangered Species System (ODESS) Program. The use of ODESS will facilitate enhanced monitoring and data collection, enable faster transmittal of information, and meet threatened and endangered species reporting requirements to the National Marine Fisheries Service (NMFS).

In order to monitor dredging impacts on threatened and endangered aquatic species, the dredge shall be equipped with a dedicated tablet computer running ODESS software to track and document the presence of sea turtle, sturgeon, and marine mammal species during dredging operations.

The ODESS system, which consists of a tablet computer with an Internet connection, shall be a standalone system, exclusive to other systems, and shall have USACE ODESS data collection and reporting software, referred to as the ODESS Field Collector (FC) tool, installed by USACE ODESS support personnel. In the event hardware or software problems prevent the storage or transmission of the collected data, paper copies of the latest ODESS forms and information shall be maintained and submitted to ODESS Support and the USACE Inspector or Contracting Officer according to the schedule outlined in the contract specifications.

3.15.2 Observer Qualifications and Training

Prior to the initiation of the project, observers shall be familiar with the operation of the ODESS FC tool and proficient in its use so as to be able to prepare and transmit the results of their observations. ODESS system webinar training can be requested by contacting ODESS Support at ODESS@usace.army.mil or 1.877.840.8024.

Depending on the target audience (observers, dredging Contractor, USACE District personnel, or other Federal agencies), ODESS training could, in addition to the webinar training, consist of demonstrating the steps involved in setting up the FC tool on the dredge, loading observer-collected data and attachments into the FC tool, submitting these data and attachments to the ODESS database, and/or navigating around the ODESS public website to view and pull down data and/or decision-making information for later analysis.

3.15.3 Observer Data Collection and Reporting

Observers shall record the results of the threatened and endangered species monitoring (described in the paragraph entitled "Endangered Species Protection") in the ODESS system by filling in the appropriate electronic forms on the ODESS FC tool and transmitting the data to the ODESS database. If there is an issue with recording data straight to the FC tool due the logistical nature of how the observers are collecting this data, paper copies of these forms can be downloaded from the ODESS public website (http://dqm.usace.army.mil/odess/#/download) and later entered into the FC tool when the observers have the best opportunity.

Observers are required to use the FC tool to send all incident attachments and any necessary documentation (i.e., pictures, etc). Do not send attachments via personal email unless the FC tool is unavailable. Also, the paper forms, if needed, should be used as either a "scratch pad" for data collection notes or used any time the FC tool becomes unavailable. The FC tool is the primary means of observer data collection and reporting not the paper forms. It is not required to scan, attach and submit a copy of the load and incident paper forms as part of the electronic incident record unless it is needed to support the electronic incident record (e.g., species diagram markups).

3.15.3.1 Start of the Project

Prior to the start of dredging, observers shall verify that the ODESS FC tool is installed and operational on a dredge's dedicated tablet computer and that a viable Internet connection is available. In addition, before a project is initiated, on the ODESS FC tool homepage observers shall retrieve (or "pull down") project-specific information from the ODESS database and perform a one-time setup of the dredging project by establishing the dredge name and time zone.

3.15.3.2 During the Project

The following forms shall be used in the FC tool and submitted to the ODESS database at the indicated reporting frequency.

a. Load Data Form - Observers shall complete the Load Data Form, including a description of screen contents and sea conditions, based on their observations. This form shall be completed and transmitted to the ODESS database for each load. At the end of each observer shift, or when an Internet signal is available (not to exceed 24 hours from the start of the shift), the observer shall submit all of his/her Load Data Forms. If this is not possible due to hardware or software problems, the observer shall revert to email submission of the forms to ODESS@usace.army.mil.

b. Sea Turtle Incidental Data Form - If a sea turtle or its remains are identified during a load inspection, after the appropriate parties are notified (according to the requirements identified in the endangered species compliance section of the contract specification), a Sea Turtle Incidental Data Form shall be completed and submitted to the ODESS database as soon as possible (not to exceed 12 hours after the incident). Any applicable documentation (scanned copies of the paper observer load and incident forms, species photos, etc.) shall be included as electronic attachments (.JPG or .PDF) and submitted using the FC tool.

c. Sturgeon Incidental Data Form - If a sturgeon or sturgeon parts are identified during a load, after the appropriate parties are notified (according to the requirements identified in the endangered species compliance section of the contract specification), a Sturgeon Incidental Data Form shall be completed and submitted to the ODESS database as soon as possible (not to exceed 12 hours after the incident). Any applicable documentation (scanned copies of the paper observer load and incident forms, species photos, etc.) shall be included as electronic attachments (.JPG or .PDF) and submitted using the FC tool.

d. Marine Mammal Observation Data Form - If a large whale is observed, both the Dredge Load and the Marine Mammal Observation Data Forms shall be completed and submitted (not to exceed 12 hours after the observation) to ODESS Support at ODESS@usace.army.mil consistent with the endangered species compliance section (described in the paragraph entitled "Endangered Species Protection").

3.15.3.3 End of the Project

At the completion of project, the dredging Contractor shall coordinate with a designated USACE district QA/QC point of contact (POC) to determine whether electronic or paper copies of all applicable observer paper forms will be submitted for the project. Information previously entered on the Post Hopper Dredging Checklist will be available on the ODESS public website (https://dqm.usace.army.mil/odess) for the dredging project.

3.15.4 Hardware Requirements

The dredge shall be equipped and the Contractor is responsible for an ODESS hardware system consisting of a tablet computer, wireless keyboard, wireless mouse and data modem (or equivalent onboard internet connection) along with a proper tote bag and setup location for the afore mentioned hardware components. If a hardware problem occurs, or if a part of the system is physically damaged, the Contractor shall be responsible for repairing it within 48 hours of determination of the condition. The Contractor shall also keep ODESS personnel updated on the status of the onboard ODESS system and the progress of any repairs.

3.15.4.1 Computer

The Contractor shall provide a dedicated onboard tablet computer for use by the observers and shall have ODESS software installed on it prior to project initiation. This computer shall be located and oriented to allow data entry and data viewing. It must meet or exceed the following specifications:

Tablet Hardware Component	**Specification**
CPU	Intel or AMD processor with a (non-overclocked) clock speed of at least 2.4 gigahertz (GHz)
Hard Disk	128 gigabytes (GB); solid state internal storage
RAM	4 gigabytes (GB)
Network Adapter	Internal wired or wireless network hardware to match internet connection
Video Adapter	Support for 1024x768 resolution at 16-bit color depth
Display	>= 10.8 in.
Integrated Camera	2MP HD webcam (front); 8MP (back)
Ports	1 free USB port

3.15.4.2 Internet Access

The Contractor shall maintain an Internet connection capable of transmitting data to the ODESS database. The telemetry system shall always be available and have connectivity in the contract area. If connectivity is lost, unsent data shall be stored locally within the FC tool and transmitted upon restoration of connectivity. The Contractor shall acquire and install all necessary hardware and software to make the Internet connection available for data transmission to the ODESS database. The hardware and software must be configured to allow remote access to the computer by USACE ODESS personnel. Coordination between the dredging company's IT and ODESS Support may be required in order to configure remote access though any security, firewall, router, and telemetry systems. Telemetry systems must be capable of meeting these minimum reporting requirements in all operating conditions.

3.15.5 Software Requirements

ODESS personnel shall be responsible for installing and testing all ODESS software tools on the dedicated onboard ODESS tablet computer. No other software which conflicts with the ODESS function of recording and transmitting data shall be installed on the tablet computer. The Contractor shall be responsible for installing and/or maintaining any necessary manufacturer-provided software for the installed hardware. If any software problem occurs, the Contractor shall contact ODESS Support at ODESS@usace.army.mil or 1.877.840.8024.

The ODESS tablet computer shall have the following minimum software installed in support of the ODESS system.

Software Component	**Specification**
Operating System	Windows 11 or newer, Contractor-installed
Browser	Chrome, Microsoft Edge, Contractor-installed (Latest version recommended. Chrome is preferred.)
ODESS Software	Field Data Collector (FDC) tool, USACE ODESS Support-installed
Remote Access Software	Team Viewer, USACE ODESS Support-installed

3.16 USACE SEA TURTLE INSPECTION CHECKLIST FOR HOPPER DREDGES For Civil Works Projects or Department of the Army Permitted Project

1. Read contract plans and specs and/or all applicable permits (Dept. of the Army Permit, State Permits) to determine the contract or permit requirements for the protection of endangered sea turtles (each District specs or permit may be different).

2. Read the Biological Opinion and any Corps of Engineers (COE) Division Protocol if available.

3. Develop a list of inspection requirements:

   a. Leading edge angle (90 degrees or less).

   b. Approach angle or leading edge plowing depth (6 inches or more).

   c. Aft rigid attachment of deflector to the drag head (hinged or trunnion).

   d. Forward deflector attachment point (adjustable pinned or cable/chain with stop).

   e. Opening between drag head and deflector (four-inch by four-inch max).

   f. Is screening of dredged material required?

   g. Are inflow screens or overflow screens or both required?

   h. Are inflow basket screen openings four-inch by four-inch max and is 100% of the dredged material being screened.

   i. Lighting of inflow and overflow screens and proper access for cleaning (must meet EM 385-1-1).

   j. Structural design of deflector (per approved deflector submittal).

   k. Dredge operational requirements (starting /stopping dredge pump, draghead plugging, razing draghead, turning the dredge).

   l. Is dredging data recording (drag elevation, slurry density & velocity) required by specs or permit? If so, is it being collected?

   m. Is sea turtle trawling required by specs or permit? If so is it being performed?

   n. NMFS-Approved Protected Species Observer requirements (12 or 24 hours required)

4. Review sea turtle deflector submittal (do not allow dredging to start until submittal is approved):

   o. Structural soundness.

   p. Leading edge angle (90 degrees or less).

q. Approach angles for dredging depths.

r. Four-inch by four-inch opening between deflector and draghead.

5. Perform pre-dredging inspection:

s. Review and inspect all items in paragraph 3a-n.

6. Perform dredging operation inspection:

t. Review and inspect all items in paragraph 3a-n.

u. Require the contractor to perform paint test to assure deflector is plowing at least six inches into the dredge material (over penetration of the deflector will reduce production and increase fuel consumption of the dredge). Photograph results of the paint test on the deflectors and provide photographs with inspection checklist report.

v. Ride the dredge though at least one dredging cycle (dredging, to the dump, and back to the dredge site).

w. Watch the drag tender to assure he is operating the dredging equipment in accordance with the plans and specs (starting/stopping dredge pump, lower dragarm angle, swell compensator, slurry specific gravity, plugging of the draghead, ship crabbing).

x. Lockout tagout procedure for cleaning the inflow and overflow screens (must meet EM 385-1-1).

y. Talk to NMFS-Approved Protected Species Observers to assure they are aware of contract and permit requirements and are performing inspection of screens and deflectors and reporting any maintenance required to the dredge personnel.

z. Talk to Dredge Captain about maintaining the screens and deflectors.

COMMENTS:____

____

____

____

COE Inspector:

Name____

Office Symbol____________________ Date of Inspection_______________________

-- End of Section --

SEA TURTLE TRAWLING REPORT

Channel: ____________ Vessel: ____________ Captain: ____________
Crew: ____________

Date: ____________
Time: ____________
Shift #: ____________
Dredge Location: ____________
Total Tow Time: ____________ min

Survey: ____________
Relocation: ____________
Pre Dredge: ____________

SUBSTRATE

Mud: ____________
Sand: ____________
Rocks: ____________
Snag: ____________
Other: ____________

Low Tide Time: ____________
High Tide Time: ____________
Ebb: _____ Flood: _____
Slack Ebb: _____ Slack Flood: _____
Comments: ____________

Water Temp. (B: °C)(M: °C)(S: °C)
Wave Height: ____________ ft
Air Temperature: ____________ °C
Wind Speed/Direction: ____________
Barometric Pressure: ____________

BEGIN TOW

Time: ____________
Depth: ____________ ft
Speed Mid-Tow: ____________ knots
Latitude: ____________
Longitude: ____________
Loran: ____________
Station/Buoys: ____________

END TOW

Time: ____________
Depth: ____________ ft
Speed Mid-Tow: ____________ knots
Latitude: ____________
Longitude: ____________
Loran: ____________
Station/Buoys: ____________

NUMBER OF TURTLES

Port Net:
Logger: ____________
Kemp: ____________
Green: ____________
Other: ____________

Starboard Net:
Logger: ____________
kemp: ____________
Green: ____________
Other: ____________

BYCATCH/COMMENTS

ENDANGERED SPECIES OBSERVER PROGRAM

LOAD DATA FORM

USACE DISTRICT: ______________________

CONTRACT #: ____________ **Maintenance** ☐ **/New Work** ☐ **PROJECT start date** ________

PROJECT NAME: ______________________ **DREDGE NAME:** ____________

DREDGE FIRM: ____________

LOAD #: ________ **LOAD start date:** ________ **Times (24hrs): Start** ________ **End** ________

Condition of screening : Port ________ **Starboard** ________ **Overflow** ________

Number of dragheads in use: ____ **Type of dragheads used:** ________ **Size of dragheads:** ________

Draghead deflector? YES ☐ **NO** ☐ **Condition of deflector:** ______________

Type of material dredged: ______________________

Weather conditions: ______________________

____

Tidal stage **Slack** ☐ **Rising** ☐ **High** ☐ **Falling** ☐ **Low** ☐ **Unknown** ☐

Beaufort Sea States (Winds/Wave Height)

0 = <1 knot/ 0 ft ☐	**3** = 7-10 knot/ 2 ft ☐	**6** = 22-27 knot/10 ft ☐	**9** = 41-47 knot/23 ft ☐	**12** = >63 knot/45 ☐
1 = 1- 3 knot/ 0.25 ft ☐	**4** = 11-16 knot/ 4 ft ☐	**7** = 28-33 knot/14 ft ☐	**10** = 48-55 knot/29 ft ☐	
2 = 4- 6 knot/ 0.5 ft ☐	**5** = 17-21 knot/ 6 ft ☐	**8** = 34-40 knot/18 ft ☐	**11** = 56-63 knot/37 ft ☐	

Waves: ______ **ft** **Wind (speed & direction):** ______________

AIR TEMP: ______ **°C/°F** (°F = 9/5 (°C) + 32; °C = 5/9 (°F - 32))

WATER TEMP: Surface ______ **°C /°F** **Column (mid-depth)** ______ **°C /°F** **Bottom** ______ **°C /°F**

SCREEN TYPE ______ **Inflow screening:** ☐ **None** ☐ **25%** ☐ **50%** ☐ **75%** ☐ **100%**

______ **Overflow screening:** ☐ **None** ☐ **25%** ☐ **50%** ☐ **75%** ☐ **100%**

______ **Other screening:** ☐ **None** ☐ **25%** ☐ **50%** ☐ **75%** ☐ **100%**

PORT SCREEN CONTENTS:

STARBOARD SCREEN CONTENTS:

Estimate number entrained on this load for the following:

- **Sturgeon (any species)** ______________
- **Shark (any species)** ______________
- **Horseshoe crab** ______________
- **Blue crab** ______________

TURTLE OR TURTLE PARTS PRESENT THIS LOAD: YES ☐ **NO** ☐

SPECIES OF TURTLE TAKE: **Unknown** ☐ **Loggerhead** ☐ **Green** ☐ **Kemp's ridley** ☐ **Hawksbill** ☐ **Leatherback** ☐

Comments: ______________________

____

Number observers used/24hrs: ____ **% Monitoring/24 hrs: None** ☐ **25%** ☐ **50%** ☐ **75%** ☐ **100%** ☐

Observer's name: ______________ **Observer firm** ______________

Observer signature ______________

ENDANGERED SPECIES OBSERVER PROGRAM

DAILY REPORT

USACE DISTRICT: ______________________________

PROJECT NAME: ______________________________ **DREDGE NAME:** ______________

Date: ____________ **Load #s:** ____________ **Areas dredge worked:** ______________

Beautfort Sea State: ☐0 ☐1 ☐2 ☐3 ☐4 ☐5 ☐6 ☐7 ☐8 ☐9 ☐10 ☐11 ☐12

AIR TEMP: ________ °C/°F (°F = 9/5 (°C) + 32; °C = 5/9 (°F - 32))

WATER TEMP: Surface ________ °C /°F **Column (mid-depth)** ________ °C /°F **Bottom** ________ °C /°F

Condition of deflector: ______________ **Condition of screening:** ______________

Were there incidents involving endangered or protected species? YES ☐ NO ☐

Which species? (complete incident form(s)) ______________________________

Comments (type of material, biological specimens, unusual circumstances, etc):

BRIDGE WATCH SUMMARY

Time	Species	# Sightings/# Animals	Location/Comments
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	

Observer name ______________________________

ENDANGERED SPECIES OBSERVER PROGRAM

WEEKLY SUMMARY

USACE DISTRICT: ____________________

PROJECT NAME: ____________________ DREDGE NAME: ____________________

Dates: ____________ - ____________ Load #s: ____________________

Areas dredge worked: ____________________

Were there incidents involving endangered or protected species? YES ☐ NO ☐

Which species? ____________________

Comments:

BRIDGE WATCH SUMMARY

Date/Time	Species	# Sightings/# Animals	Location/Comments
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	
		/	

Observer name ____________________

ENDANGERED SPECIES OBSERVER PROGRAM

STURGEON INCIDENTAL TAKE DATA FORM

USACE DISTRICT: ______________________________

PROJECT NAME: ______________________________ **DREDGE NAME:** ______________

DATE: ____________ **Time sturgeon take recovered (24hr):** ________ **Sturgeon # for project:** _____

LOAD #: __________ **Times (24hrs): Start** ________ **End** ________ **Load start date** _________

SPECIES OF STURGEON TAKE: Shortnose ☐ **Gulf** ☐ **Other** ☐ **Unknown** ☐

Channel location of take: Latitude ____________________ **Longitude** ____________________

Other location / Channel description (e.g. buoy markers, landmarks): ______________________________

____

Location take recovered on dredge: ______________________________

Number of dragheads in use at time of incident: ______ **Draghead deflector? YES** ☐ **NO** ☐

Condition of deflector: ______________________ **Condition of screening:** ______________________

Beaufort Sea State: ☐0 ☐1 ☐2 ☐3 ☐4 ☐5 ☐6 ☐7 ☐8 ☐9 ☐10 ☐11 ☐12

AIR TEMP: ________ °C/°F (°F = 9/5 (°C) + 32; °C = 5/9 (°F - 32))

WATER TEMP: Surface ________ °C /°F **Column (mid-depth)** ________ °C /°F **Bottom** ________ °C /°F

Condition of specimen: ______________________________

____

____

0 = Alive; 1 = Fresh dead; 2 = Moderately decomposed; 3 = Severely decomposed; 4 = skeleton/old bone; 5 = undetermined

Measurements/description of specimen: ______________________________

____

____

Genetic samples taken: YES ☐ **NO** ☐ **Photos taken: YES** ☐ **NO** ☐

Sample frozen/preserved: YES ☐ **NO** ☐

Final disposition of specimen: ______________________________

Comments: ______________________________

____

____

____

Load data form attached: YES ☐ **NO** ☐ **Dredge load log attached: YES** ____ **NO** ____

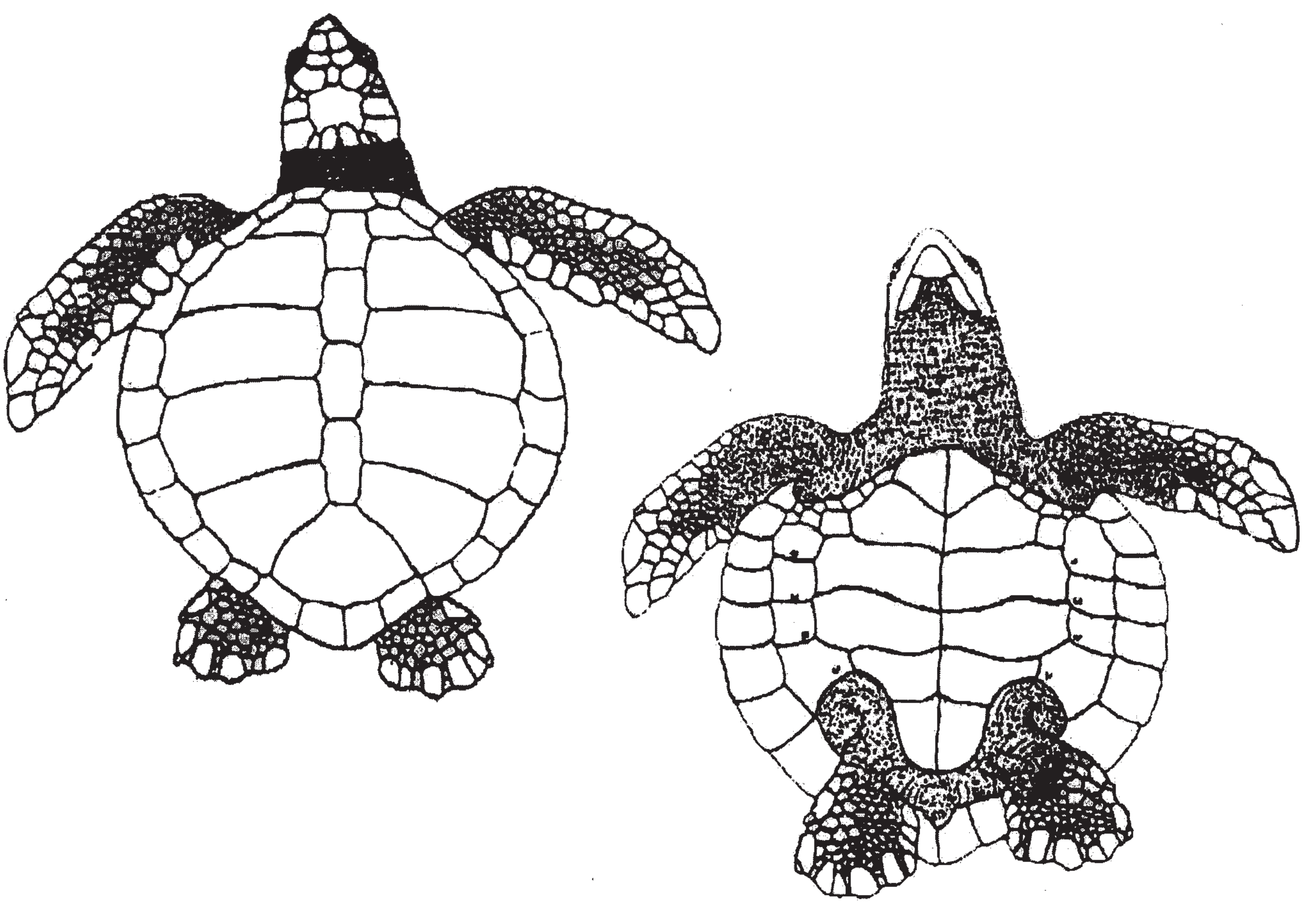
Observer's name ______________________________

Use diagram below to illustrate specimen/part recovered:

Kemp's Ridley (*Lepidochelys kempii)*

Shade areas of turtle that are missing; sketch cracks and lacerations

Comments:

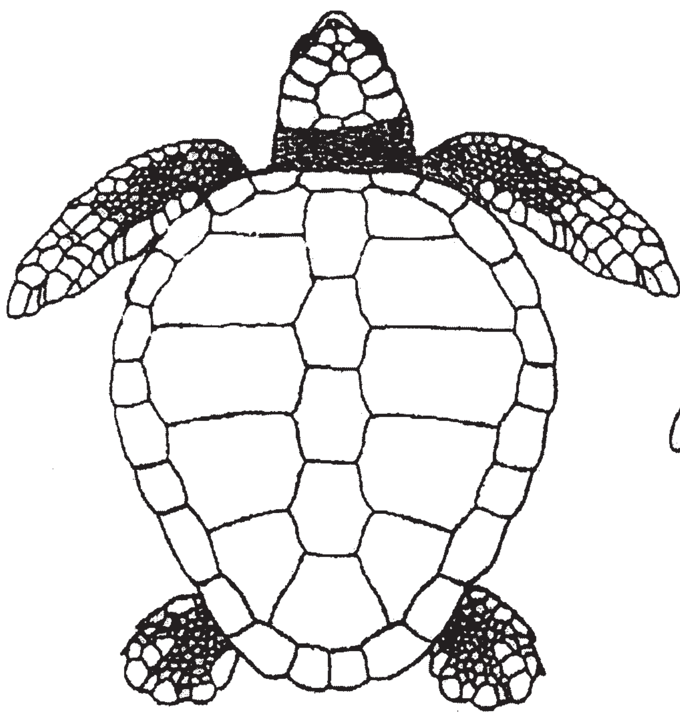


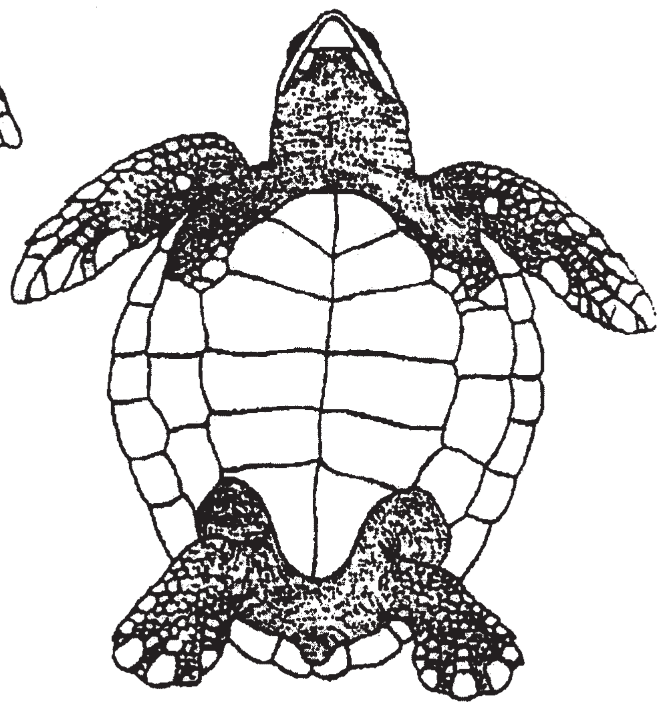
Diagrams by Tom McFarland

Loggerhead (*Caretta caretta*)

Shade areas of turtle that are missing; sketch cracks and lacerations

Comments:





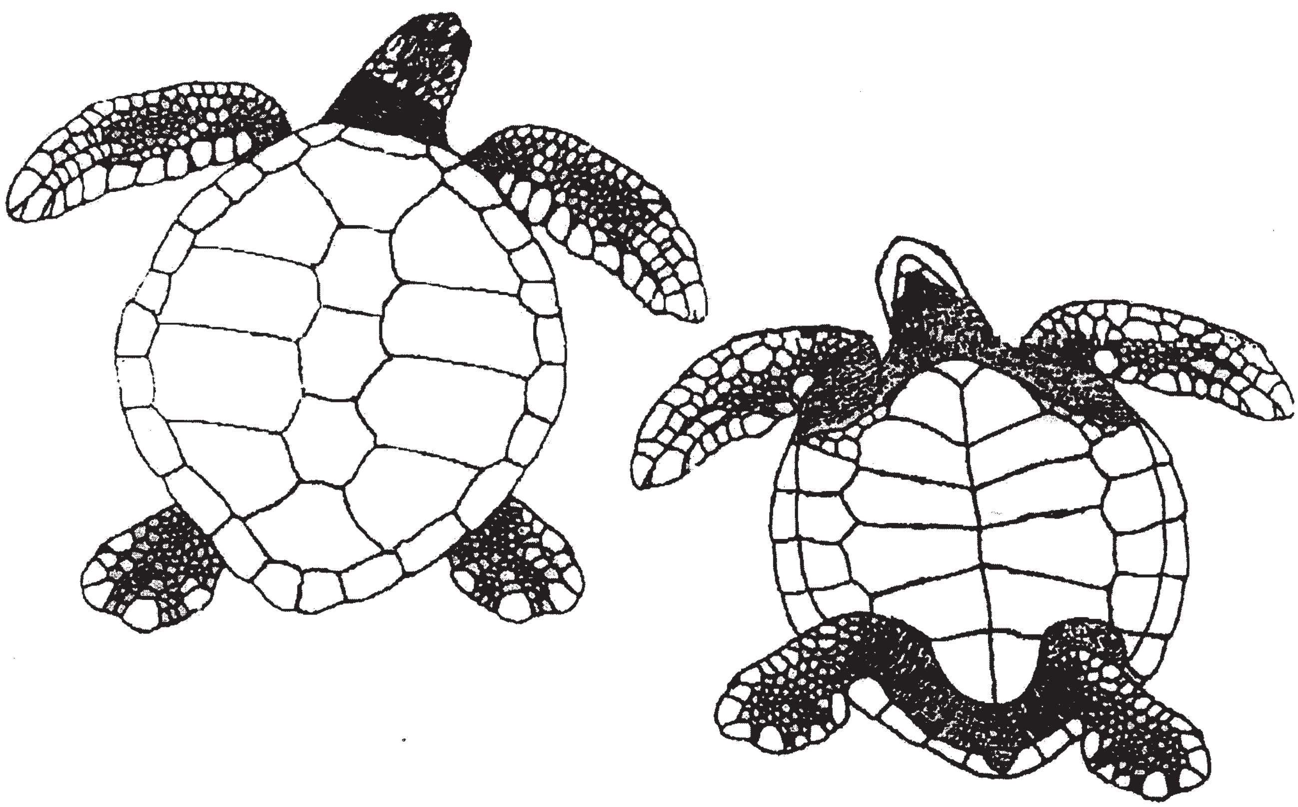
Diagrams by Tom McFarland

Sea Turtle Incidental Data Form – Green Sea Turtle

Green Sea Turtle *(Chelonia mydas)*

Shade areas of turtle that are missing; sketch cracks and lacerations

Comments:



Diagrams by Tom McFarland

SEA TURTLE TAGGING AND RELOCATION REPORT

Channel: ______________________________
Date: ____________
Time: ____________
Water Temp. (B: °C)(M: °C)(S: °C)

of

Ship Name: Net: Port: Starboard:

Flipper Tag
Left: ____________
Right: ____________
Recapture: This Effort: ___
Previous Effort: ___

Sex
Male: ______
Female: ______
Unknown: ______

Weight
_______Kg
_______lbs

Carpace S.L. Length
____________cm
____________in
CCL:______ cm

S.L. Width
__________cm
__________in
CCW:____ cm

Tail Length
(from plastron to tip)
_______cm

Head Width
____________cm
____________in

Photos Taken
Yes: ☐
No: ☐

Blood Taken
Yes:____ No:____
Time: __________
No. of Vials: __________

Telemetry Tag
Radio: ____________
Sonic: ____________
Satellite: ____________
____________Mhz
____________Khz

GENERAL CONDITIONS OF TURTLE

CPL: ____________cm ________________________________
CPW: ____________cm ________________________________
PIT Tag#

Turtle Released
Date: ____________
Time: ____________

Release Location:
Latitude: ________________
Longitude: ________________

TURTLE TRAWL NET SPECIFICATIONS

DESIGN: 4 Seam, 4 Legged, 2 Bridal Trawl Net
WEBBING: 4 inch bar, 8 inch stretch
Top – 36 Gauge Twisted Nylon Dipped
Side – 36 Gauge Twisted Nylon Dipped
Bottom – 84 Gauge Braided Nylon Dipped
NET LENGTH: 60 ft from cork line to cod end
BODY TAPER: 2 to 1
WING END HEIGHT: 6 feet
CENTER HEIGHT: Dependent on depth of trawl – 14 to 18 feet
COD END: Length 50 meshes x 4 inches equals 16.7 feet
Webbing 2 inch bar, 4 inch stretch, 84 gauge braid nylon Dipped, 80 meshes around, 40 rigged meshes with ¼ x 2 inch choker rings, 1 each ½ x 4 inch at end
Cod End Cover – none
Chaffing Gear – none

HEAD ROPE: 60 ft ½ inch combination rope (braid nylon with stainless cable center)
FOOT ROPE: 65 ft ½ inch combination rope
LEG LINE: Top – 6 ft, Bottom – 6 ft
FLOATS: Size – Tuna Floats (football style), Diameter – 7 Inches; Length – 9 inches; number 12 each;
Spacing – center of top net 2 inches apart
MUD ROLLERS: Size – 5 inch Diameter, 5.5 inch length
Number – 22 each; spacing – 3 ft attached with 3/8 inch Polypropylene rope (replaced with snap on roller when broken)
TICKLER CHAINS: NONE (Discontinued – but previously used ¼ inch x 74 ft galvanized chain)
WEIGHT: 20 ft of ¼ inch galvanized chain on each wing, 40 ft per net looped and tied
DOOR SIZE: 7 ft x 40 inches (or 8 ft x 40 inches); Shoe – 1 inch X 6 inch: bridles – 3/8 inch high test chain
CABLE LENGTH: (Bridle Length, Total) : 7/16 inch x 240-300 ft varies with bottom conditions
FLOAT BALL: NONE
LAZY LINES: 1 inch nylon
PICKUP LINES: 3/8 inch polypropylene
WHIP LINES: 1 inch nylon

Marine Mammal Observation Data Form:

Marine Mammal Observations

Project Name:___________________________________

Date: ________________________ Sheet _____ of _____ for this day

Monitor: __________________________________ Monitoring Location: ______________________________________

Sighting #	Time of Day	Weather	Species	# of Individuals	Location*	Behavior/Construction Activity

*E.g., Direction, Distance Estimate or Mark on Figure with Sighting Number

SECTION TABLE OF CONTENTS

DIVISION 35 - WATERWAY AND MARINE CONSTRUCTION

SECTION 35 20 23.23

HYDRAULIC DREDGING

-- End of Section Table of Contents --

SECTION 35 20 23.23

HYDRAULIC DREDGING

PART 1 GENERAL

1.1 SCOPE

It is the purpose of these specifications to secure for the Government the hire and operation of one self-propelled, trailing, suction-type hopper dredge conforming to the sizes shown in the table listed in the paragraph entitled "Dredge Plant". The dredge shall be efficient and effective for all work described in these specifications. The dredge shall include all necessary attendant plant, complete in all respects, including fuel, supplies, safety equipment and crew. All floating plant shall comply with applicable US Coast Guard and US Public Health Service regulations. The Contractor shall furnish all plant, materials, equipment, supplies, labor, transportation and perform all work in strict accordance with these specifications. All work, materials, and services not expressly called for in these specifications, but which may be necessary for complete and proper operations to carry out the contract in good faith shall be performed, furnished, or installed by the Contractor at no increase in cost to the Government. All work under these specifications shall be performed in accordance with the provisions of EM 385-1-1 "Safety and Occupational Health Requirements", latest edition.

1.2 MEASUREMENT AND PAYMENT

1.2.1 Mobilization and Demobilization

An item to cover the cost of initial mobilization and final demobilization of the Contractor's dredge and all attendant plant under this contract is included and will be paid for as stipulated in the Contract Clause entitled "Payment for Mobilization and Demobilization" (DFARS 252.236-7004). The Contractor shall be responsible for staking its own approach for initial and interim mobilization and demobilization, for its dredge and all attendant plant, from the plants location where last employed, to the dredging region(s), as described in the paragraphs entitled "Primary Dredging Region" and "Secondary Dredging Regions". The Government will not provide any payments to the Contractor, in addition to the contract job price for "Mobilization and Demobilization".

1.2.2 Dredging and Option Dredging Items

1.2.2.1 Unit of Measure

All costs for a self-propelled, trailing, suction-type hopper dredge shall be included in the contract unit price per hour in the "Dredging" and "Option Dredging" items on the bidding schedule. Payment for a self-propelled, trailing, suction-type hopper dredge will be made at the contract unit price per hour for work performed for "Dredging" or "Option Dredging" at the pay times stipulated in the following subparagraphs. Price and payment shall constitute full compensation for furnishing all necessary plant, labor, fuel, supplies, safety equipment and procedures, crew, furnishing and maintaining communication equipment, automatic recording tide gage, electronic positioning equipment, crewboat, sea turtle equipment, satisfactory disposal of dredged material and all operational incidentals thereto.

a. Determination of Elapsed Time. The hours listed in the bid lots for Dredging and Option Dredging Items are 100% pay time hours. For the purposes of determining elapsed time and the completion time of the contract, 100% pay time, 80% pay time, 60% pay time, 48% pay time, 35% pay time, 21% pay time, and 0% pay time, will be considered as 100%, 80%, 60%, 48%, 35%, 21%, and 0% of the hourly rate, respectively. Refer to the paragraph entitled "Procedures for Dredge Production Computation and Reporting". This contract shall be executed and paid strictly on a contract hourly basis as specified herein.

b. Start of Pay Time Hours. Dredging operations shall not start until all dredge pumps and drags are operable unless waived by the Contracting Officer. For this case, payment will be made at the appropriate reduced rate until all dredge pumps and drags are operable. 100% pay time hours for dredging operations shall begin on the date and time when dredged material is placed in the hopper through all drags. Adverse conditions may prevent dredging while the dredge is on assignment location and ready to dredge. For this case, payment will be made at the appropriate reduced rate until dredging operations commence. The applicable contract price per hour referred to below is the rate per hour in the Dredging or Option Dredging Item as appropriate, or an adjusted rate based on the pumping rate test in accordance with the paragraph entitled "Production Rate Test". Hourly quantities shown in the Bidding Schedule have been determined based on typical conditions in the primary dredging region only. No adjustment in the contract unit price will be made for dredging in a secondary dredging region.

c. 100% Pay Time Hours: When all dredge pumps and drags are operable, the following will be paid at 100% of the applicable contract price per hour, calculated to the nearest minute:

(1) Pumping time, turning time, travel to the disposal site, dumping time, and return travel time, in either dredge and haul or agitation modes; The times listed represent the sequential order of the dredging cycle beginning with the pumping time;

(2) Clearing fouled drag heads or propellers;

(3) Cleaning debris from any part of the dredge suction/intake system to include dragheads, pipes, loaders, skimmers, pumps, etc.;

(4) Travel time, when moving from one assignment to another within the same dredging region.

(5) Actual time for conducting the production rate test specified in the paragraph entitled "Production Rate Test".

(6) Down time to clear sea turtle screens required by the provisions of Section 01 57 20.00 10, paragraph entitled "Sea Turtle Monitoring Equipment".

(7) Actual time for conducting directed USACE quality assurance tests for re-certification for the National Dredge Quality Management System if dredging is interrupted.

(8) Actual time for conducting monthly Corps safety drills if the

dredging cycle is interrupted. Pay time shall not exceed 30 minutes per instance.

(9) Actual time to perform any Corps directed tasks other than dredging.

d. 80% Pay Time Hours: When all dredge pumps and drags are operable, the following will be paid at 80% of the applicable contract price per hour, calculated to the nearest minute:

(1) Actual time waiting for any vessel traffic to pass, when the dredging cycle is interrupted by traffic in the waterway. If vessel traffic causes a delay in the transit time to or from the disposal area, then the average transit time for all other uninterrupted transits for that assignment and that day will be used as the transit time. The remainder time over the average will be considered the actual traffic time.

(2) Travel time when moving from an assignment in one dredging region to another assignment in a different dredging region.

(3) Up to 48 hours when it becomes necessary to seek a harbor of refuge for hurricanes or tropical storms.

(4) Time for sailing to and from calm waters for performing directed dredge load-displacement chart recalibration and for time during dredge load-displacement chart calibration while at the directed calibration location.

(5) Up to 24 hours for delays caused by others, which are beyond the control of the Contractor.

(6) Up to 12 hours in order to comply with the installation/removal of sea turtle deflectors as directed by the Contracting Officer.

(7) Time to change the hopper sea turtle screens size, as described in Section 01 57 20.00 10 paragraph entitled "Sea Turtle Monitoring Equipment", if the dredging cycle is interrupted.

(8) Time for shut down when directed by the Contracting Officer due to relocation trawling being suspended as specified in Section 01 57 20.00 10, paragraph entitled "Suspension of Dredging and Relocation Trawling".

(9) Time for shut down when directed by the Contracting Officer to evaluate measures to reduce the likelihood of additional sea turtle takes as specified in Section 01 57 20.00 10, paragraph entitled "Sea Turtle Reporting".

(10) Actual time for conducting Hopper Leakage Test if the dredge passes said test.

(11) When a dredge that has three propulsion engines but only two propulsion engines are operable.

(12) Delays caused at the direction of the Contracting Officer or due to lack of a dredging assignment.

e. <u>60% Pay Time Hours</u>: When one pump or drag is disabled on a dredge equipped with two or more pumps and drags, the following will be paid at 60% of the applicable contract price per hour, calculated to the nearest minute:

(1) Pumping time, turning time, travel to the disposal site, dumping time, and return travel time, in either dredge-and-haul or agitation modes.

(2) Actual time required to clearing fouled drag heads or propellers.

(3) Cleaning debris from any part of the dredge suction/intake system to include dragheads, pipes, loaders, skimmers, pumps, etc.;

(4) Travel time when moving from one assignment to another within the same dredging region.

(5) Down time to clear sea turtle screens required by the provisions of Section 01 57 20.00 10, paragraph entitled "Sea Turtle Monitoring Equipment".

f. <u>48% Pay Time Hours</u>: When one dredge pump or drag is disabled on a dredge equipped with two or more pumps and drags, the following will be paid at 48% of the applicable contract price per hour, calculated to the nearest minute:

a. Actual time waiting for any vessel traffic to pass, when the dredging cycle is interrupted by traffic in the waterway. If vessel traffic causes a delay in the transit time to or from the disposal area, then the average transit time for all other uninterrupted transits for that assignment and that day will be used as the transit time. The remainder time over the average will be considered the actual traffic time.

b. Travel time when moving from an assignment in one dredging region to another assignment in a different dredging region.

c. Up to 48 hours when it becomes necessary to seek a harbor of refuge for hurricanes or tropical storms.

d. Time for sailing to and from calm waters for performing directed dredge load-displacement chart recalibration, and for time during dredge load-displacement chart calibration while at the directed recalibration location.

e. Up to 24 hours for delays caused by others, which are beyond the control of the Contractor.

f. Up to 12 hours in order to comply with the installation/removal of sea turtle deflectors as directed by the Contracting Officer.

g. Time for shut down when directed by the Contracting Officer due to relocation trawling being suspended as specified in Section 01 57 20.00 10, paragraph entitled "Suspension of Dredging and Relocation Trawling".

h. Time to change the hopper sea turtle screens size, as described in Section 01 57 20.00 10 paragraph entitled "Sea Turtle

Monitoring Equipment", if the dredging cycle is interrupted.

i. Time for shut down when directed by the Contracting Officer to evaluate measures to reduce the likelihood of additional sea turtle takes as specified in Section 01 57 20.00 10, paragraph entitled "Sea Turtle Reporting".

j. Actual time for conducting Hopper Leakage Test if the dredge passes said test.

k. Delays caused at the direction of the Contracting Officer or due to lack of a dredging assignment.

g. 35% Pay Time Hours: When all dredge pumps and drags are operable, the following will be paid at 35% of the applicable contract price per hour, calculated to the nearest minute:

(1) When the dredge cannot work due to opposing natural elements (fog, wind, rain, and rough seas). If the Contractor elects to go to a lay up or supply point, the reduced rate will start at the point of where a dredging cycle is interrupted and will resume at the exact same cycle point. If a load has just been dumped and the Contractor elects to go to a lay up or supply point, then the reduced rate will start with the end time of the dump and will continue until dredging resumes on the next load (when returning to the same assignment). If the Contractor elects to remain at the lay up or supply point for additional time after weather conditions are deemed favorable to recommence the dredging cycle, the additional time will be considered 0% Pay Time Hours. If a new assignment within the same dredging region is issued before dredging resumes, then only the time required to travel the additional distance beyond the previous assignment's start location to the new assignment's start location will be paid at the applicable contract price per hour.

h. 21% Pay Time Hours: When one pump or drag is disabled on a dredge equipped with two or more pumps and drags, the following will be paid at 21% of the applicable contract price per hour, calculated to the nearest minute:

(1) When the dredge cannot work due to opposing natural elements (fog, wind, rain, and rough seas). If the Contractor elects to go to a lay up or supply point, the reduced rate will start at the point of where a dredging cycle is interrupted and will resume at the exact same cycle point. If a load has just been dumped and the Contractor elects to go to a lay up or supply point, then the reduced rate will start with the end time of the dump and will continue until dredging resumes on the next load (when returning to the same assignment). If the Contractor elects to remain at the lay up or supply point for additional time after weather conditions are deemed favorable to recommence the dredging cycle, the additional time will be considered 0% Pay Time Hours. If a new assignment within the same dredging region is issued before dredging resumes, then only the time required to travel the additional distance beyond the previous assignment's start location to the new assignment's start location will be paid at the applicable contract price per hour.

i. 0% Pay Time Hours: No payment for hopper dredge time will be made under this contract for:

(1) Lost time incurred at the direction of the Contractor.

(2) Repair or replacement of worn or unserviceable equipment, including travel time to and from the lay up or supply point if deemed necessary by the Contractor. The reduced rate will start at the point of where a dredging cycle is interrupted and will resume at the exact same cycle point. If a load has just been dumped and the Contractor elects to go to a lay up or supply point, then the reduced rate will start with the end time of the dump and will continue until dredging resumes on the next load (when returning to the same assignment). If a new assignment within the same dredging region is issued before dredging resumes, then only the time required to travel the additional distance beyond the previous assignment's start location to the new assignment's start location will be paid at the applicable contract price per hour.

(3) Transferring fuel, water, and other supplies, including travel time to and from the lay up or supply point. The reduced rate will start at the point of where a dredging cycle is interrupted and will resume at the exact same cycle point. If a load has just been dumped and the Contractor elects to go to a lay up or supply point, then the reduced rate will start with the end time of the dump and will continue until dredging resumes on the next load (when returning to the same assignment). If a new assignment within the same dredging region is issued before dredging resumes, then only the time required to travel the additional distance beyond the previous assignment's start location to the new assignment's start location will be paid at the applicable contract price per hour.

(4) Removing misplaced material.

(5) Shutdowns ordered by the Contracting Officer's Representative or his/her authorized representative, for nonconformance with the safety requirements of these specifications.

(6) Work for other agencies or on other contracts for the Corps of Engineers.

(7) Time lost due to an accident resulting in injury to Contractor or Government personnel.

(8) Time lost due to mechanical modification of the dredge when converting between modes.

(9) Any time not covered under "100% Pay Time Hours", "80% Pay Time Hours", "60% Pay Time Hours", "48% Pay Time Hours", "35% Pay Time Hours", and "21% Pay Time Hours".

(10) All hours over 48 hours when it becomes necessary to seek a harbor of refuge from hurricanes or tropical storms.

(11) Time lost while the load-displacement chart is not operable during effective dredging time.

(12) Time lost that delays dumping a bin load of dredged materials

to obtain bin slurry soundings that could have been taken while the dredge was sailing to the dredged material placement area.

(13) Time lost that delays commencement of dredging on a new cycle to obtain bin residual water soundings that could have been taken while the dredge was sailing from the dredged material placement area.

(14) Time lost while in non-compliance in providing sea turtle observers or sea turtle monitoring/protection equipment.

(15) All hours over the specified hours to comply with sea turtle requirements specified in Section 01 57 20.00 10, paragraph entitled "Sea Turtle Deflector Requirements".

(16) Time lost due to the Contractor not having the hopper sea turtle screens specified in Section 01 57 20.00 10, paragraph entitled "Sea Turtle Monitoring Equipment". The Contractor will remain on 0% Pay Time Hours until the directed screen size is in-place and dredged material starts flowing into the hopper.

(17) When only one propulsion engine is operable.

(18) When no dredge pumps or drags are operable.

(19) All hours over the specified hours to comply with sea turtle and sturgeon trawling and relocation requirements specified in Section 01 57 20.00 10, paragraph entitled "Government Option".

(20) Time required to transfer Contractor personnel on and off the dredge if the dredging cycle is interrupted.

(21) Actual time for conducting Hopper Leakage Test if the dredge fails said test.

(22) Down time due to damage from opposing natural elements (lightning, high winds, rough seas, etc.).

(23) All hours over 24 hours for delays caused by others, which are beyond the control of the Contractor.

j. Classification of Pay Time. If two or more pay time classifications are simultaneously applicable, then the dredge will remain under the lowest applicable classification until the cause of that classification is removed.

k. Accounting for Dredge Time. The Contractor should note that the dredge must account for the full 24 hours of each day, including the first and last day of work. All time will either be 100% time, 80% time, 60% time, 48% time, 35% time, 21% time, or 0% time. When considering daylight savings time changes, only elapsed time will be accounted for.

1.3 DEFINITIONS

1.3.1 Acronyms

The following are acronyms that may be used in this Section of the specifications or in attachments to this Section:

ACRONYMN	DEFINITION	SUB-PARAGRAPH REFERENCE
ABD	Average Bin Density	1.7.3.3.j
ADQ	Agitation Dredging Quantity	1.7.3.4.e
APR	Agitation Production Rate	1.7.3.4.b
BLD	Bin Load Duration	1.7.1.e
BLP	Bin Loading Point	1.7.1.c
BLQ	Bin Load Quantity	1.7.3.3.l
BSR	Bin Solids Ratio	1.7.3.3.k
BWV	Bin Water Volume	1.7.3.3.c
BWW	Bin Water Weight	1.7.3.3.d
CLD	Corrected Light Displacement	1.7.3.3.e
DAD	Duration of Agitation Dredging	1.7.3.4.d
DMS	Dredged Material Slurry	1.7.3.3.h
DSV	Dredged Slurry Volume	1.7.3.3.i
GLD	Gross Light Displacement	1.7.3.3.a
LDC	Load Displacement Chart	1.7.1.a
LTD	Initial Steep Loading Slope Time	1.7.1.c(2)
MLD	Material Loaded Displacement	1.7.3.3.f
NBL	Net Bin Load	1.7.3.3.g
OFP	Offset Point	1.7.1.c(3)
RWD	Raw Water Density	1.7.3.3.d
SBD	Sediment Bulk Density	1.7.3.3.k
SBL	Slope of Bin Loading	1.7.1.c

1.4 REPORTS

The Contractor shall report the daily quantity of materials dredged per cycle, as specified in the paragraph entitled "Daily Report of Operations". For a single dredging cycle that overlaps two consecutive 24-hr reporting periods, the volume of the load shall be recorded on the date and time the dredge returns to the next cut, which shall be considered the completion of that cycle. If a load has been deposited and an extensive delay will occur or a new assignment or dredging location has been issued, then that load will be considered complete once the hopper or hopper doors have been closed. A copy of all production calculations as specified in the following shall be submitted for each dredge cycle in the Daily Report of Operations.

1.4.1 Procedures for Dredge Production Computation and Reporting

The cost for all specified labor, materials, equipment and aspects of work for dredge production reporting as specified herein shall be included in the contract unit price for "Dredging" and "Option Dredging".

1.4.2 Daily Report of Operations

a. The Contractor shall prepare and submit a Daily Report of Operations - Hopper Dredges (ENG Form 27A) and Daily Hopper Load

Disposal Report, for each dredge working. This report shall be submitted electronically on a daily basis and not in groups, e.g. several daily reports packaged together at one time. The original and one copy of these records in report form shall be submitted to the Government Inspector daily within 12 hours after the date covered by the report. Each daily report shall only include the information beginning at 0000 hours and ending at 2400 hours of that day. All calendar days shall be accounted for throughout the life of the contract.

b. The Contractor shall prepare and submit a Daily Hopper Load Disposal Data for each dredge working. This report shall be submitted electronically on a daily basis and not in groups, e.g. several daily reports packaged together at one time. The report shall be submitted daily via email to the following point of contact:

Mr. Jeff Corbino
Email: Jeffrey.M.Corbino@usace.army.mil
Phone: 504-862-1958

1.4.3 Monthly Report of Operations

In addition to the daily report, the Contractor shall prepare and submit electronically a monthly report, also on an ENG Form 27A, which consolidates all of the daily reports for the previous calendar month or portion thereof. The monthly report shall be due no later than the 7th calendar day of the month.

1.4.4 Final Report

Upon completion of the work, the Contractor shall electronically submit information for a final report which consolidates all of the monthly reports, within seven calendar days of contract completion. The Contractor shall also submit, at the conclusion of the contract, all mate logs or dredge performance logs, delays sheets, 27-A's, CQC reports, load chart graphs, any calibration back-up documents, safety drills, monthly dump plots and as-built drawings with final report as one submittal package. The Contracting Officer may retain a maximum of ten percent of the amount of the final payment, as described in contract clause entitled "Payments under Fixed-Price Construction Contracts" (FAR 52.232-5(e)), pending review and acceptance of all final report submittals by the New Orleans District.

1.4.5 Distribution of Reports

The Contractor shall distribute one electronic copy of all reports (daily, monthly, and final) to the Administrative Contracting Officer, Contracting Officer's Representative, and Government Inspector. Each Report of Operations shall be maintained by the Contractor on the dredge. Any additional instructions will be provided by the Administrative Contracting Officer. Upon completion of the job, the Contractor shall also submit a consolidated job report, combining the monthly reports in accordance with the previously listed distribution.

1.4.6 NMFS-Approved Protected Species Observer Reports

In the event of a sea turtle or sturgeon take, a report must be submitted via email to the proper District point of contact listed in Section 01 57 20.00 10, paragraph entitled "Sea Turtle Sightings", within 12 hours after a take. Also, all consolidated and completed data reports shall be forwarded directly to the District point of contact. Refer to Section 01 57 20.00 10, paragraph entitled "Sea Turtle Reporting", for additional information.

1.5 DREDGE AND ATTENDANT PLANT DATA SHEET

The Contractor shall complete the plant data sheet located in the paragraph entitled "Hopper Dredge and Attendant Plant Data Sheet" for the dredge and attendant plant that will be used to perform the work under this contract. The completed data sheet shall be submitted in the Contractor's bid package as stated in Section 00 10 00. The plant data sheet submittal shall constitute a certification that the described plant is available to and under control of, the Contractor and shall be for Government use only. If the Contractor is a joint venture, all parties of the joint venture shall sign the data sheet, and the party owning the dredge must be identified in the data sheet. If the Contractor requests a substitution of plant or addition of plant during the contract, the plant data sheet of the substituted plant or the additional plant must be submitted at the time of the request. The Contractor shall submit the request timely in order to provide the Government at least 14 calendar days to review the request and complete all necessary paperwork.

1.6 DREDGE CREW

Crew members aboard the dredging plant whose duties involve the movement or safe operation of the plant shall each hold a valid Merchant Mariner Certificates (MMC) issued by the US Coast Guard, with the correct endorsements (examples: tankerman, radar observer, food handler) for the duties performed. Each shall comply with appropriate minimum Standards of Training, Certification and Watch-standing (STCW) requirements and shall hold a valid Transportation Worker's Identification Card (TWIC). Officers shall also hold the appropriate licenses issued by the US Coast Guard for the positions they hold, vessel tonnage (for deck officers) or horsepower and type of propulsion (for engineers) and the duties they perform.

All pieces of dredging plant which have been issued a Minimum Safe Manning Certificate (MSMC) by a classification society such as American Bureau of Shipping, Lloyd's Register of Ships or Bureau Veritas, shall at all times maintain on-board crew levels in accordance with the numbers and qualifications listed in the MSMC for the activities being performed.

The Contractor shall be responsible for all accidents to crew and plant and for compliance with all laws pertaining to labor on dredges and attendant plant. Each required crewman, when absent, shall be relieved by a qualified replacement. The Contractor shall remove from duty and from the work site any crewman who, in the opinion of the Contracting Officer, is objectionable or incompetent. This requirement shall not be made the basis of any claim for compensation or damages against the United States or any of its officers or agents.

No additional payment will be made for crew in excess of required minimums.

a. <u>Contractor Responsibility</u>. The Contractor shall furnish, subsist if necessary, and pay all crew required for the satisfactory and efficient operation of the dredge and attendant plant. Minimum crew will be in accordance with US Coast Guard requirements. The Contractor shall be responsible for all accidents to crew and plant and for compliance with all laws pertaining to labor on dredges and attendant plant. Each crewman, when absent, shall be relieved by a qualified replacement. The Contractor shall remove from duty any crewman who, in the opinion of the Contracting Officer, is objectionable or incompetent. This requirement shall not be made the basis of any claim for compensation or damages against the United States or any of its officers or agents.

b. Tank Barges. Tank barges need not be manned unless in the opinion of the Officer in Charge, Marine Inspection Office, US Coast Guard, such manning is necessary for the protection of life and property and for the safe operation of the vessels; provided, however, that towing vessels, while towing barges which need not be manned, shall carry in the regular complement of the towing vessel and shall have on board at all times while towing, at least one licensed officer or certified tankerman (CG 123, para. 35.35-1, 1 Aug 77, or 46 CFR Subchapter D).

c. Fuel Transfer Operations. A sufficient number of crew shall be on duty to perform transfer operations. In the case of unmanned barges, the owners or operators of such barges shall insure that a person holding a valid license as master, mate, pilot, engineer, or a certified tankerman is on duty to perform the transfer operation, which licensed person or certified tankerman shall be considered as the person in charge of the unmanned tank barge (CG 123, para. 35.35-1, 1 Aug 77, or 46 CFR Subchapter D). MVN 385-10-R (latest edition), Fuel Oil Transfer form shall be submitted to the Contracting Officer's Representative for each fuel transfer operation.

1.7 DREDGE PRODUCTION COMPUTATION

1.7.1 Basis of Quantity Computation

Refer to the paragraph entitled "Acronyms" as needed for a complete list of acronym definitions and paragraph references for the following procedure. Refer to the paragraph entitled "Example of Standardized Dredge Production Calculations" for an example calculation based on the following procedure.

a. Hopper Dredge loading shall be defined by trends displayed by the load-displacement chart (LDC). An Example Load Displacement Chart is attached. The LDC consists of time (min) on the long axis and load (LT) on the transverse axis. If the transverse axis shows two different scales for load, the appropriate scale shall be used to read loads on the loading curve. As the bin is loaded, there is an initial steep loading rate. After the bin is initially full, there is some incremental additional loading due to bin materials consolidation and settlement in the bin. This is exhibited by a shallow loading rate which leads into a steady state condition of loading with time. This corresponds to a final compaction of the bin materials due to overburden pressures of the materials.

b. The dredge bin load shall be considered the point during the loading cycle that the hopper bin contains such a quantity of solids that causes overflow and exit of materials from the dredge at the same rate as the inflow materials. This point in time shall be evidenced on the LDC by that point when a reasonably constant recorded load with time starts to occur or the value shown by the LDC loading curve prior to this point if dredging must cease for the cycle due to reaching the load corresponding to the maximum allowable US Coast Guard vessel draft limit for the dredge 46 CFR Subchapter E (typical of loading heavy materials in dredge-and-haul mode).

c. For very gradual loading of light materials typical of agitation dredging, the bin load shall be defined by the point specified in the following that lies on the loading curve past the initial steep loading slope. In following the procedures described below, refer to the example LDC located at the end of this section. This point shall be considered to be the bin loading point (BLP). The BLP shall be defined by the slope of bin loading (SBL), which shall be the tangent line to the loading curve for an increasing LDC loading trend that is no greater than 2000 long tons/hour (LT/hr). This slope shall be hand drawn in permanent ink on the LDC using a long straight edge. To assist in locating this slope, it is advisable to first draw in a 2000 (LT/hr) slope on the chart in a clear space. The loading curve may show several small incremental increases in load past the initial steep loading slope before steady state agitation production is evident, instead of a idealistic smooth curve. Interpretation may be required to draw the actual slope when the loading curve is not smooth. In this case, two points that approximate the slope of the tangent line to the loading curve may be used. These two points must lie past the initial steep loading slope. The early point chosen shall be based on a 2% time offset of the duration resulting from the straight-line portion of the initial steep loading slope. The following steps shall be followed to find this point:

(1) Score a straight line through both ends of the initial steep loading slope.

(2) Determine the initial steep loading slope time difference (LTD) between these two points.

(3) Compute the offset point (OFP) as follows:

OFP(min) = (0.02) x (LTD (min))

(4) Score a straight line at a time distance of OFP parallel and later than the initial steep loading slope, such that the line scored crosses the declining loading curve in time. The point where the parallel line crosses the declining loading curve in time shall be considered the early reading.

(5) The late reading shall be found by pivoting with a straight edge about the early reading point, such that the late point is found as the tangent on the highest protruding curve in the series of several small incremental increases encountered in the loading curve. Upon establishing these two points, the slope defined by these two points shall be considered the SBL.

(6) The midpoint between the two points chosen for the SBL shall be considered to be the BLP, i.e., the effective end of bin loading for the purposes of making computations in the latter. This midpoint value shall be found as a value located on the original loading curve. Two points on the chart consisting of: (load reading, time reading) shall be selected where the SBL passes through two readable points on the chart grid. The slope shall be computed by the following formula:

$$\text{SBL(LT/hr)} = \frac{(60(\text{min/hr})) \times (\text{late load reading(LT)} - \text{early load reading(LT)})}{(\text{late time reading(min)} - \text{early time reading(min)})}$$

d. These criteria for bin loads shall apply no matter the operational status of the dredge pumps during effective dredging time. Refer to the paragraph entitled "Dredge Plant", for definition of dredge pump operational status.

e. The bin load duration (BLD) shall be considered the time period starting from commencement of dredging with the bin empty and clear of dredged materials from the previous load, to the time when the bin load is attained at BLP.

1.7.2 Basis of Reported Dredge Production Quantities

1.7.2.1 Dredge-and-Haul Mode

In this mode, only those materials retained in the hopper bin at the time the dredge reaches bin load, calculated as specified in the paragraph entitled "Bin Load Production Computation" shall be reported for dredge-and-haul production. No materials that overflow and exit the bin during dredging and loading in order to attain the bin load shall be considered in the quantity computations.

1.7.2.2 Agitation Mode

The quantity of materials for the cycles completed in this mode shall be reported as those materials achieved in bin loading, calculated in accordance with the requirements contained herein, plus the quantity of materials calculated as specified in the paragraph entitled "Agitation Production Computation".

1.7.3 Dredge Production Instrument Calibration

1.7.3.1 General

Refer to the paragraph entitled "Dredge Plant". The Contractor shall calibrate the dredge's LDC and the drag heads upon arrival to the first dredging assignment at the direction and in the presence of the Contracting Officer's Representative. No pay time is due for conducting the initial calibration. Recalibration may be directed at any other time during contract execution as deemed necessary. No re-calibration or adjustments to the calibration controls shall be performed in the absence of the Contracting Officer.

1.7.3.2 Calibration

Calibration of the LDC recorder shall be performed with the dredge lightship in calm waters where ship draft readings are possible. Calibration shall be performed in accordance with the manufacturer's instructions. For calibration, the physical data in the table located in the paragraph entitled "Production Data Table" shall respectively apply for the particular location of the dredge during calibration. Physical documentation of the calibration procedures and corresponding printed verification data shall be provided with the Daily Report of Operations for every calibration event.

1.7.3.3 Bin Load Production Computation

The following standardized procedure shall be followed for bin load production reporting as specified herein.

a. The gross light displacement (GLD) of the LDC consists of: the ship's weight; on-board transient loads such as fuel, oil, fresh water, supplies, etc.; and residual bin water. The GLD reading in long tons (LT) of the LDC shall be obtained at the beginning of the dredging cycle prior to bin loading of dredged materials. This reading shall be noted on the chart in permanent ink. For this reading, only residual bin water shall be contained in the bin; any residual dredged materials shall be washed out of the bin prior to this point if such materials remain. Also to be noted in permanent ink on the LDC in the vicinity of these readings on the chart shall be the time, date, and assignment location corresponding to the start of the dredging cycle.

b. At the beginning of the dredging cycle, before loading of the hopper bin commences, soundings shall be obtained fore and aft, port and starboard in the hopper bin corners from the top of the coaming to the top surface of the residual bin water, all in the presence of the Government Inspector. These four soundings shall be taken as the dredge is sailing from the placement area after dumping a load. These measurements shall be read to the nearest foot-and-tenths using a clean and clearly readable steel weighted tape of equal precision as specified herein. All soundings shall be visually verified to be at the top of the water surface, with the tape suspended plumb and not resting on any structural features in the bin.

c. The average of the four residual bin water soundings shall be used to obtain the corresponding residual bin water volume (BWV) in cubic yards (cy) from the official ullage table of the dredge.

d. Empirical raw water density (RWD) averages for each dredging region are shown in the paragraph entitled "Production Data Table", in grams/liter (g/L). The applicable RWD shall be used to compute the weight of the residual bin water for the particular location of the dredge. The residual bin water weight (BWW) shall be calculated as follows:

BWW(LT) = (BWV(cy)) x (RWD(g/L)) x (0.0007525(LT/cy)/(g/L))

e. The corrected light displacement (CLD) of the vessel shall be computed as follows:

CLD(LT) = (GLD(LT)) - (BWW(LT))

f. After loading of the hopper bin has ceased and immediately prior to discharging the bin materials, the LDC shall again be read in LT to obtain the material loaded displacement (MLD).

g. The net bin load (NBL) shall then be calculated as:

NBL(LT) = (MLD(LT)) - (CLD(LT))

h. After loading of the hopper bin has ceased, and immediately prior to discharging the bin materials, bin soundings shall be obtained fore and aft, port and starboard in the hopper bin corners from the top of the coaming to the top surface of the dredged materials slurry (DMS) contained in the bin, all in the presence of the Government Inspector. These four soundings shall be taken as the dredge is sailing to the placement area. These measurements shall be read to the nearest foot-and-tenths using a clean and clearly readable steel weighted tape of equal precision. All soundings shall be visually verified to be at the top of the DMS surface no matter the visually apparent types of materials contained in the bin, with the tape suspended plumb and not resting on any structural features in the bin.

i. The average of the four DMS soundings shall be used to obtain the corresponding dredged slurry volume (DSV) in cubic yards (cy) from the official ullage table of the dredge.

j. The average bin density (ABD) shall be found using:

ABD(g/L) = (NBL(LT)) / {(DSV(cy)) x (0.0007525(LT/cy)/(g/L))}

k. Historical averages for each dredging region of empirical sediment bulk density (SBD) are shown in the paragraph entitled "Production Data Table", in grams/liter (g/L). The SBD corresponding to the region that the dredge is located shall be used in the following bin solids ratio (BSR) computation:

BSR = {(ABD(g/L)) - (RWD(g/L))} / {(SBD(g/L)) - (RWD(g/L))}

l. The bin load quantity (BLQ) for the cycle shall be found and reported on the Daily Report of Operations as shown below:

BLQ(cy) = BSR x (DSV(cy))

1.7.3.4 Agitation Production Computation

After the dredge has achieved the bin load as defined herein while working on a dredging assignment where agitation dredging is directed, continued dredging in the same cycle shall be considered to be agitation production. The following standardized procedure shall be followed for agitation production reporting as specified herein.

a. The bin load duration (BLD) for the cycle shall be obtained in hours. The BLD and criteria defining the agitation dredging bin load is described in the paragraph entitled "Basis of Quantity Computation".

b. Refer to the paragraph entitled "Dredge Plant", for definition of dredge pump operational status. For loading periods where both dredge pumps are performing at standard dredge pump operation as specified herein, the bin loading duration shall be denoted as BLD2. For continuous two-pump loading at standard dredge pump operation, the agitation production rate (APR) shall be computed by the following formula:

APR(cy/hr) = (BLQ(cy)) / (BLD(hr))

c. For dredges having two dredge pumps, for any period during bin loading where only one dredge pump is at standard dredge pump operation, the respective bin loading duration shall be denoted as BLD1. For bin loading where there are periods of both one- and two-pump loading at standard dredge pump operation respectively, the agitation production rate (APR) shall be computed by the following formula:

APR(cy/hr) = (BLQ(cy)) / {(½ x BLD1(hr)) + (BLD2(hr))}

In any case, either one or the other equation for APR shall apply, not both.

d. The duration of agitation dredging (DAD) in hrs shall be obtained as the dredge effective time from the point that bin load as defined herein is achieved, to the point in time that agitation dredging ceases for the cycle. DAD2 shall denote durations where two dredge pumps are working at standard dredge pump operation and DAD1 shall denote durations where only one dredge pump is working at standard dredge pump operation.

e. Provided that the standard dredge pump operation is achieved for both dredge pumps for the duration of the agitation mode of the dredging cycle, the agitation dredging quantity (ADQ) for the cycle shall then be computed as:

ADQ(cy) = (APR(cy/hr)) x ((DAD2)(hr))

f. For dredges having two dredge pumps, for any period during agitation dredging where only one dredge pump is working at standard dredge pump operation, the respective ADQ for such time periods shall be calculated as:

ADQ(cy) = (½ x APR(cy/hr)) x((DAD1)(hr))

In this case, the DAD1 totals from periods where only one dredge pump is working at standard dredge pump operation shall be subtracted from the total DAD to find the DAD2 for two-pump agitation dredging. The sum of the ADQs for one- and two-pump agitation dredging shall be the aggregate ADQ reported for the dredging cycle.

1.8 EXAMPLE OF STANDARDIZED DREDGE PRODUCTION CALCULATIONS

Given:

- Hopper dredging region is Mississippi River SW Pass Jetty Channel
- Both dredge pumps were operable during bin loading and for 4 hrs of agitation dredging. For an additional two hrs of agitation dredging, only one dredge pump was operable.
- Average bin residual water sounding = 38'-4"
- Average dredged material slurry sounding = 4'-7"

Calculations:

1. 1.7.1.c.

From LDC: Point a = 53.5(min)
Point b = 68.0(min)

Time difference for OFP = 68.0 - 53.5 = 14.5(min)

OFP(min) = (0.02)(14.5(min)) = 0.29(min)

Plot point at time OFP past Point b on LDC.

From LDC: Point c = 70.0(min), 18,200(LT)
Point d = 120.0(min), 19,050(LT

$$SBL(LT/hr) = \frac{(60(min/hr)]) \times (late\ load\ reading(LT) - early\ load\ reading(LT))}{(late\ time\ reading(min) - early\ time\ reading(min))}$$

$$SBL(LT/hr) = \frac{(60(min/hr)) \times (19{,}050(LT) - 18{,}200(LT))}{(120(min) - 70(min))}$$

= 1020(LT/hr) < 2000(LT/hr) => ok.

BLP(min) = ½(120+70) = 95 min on original LDC loading curve.

2. 1.7.3.3.a.

GLD(LT) = 11,300(LT)

3. 1.7.3.3.c.

Use the average bin residual water sounding to obtain the bin water volume (BWV) from the ullage table.

Average bin residual water sounding = 38' 4" => BWV(cy) = 656(cy).

4. 1.7.3.3.d.

Obtain raw water density (RWD) from the Production Data Table located at end of clause.

Using Miss. River SW Pass Jetty Channel, RWD(g/L) = 1013(g/L)

Residual Bin Water Weight =
BWW(LT) =(BWV(cy)) x (RWD(g/L)) x (0.0007525(LT/cy)/(g/L))
BWW(LT) =(656(cy)) x (1013(g/L)) x (0.0007525(LT/cy)/(g/L))= 500(LT)

5. 1.7.3.3.e.

Corrected Light Displacement = CLD(LT) = (GLD(LT)) - (BWW(LT))
CLD(LT) = 11,300(LT) - 500(LT) = 10,800(LT)

6. 1.7.3.3.f.

Obtain material loaded displacement (MLD) from the LDC.
MLD(LT) = 19,100(LT)

7. 1.7.3.3.g.

Net Bin Load = NBL(LT) = (MLD(LT)) - (CLD(LT))
NBL(LT) = 19,100(LT) - 10,800(LT) = 8300(LT)

8. 1.7.3.3.h. and 1.7.3.3.i.

Use the average dredged material slurry sounding (DMS) to obtain the dredged slurry volume (DSV) from the ullage table.

MS = 4' 7" => DSV(cy) = 8402(cy)

9. 1.7.3.3.j.

Average Bin Density = ABD(g/L) = (NBL(LT))/{(DSV(cy))X(0.0007525 (LT/cy)/(g/L))}

ABD(g/L)=(8300(LT))/{(8402(cy))x(0.0007525(LT/cy)/(g/L))}= 1313(g/L)

10. 1.7.3.3.k.

Obtain sediment bulk density (SBD) from the Production Data Table.
Using Miss. River SWP, SBD = 1598(g/L)

Bin Solids Ratio = BSR
= {(ABD(g/L)) - (RWD(g/L))} / {(SBD(g/L)) - (RWD(g/L))}
BSR = (1313(g/L) - 1013(g/L)) / (1598(g/L) - 1013(g/L)) = 0.5128

11. 1.7.3.3.l.

Bin Load Quantity = BLQ(cy) = BSR x (DSV(cy))
BLQ(cy) = 0.5128 x 8402(cy) = 4309(cy)

12. 1.7.3.4.b.

Obtain bin load duration (BLD) from the LDC. For loading periods where both dredge pumps are performing at standard operating RPMs, the bin loading duration shall be denoted as BLD2.

BLD2(hr) = (41.5(min))(1 hr/60 min) = 0.692(hr)

Agitation Production Rate for two-pumps operable = APR(cy/hr) =
(BLQ(cy))/(BLD(hr))
APR(cy/hr) = 4309(cy) / 0.692(hr) = 6227(cy/hr)

NOTE: The APR for one-pump agitation is non-applicable in this cycle.

13. 1.7.3.4.d.

Duration of Agitation Dredging where only one dredge pump is operational =
DAD1(hr) = 2 hrs

Duration of Agitation Dredging where two dredge pumps are operational =
DAD2(hr) = 4 hrs

14. 1.7.3.4.e.

Agitation Dredging Quantity = ADQ [cy]
={(APR(cy/hr))x(DAD2(hr))} + {(½ x APR(cy/hr))x(DAD1(hr))}

ADQ(cy) = (6227(cy/hr) x 4(hr)) + (½ x 6227(cy/hr) x 2(hr))
= 24,908 + 6227 = 31,135(cy)

15. 1.7.2

Total cycle dredging quantity
= bin load quantity + agitation mode quantity
= 4309 + 31,135 = 35,444(cy/cycle)

BLQ + ADQ (2-pump) + ADQ (1-pump) = 0.692 + 4 + 2 = 6.69(hr/cycle)

Commentary.

1. Assume 0.5(hr) to sail to/from dump site and dump load.

2. Hourly production rate
= 35,444(cy)/(6.69 + 0.5(hr)) = 4930(cy/hr)

3. If the hopper dredge has 24 hrs effective dredging time per day, the estimated daily agitation mode production rate is:
(4930(cy/hr))(24(hr)) = 118,320(cy/day)

(This figure automatically includes the bin load quantity dredged and dumped each cycle as a part of the dredge's work accomplished while in agitation mode.)

1.9 EXAMPLE ECONOMIC BIN LOAD CALCULATIONS

This example will compare the actual time used to fully load the hopper for one load obtained during a specified assignment against the same load using the economic bin load (EBL) pump time. Attached is an Example Economic Bin Load Chart.

Procedure:

- Hopper dredging region is Mississippi River SW Pass Jetty Channel
- Both dredge pumps were operable during bin loading
- The dredging assignment is from 10.6 BHP to 11.9 BHP
- The initial analyzed load cycle time is 2 hours 49 minutes
- The initial pump time is 2 hours 4 minutes

The total cycle time for the load analyzed is 2 hours and 49 minutes

The initial pump time for the load analyzed is 2 hours and 4 minutes

Calculations for 70 min Pump time:

1. Obtain the Raw Water Density (RWD) from the Production Data Table.

Using Mississippi River SW Pass Jetty Channel, RWD(g/L) = 1,013

2. Obtain the Sediment Bulk Density (SBD) from the Production Data Table.

Using Mississippi River SW Pass Jetty Channel, SBD(g/L) = 1,598

3. Obtain the Gross Light Displacement (GLD) from the load displacement chart.

GLD(LT) = 5,740

4. Obtain the Material Loaded Displacement (MLD) from the load displacement chart.

MLD(LT) = 10,760

5. Use the average dredged material density slurry sounding to obtain the Dredged Slurry Volume (DSV) from the ullage table.

DSV(cy) = 4,953

6. Use the average bin residual water sounding to obtain the Bin Water Volume (BWV) from the ullage table.

BWV(cy) = 105.31

7. Obtain the Residual Bin Water Weight (BWW)

BWW(LT) = (BWV(cy)) x (RWD(g/L)) x (0.0007525(LT/cy)/(g/L))
BWW(LT) = (105.31(cy)) x (1,013(g/L)) x (0.0007525(LT/cy)/(g/L))
BWW(LT) = 80

8. Obtain the Corrected Light Displacement (CLD)

CLD(LT) = (GLD(LT)) - (BWW(LT))
CLD(LT) = (5,740(LT)) - (80(LT))
CLD(LT) = 5,660

9. Obtain the Net Bin Load (NBL)

NBL(LT) = (MLD (LT)) - (CLD(LT))
NBL(LT) = (10,760(LT)) - (5,660(LT))
NBL(LT) = 5,100

10. Obtain the Average Bin Density (ABD)

ABD(g/L) = (NBL(LT)) / {(DSV(cy)) x (0.0007525(LT/cy)/(g/L))}
ABD(g/L) = (5,100(LT)) / {(4,953(cy)) x (0.0007525(LT/cy)/(g/L))}
ABD(g/L) = 1,368

11. Obtain the Bin Solids Ratio (BSR)

BSR = {(ABD(g/L)) - (RWD(g/L))} / {(SBD(g/L)) - (RWD(g/L))}
BSR = {(1,368(g/L)) - (1,013(g/L))} / {(1,598(g/L)) - (1,013(g/L]))}
BSR = 0.6068

12. Obtain the Bin Load Quantity (BLQ)

BLQ(cy) = BSR x (DSV(cy))
BLQ(cy) = 0.6068 x (4,953(cy))
BLQ(cy) = 3,005

13. Determine the minutes per load

Load time(min) = Initial Cycle Time(min) - Initial Pump Time(min) + New Pump Time(min)
Load time(min) = 169(min) - 124(min) + 70(min)
Load time(min) = 115

14. Determine the number of loads obtainable in 1 hour

Loads obtained in 1 hr.(ea.) = (1(hr)) / ((Original Cycle Time - (Original Pump Time - New Pump Time))(min))/60(min))
Loads obtained in 1 hr.(ea.) = (1(hr)) / ((169 - (124 - 70))(min) / 60(min))
Loads obtained in 1 hr.(ea.) = 0.522

15. Determine the number of loads obtainable in 24 hr period

Loads obtained in 24 hrs.(ea.) = Loads in obtained in 1 hr.(ea.) x 24

Loads obtained in 24 hrs.(ea.) = 0.522(ea.) x 24
Loads obtained in 24 hrs.(ea.) = 12.522

16. Determine the cubic yards obtainable for 24 hours

cy = (BLQ(cy)) x (Cycles obtained in 24 hrs.(ea.))
cy = (3,005(cy)) x (12.522(ea.))
cy = 37,628

17. Determine the cubic yards obtainable per hour

cubic yards per hour = (cy) / (24(hr))
cubic yards per hour = (37,628(cy)) / (24(hr))
cubic yards per hour = 1,568

18. Determine the economic bin load (EBL)

EBL = pump time that yields the highest cubic yards per hour
EBL = 1,568(cy/hr)

1.10 HOPPER LEAKAGE TEST

Should it be determined the dredge is indicating a loss of dredged material due to leakage, the dredge will be required to perform a Hopper Leakage Test. The dredge will be required to complete the following testing procedures:

a. Put overflow in highest position

b. Empty hopper to lowest possible level

c. Lower dragarms to 20 feet

d. Begin pumping water through dragarms

e. Stop pumping once the water reaches the overflow

f. Record the volume of water in the hopper

g. Wait one hour and record the volume of water in the hopper again

In order for the dredge to pass the test and begin/resume work, it must have no more than a 5% loss in the maximum hopper volume achieved during the test in a one hour period. Should the dredge have more than a 5% loss in volume over a one hour period, it is considered to fail the test and will be on 0% pay time until the leak is repaired. This test may be performed again at anytime during the contract when an indication of leakage exists.

PART 2 PRODUCTS

Although listed under "PRODUCTS", the equipment described herein remains the property of the Contractor at all times.

2.1 PLANT

Plant shall be kept in condition for efficient work at all times. Award of this contract shall not be construed as a guarantee by the Government that the Contractor's plant is adequate for the performance of the work. No reduction in the capacity of the dredge plant shall be made except by prior written permission of the Contracting Officer.

If the Contracting Officer determines that any item of plant, or any part thereof:

Is inadequate for the service required;

Is not being operated at full capacity;

Has become unserviceable or incapable of efficient work; or

Is not being effectively operated because of insufficient numbers, qualifications, or expertise of crew;

Then the Contracting Officer shall notify the Contractor in writing of his decision. The Contractor shall then replace any unsatisfactory plant and correct any defects, including incompetent crew.

The Government will not be responsible for the dredge and attendant plant or any damage thereto during the period of the contract. The Contractor shall release the Government, and its officers and agents, from responsibility for damages ordinarily covered by fire and marine insurance.

2.1.1 Dredge Plant

a. The hopper dredge shall be of the self-propelled, trailing, suction-type, equipped with the number of trailing suction pipes (dragarms) designated in the chart shown in paragraph b, each of which has its own dredge pump.

b. Theoretical hopper dredge production rates for this contract are based on production rate tests that are correlated to documented dredge-and-haul and agitation production rates of the retired Government Dredge LANGFITT. The theoretical production rates for each dredge class shown in the table below have been developed based on this method. Refer to the paragraph entitled "Production Rate Test", for conditions that may affect contract dredging rates and payment hours.

THEORETICAL HOPPER DREDGE PRODUCTION RATES (cy/day)						
Bid Lot	**Pump Inside Diameter (inches)**	**Hopper Size (cubic yards)**	**Number of Drag Arms**	**Dredge & Haul Production All Projects**	**Agitation Production**	
					SW Pass (cy/day)	**Calcasieu (cy/day)**
1	34.0	14,788	2	89,638	219,124	246,514
2	38.0	12,430	2	85,383	217,037	244,166
3	33.5	9,400	2	64,729	164,890	185,502
4	39.37	8,300	1	49,677	121,028	136,157
5	31.5	6,540	2	46,978	125,107	140,746
6	30.0	4,815	2	45,029	135,530	152,471
7	27.0	3,600	2	36,435	130,153	146,422

THEORETICAL HOPPER DREDGE PRODUCTION RATES (cy/day)						
Bid Lot	Pump Inside Diameter (inches)	Hopper Size (cubic yards)	Number of Drag Arms	Dredge & Haul Production All Projects	Agitation Production	
					SW Pass (cy/day)	Calcasieu (cy/day)
8	26.0	4,000	2	34,095	95,227	107,129

c. The dredge shall be capable of dredging in water depths ranging from 30 feet to 61 feet and in river currents of up to five knots. It shall have twin propellers and sufficient propulsion power to dredge upstream at a minimum speed of two knots against a current of five knots. The speed of the dredge in still water with the hopper fully loaded and dragarms raised shall be at least nine knots.

d. The dredge must be capable of dredging in either the agitation mode or dredge-and-haul mode, and must possess the ability to convert from one mode to the other at the jobsite. Agitation dredging must be accomplished by means of discharging from the dredge pumps into the hopper, with overboard disposal from the hopper at or above the water surface. The Contractor will be allowed to perform agitation dredging by pumping directly overboard (bypassing the hopper) only if prior approval is obtained from the Contracting Officer.

e. The dredging method to be used will be directed by the Contracting Officer and may be changed at any time by issuing a new or amended assignment. Dredges whose sole means of disposal in the agitation mode is by overboard discharge below the water surface are not acceptable unless waived by the Contracting Officer.

f. As described in Section 01 57 20.00 10, paragraph entitled "Sea Turtle Deflector Requirements", sea turtle deflectors shall not be in-place when the dredge is working in the Mississippi River Southwest Pass or the Mississippi River Crossings. A rigid sea turtle draghead deflector shall be installed on the dredge prior to the start of work and remain in-place during all hopper dredging activities performed in several secondary dredging regions, as described in Section 01 57 20.00 10, paragraph entitled "Sea Turtle Deflector Requirements". The Contractor shall submit a detailed drawing outlining the actual dimensions for the deflectors for approval by the Contracting Officer prior to commencement of dredging.

(1) The sea turtle deflector shall be designed so that the bottom surface of the deflector is parallel with the bottom of the channel at the required dredging depth.

(2) The water intake ports on the top of the draghead shall be screened with metal elliptical cages, or other suitable means to exclude sea turtles from entering. All screens or cages shall have four inch by four inch or smaller openings. The use of scraper blades attached to the dragheads will be allowed.

(3) The sea turtle deflector device, when in-place, shall be maintained in operational condition during the entire dredging operation.

(4) The sea turtle deflector device shall be approved by the Contracting Officer prior to commencement of dredging operations.

Two sketches outlining the minimum dimensional criteria for the deflectors are attached at the end of this section. The sketches are titled "Plan View - Rigid Sea Turtle Deflector" and "Elevation View - Rigid Sea Turtle Deflector". The Contractor shall submit a detailed drawing outlining the actual dimensions for the deflectors for approval by the Contracting Officer prior to commencement of dredging.

(5) The bottom surface of the draghead, i.e. the part of the draghead that comes in contact with the bottom, shall not contain a screen that is added to the draghead to prevent large debris from entering. If the draghead were to injure or kill a sea turtle, a screen may prevent the injured or killed sea turtle from entering the draghead.

(6) Use of a slot-faced type of sea turtle deflector shall not be allowed.

g. Screen structure(s) as described in Section 01 57 20.00 10, paragraph entitled "Sea Turtle Monitoring Equipment" shall be available on the dredge as part of the normal operating equipment when the dredge is working in several secondary dredging regions.

h. Dredge pumps shall be considered to be operable if respective pumps are maintained at the brake horsepower and corresponding engine RPM's (during dredging operations) applied to each pump impeller at rated drive of the prime mover, as reported in accordance with the specifications on the Hopper Dredge and Attendant Plant Data Sheet located at the end of this section. This shall be termed herein as standard dredge pump operation. Any dredge pumps not performing at standard dredge pump operation while dredging shall immediately be repaired and returned to performance at standard dredge pump operation. Refer to the paragraph entitled "Dredging and Option Dredging Items", for pump operational status effects on fractional pay time.

i. The Contractor shall submit both a hard copy and an electronic version of the manufacturer's pump curve for each pump to be used during the project within five calendar days after issuance of Notice to Proceed. This includes the dredge's main pump, ladder pump if applicable and booster pump(s) if applicable. If the Contractor requests a substitution of plant or addition of plant during the contract, the pump curve(s) of the substituted plant or the additional plant must be submitted at the time of the request. Each pump curve submitted shall be clearly designated with the dredge's name, contract number, pump function (main pump, ladder pump, or booster pump, etc.) pump HP and RPM's. The pump curve shall consist of the pump's performance for water plotted against hydraulic head and discharge velocity and GPM's. A Sample Manufacturer's Performance Curve is included at the end of this section. One copy of this information shall be sent to the USACE Office and address listed in the paragraph entitled "Reports".

j. The dredge shall have a load-displacement chart recorder capable of measuring and recording the vessel load in long tons, for the full range of possible loads of the dredge. Daily recordings shall be automatically made and turned in with the Daily Report of Operations. The Contractor shall maintain adequate supplies to operate and maintain the functionality of the chart recorder for the contract duration. All hopper bin loads shall be measured using the calibrated load-displacement chart.

k. The dredge shall have on board an official and current ullage table for the dredge, certified by a licensed professional marine surveyor for the existing configuration of the hopper bin. The ullage table shall show a bottom-to-top volume in the hopper bin at various levels corresponding to soundings in the bin, measured from the top of the bin coaming downward into the bin. In other words, the maximum possible sounding value shall correspond to zero volume and the minimum possible sounding value shall correspond to the maximum possible bin volume. The ullage table shall display these bin volumes in cubic yards for every foot-and-tenths increment for the full range of possible bin soundings. A copy of the ullage table shall be submitted to the USACE office and address listed in the paragraph entitled "Distribution of Reports" within five calendar days after issuance of Notice to Proceed. If the Contractor requests a substitution of plant or addition of plant during the contract, the ullage table of the substituted plant or the additional plant must be submitted at the time of the request.

l. The Contractor shall have on the dredge a clearly readable steel weighted tape with measurements shown in foot-and-tenths, capable of measuring the full depth in the hopper bin from the bin coaming. The weight for this tape shall be a six inch diameter disk weighing two pounds two ounces.

m. The hopper dredge shall be equipped with on board capabilities such as water jets, fixed water nozzles, or manually operated water hoses with minimum diameter hoses of 2.5 inches to wash out any residual dredge material as stated in the paragraph entitled "Bin Load Production Computation".

2.1.2 Dredge Attendant Plant

Attendant plant shall be composed of any launches, barges, or other auxiliary plant as may be required for operation under these specifications. Motorized lifeboats are not considered attendant plant. If present, they are considered as part of the dredge safety equipment. The attendant plant shall be maintained in good condition and shall be of sufficient size and capacity to efficiently serve the dredge. No separate payment will be made for additional attendant plant provided by the Contractor for its own convenience in performing the work.

2.1.3 Crew Boat

The Contractor shall furnish, throughout the contract period, for the exclusive use of the Government, one diesel powered or gas powered crew boat, with twin propellers, capable of maintaining and traveling no less than the minimum speed of 30 miles per hour, not less than 40 feet in overall length, with enclosed space for at least six passengers after installation of all required equipment. The crew boat shall meet or exceed all applicable US Coast Guard regulations for vessels 65 feet or less in length, and shall be certified by the US Coast Guard. The crew boat shall be equipped with the following:

a. air conditioning and heating;

b. VHF-FM marine radio transceiver for ship-to-ship communications, described in the paragraph entitled "Communications Equipment";

c. Navigation radar, as described in the paragraph entitled "Navigation Radar";

d. Safety equipment meeting the inspection requirements of the US Coast Guard Auxiliary and EM 385-1-1.

Equipment, which fails to perform because of insufficient power or other mechanical deficiencies, or due to inexperienced operators, shall be replaced, or the operator replaced, as the case may be, within 12 hours after the Contractor is directed to do so by the Contracting Officer's Representative. The crew boat will be used solely for providing the Government Inspectors and Government Agents transportation, and not for conducting surveys, providing transportation for the Contractor's personnel or transporting the Contractor's supplies. The Contractor shall make provisions to obtain a separate crew boat or vessel for conducting Contractor-related operations. In addition, the Contractor shall provide, for the exclusive use of the government, a separate crew boat for each dredge that is performing work. The minimum full time crew for the crew boat shall be one operator. The crew boat shall be operated and available 24 hours a day. Refer to EM 385-1-1, Chapter 19, for additional crew and equipment requirements. Smoking shall not be allowed inside the cabin and operator's space while occupied by Government personnel. NO SMOKING signs shall be posted.

2.1.4 Navigation Radar

The dredge and crew boat shall be equipped with navigation radar for use in inclement weather and at night. All radar equipment used under this contract shall be installed so that it will continue functioning on battery power in the event of generator failure. Any additional attendant plant to be operated at night must be radar equipped as well.

2.1.5 Depthsounders

The dredge must be fitted with an efficient electronic depthsounder in accordance with U.S. Coast Guard regulation 46 CFR 96.27-1. The Contracting Officer's Representative shall be present at all depthsounder calibrations. The speed of sound calibration method will be approved by the Contracting Officer's Representative. A calibration shall be performed at the start of each day, when the vessel moves to another survey locale and after any maintenance is performed on the depthsounder (to include chart paper replacement). Once the calibration is complete, no speed of sound adjustments shall be made until the next calibration. The depthsounder shall be calibrated at a depth equal to 80% of the maximum expected survey depth or at a depth of 40 feet (whichever is less). The analog chart paper recording of the calibration shall be provided to the Contracting Officer's Representative.

2.1.6 Services to be Furnished to the Government

a. The Contractor shall be required to furnish, on the request of the Contracting Officer or any inspector:

(1) The use of such boats, boatmen, laborers, and material forming a part of the ordinary and usual equipment and crew of the floating plant, as may be reasonably necessary in inspecting and supervising the work;

(2) Suitable transportation between the worksite and all points on shore designated by the Contracting Officer, by means of the crew boat described in the paragraph entitled "Crew Boat".

b. Equipment which fails to perform because of insufficient power or other mechanical difficulties or due to inexperienced operators shall be replaced, or the operator replaced, as appropriate, within 12 hours after the Contractor is directed to do so.

c. Should the Contractor refuse, neglect, or delay compliance with these requirements, the specific facilities may be furnished and maintained by the Contracting Officer, and the cost will be deducted from any amounts due or to become due the Contractor.

2.1.7 Dredge Physical Data

Dredge physical data is required for submittal in the data sheets located at the end of this section. If any of the data submitted in the plant data sheets changes during the execution of the contract, the Contractor shall submit new data to the Government within 48 hours, showing the changes made to the equipment, along with the date the changes were made.

2.1.8 Substitution of Plant

Substitution of the dredge may be allowed provided the Contractor furnishes written justification, the Contracting Officer agrees in writing to the substitution and the following conditions are met:

a. The substitute dredge meets all of the requirements of this contract and that the Contractor submits clear evidence that the substitute dredge performs at the rate set forth in the table on work similar to that of this contract located in the paragraph entitled "Dredge Plant".

b. The Government is reimbursed all costs in connection with inspection of the substitute dredge, if such is required.

c. The substitute dredge is delivered to the worksite before the original dredge is shut down and moved off the worksite. This requirement does not apply to substitutions made during release periods.

d. If the substitute dredge does not fit the same bid lot as the original dredge, then rates for the substitute dredge will be computed separately for the dredging payment items as follows:

$$\text{Substitute Dredge Hourly Rate} = \frac{\text{(Original Base Item Estimated Quantity) x (Original Base Item Unit Price)}}{\text{Estimated Quantity From Base Item Bid Schedule of Applicable Bid Lot for Substitute Dredge}}$$

The remaining hours, if any, on the Basic Payment Items will be prorated so that payments available to the Contractor will remain unchanged. Option dredging payment hours will also be prorated separately so that the total payments available to the Contractor for exercised options remains unchanged.

e. Mobilization and demobilization costs for the substitute dredge shall be borne by the Contractor.

f. The dredge quality management system shall be fully operational at the start of dredging for the substitute dredge. The same requirements for the dredge quality management system for the original dredge shall apply to the substitute dredge.

g. Payment will resume for the substituting dredge:

(1) If the dredge returns to an assignment in the same dredging region, when dredged material starts flowing into the hopper; or

(2) If the dredge returns to an assignment in a different dredging region, when the dredged material starts flowing into the hopper at the new assignment.

2.1.9 Addition of Plant

a. At the Contractor's option and with the approval of the Contracting Officer, an additional hopper dredge or dredges with attendant plant may work simultaneously with the primary hopper dredge and its attendant plant provided the criteria below is met.

(1) Whenever two or more dredges are approved for simultaneous work on the contract, the dredge representing the specific "Lot" from which the Contractor submitted the bid on will be considered the primary dredge.

(2) The Contractor shall submit clear evidence that the additional dredge(s) can perform at the rate set forth in the table located in the paragraph entitled "Dredge Plant" on work similar to that of this contract.

(3) The additional dredge(s) shall provide its own attendant plant, as described in the paragraph entitled "Dredge Attendant Plant", at no additional costs to the Government.

(4) In the event draghead deflectors are deemed necessary by the Government for continued dredging operations, the Contractor shall be required to bear the cost of installing draghead deflectors on the additional dredge(s).

(5) The additional dredge(s) shall conform to the same environmental requirements of the primary hopper dredge.

(6) The dredge quality management system shall be fully operational at the start of dredging for the additional dredge(s). The same requirements for the dredge quality management system for the primary dredge shall apply to the additional dredge(s).

b. Furthermore, the following conditions will apply to the additional dredge(s).

(1) No payment will be made for mobilization and demobilization to/from the dredging region(s) for the additional dredge(s). The additional dredge(s) will be paid only for 100% Pay Time. Time classified as 80%, 60%, 48%, 35%, and 21% will be considered 0% pay time and will not be paid for.

(2) If the Government requests the addition of plant, the additional dredge will be paid per paragraph entitled "Unit of Measure". Travel time to move the additional dredge to the required dredging region will be paid at 80% Pay Time Hours.

(3) If the additional dredge(s) is not the same bid lot size as the primary dredge, payment for the additional dredge(s) will be determined using a rate computed as follows:

$$\text{Additional Dredge Hourly Rate} = \frac{\text{(Original Base Item Estimated Quantity) x (Original Base Item Unit Price)}}{\text{Estimated Quantity From Base Item Bid Schedule of Applicable Bid Lot for Additional Dredge}}$$

(4) Upon commencement of dredging operations by the additional dredge(s), the remaining hours on the basic payment items will be prorated to each dredge so that total contract payments will remain unchanged. Option dredging payment hours will also be prorated separately so that the total contract payments for the exercised options will remain unchanged.

2.2 GAGES

a. Staff gages or recording gages are present in each dredging region, which indicate the water surface elevation. The locations of the appropriate gages will be provided by the Contracting Officer at the pre-work conference. These gages shall be read a minimum of twice a day, while dredging is performed, at the direction of the Contracting Officer.

b. Project depths for all dredging regions are measured from 0.0 feet MLLW (Mean Lower Low Water) datum except where otherwise stated within paragraph entitled "Location and Description of Work". The required actual depths are determined as the listed project depth plus the gage reading.

c. The gage for the Calcasieu River is located at the Lake Charles Pilots dock two miles southwest of Cameron, LA. Gage 73650 "Cameron" is located at lat/long 29.77580550, -93.34791660.

0.0' gage = -0.39' NAVD88 = 0.91' MLLW = 1.91' MLG

d. The following staff gages shall be used for the Southwest Pass dredging region.

Gage ID	Gage Name	Gage Location and Description	Gage Correction to MLLW, ft
01480	Mississippi River at Venice	Staff gage located at USACE slip on piling. Gage ID is shown on gage. X=3,912,498, Y=286,266	(-) 0.53
01525	Mississippi River at Pilottown	Staff gage located at Pilottown on helipad. Gage ID is shown on gage. X=3,942,850, Y=252,776	(-) 0.70

Gage ID	Gage Name	Gage Location and Description	Gage Correction to MLLW, ft
01545 OD	Mississippi River at Head of Passes (WH-7)	Staff gage located on WH-7 wing dam dike. Gage ID is shown on gage. X=3,945,280, Y=240,100	(-) 0.32
01545	Mississippi River at Head of Passes	Staff gage is located on a piling leading to a wooden light tower. X=3,947,083, Y=236,556	(-) 0.47
01575	Southwest Pass at Mile 7.5	Staff gage located on Light 21 structure. Gage ID is shown on gage. X=3,926,982, Y=209,928	(-) 0.27
01625	Southwest Pass at Light 14	Staff gage located on Light 14 structure. Gage ID is shown on gage. X=3,914,435, Y=188,128	(-) 0.02
01670	Southwest Pass at East Jetty	Staff gage located on piling at downstreamend of Pilot Station walkway. Gage ID is shown on gage. X=3,896,988, Y=162,413	0.31

Note: All gage corrections shall be added to the gage readings to adjust them to MLLW.

e. The gages for the Mississippi River Crossings are not set to LWRP (NAVD88). The required actual depths are determined as the water surface elevation plus the project depth, plus the gage correction to LWRP (NAVD88). The required actual depths are determined as the water surface elevation plus the project depth, plus the gage correction to LWRP (NAVD88). Linear interpolation between gages may be required to determine the water surface elevation for each crossing. The following gages shall be used.

Gage ID	Gage Name	River Mile	Gage Correction to LWRP (NAVD88), ft
01080	Knox Landing	313.7 (RDB)	-14.88
01120	Red River Landing	302.4 (RDB)	-14.06
01145	St Francisville	260.3 (LDB)	-5.70
01160	Baton Rouge	228.4 (RDB)	-3.21
01220	Donaldsonville	173.6 (RDB)	-2.14
01260	Reserve	138.7 (LDB)	-1.87
01300	Carrollton	102.8 (LDB)	-1.56

f. The Contractor shall furnish a Hazen or compatible remote, automatic recording tide gage that may be monitored aboard the dredge. However, it shall be understood that this gage is not to be used for reducing surveys of the channel.

g. This information is provided to comply with the requirements outlined in EM 1110-2-6056, Standards and Procedures for Referencing Project Elevation Grades to Nationwide Vertical Datums. This engineering manual outlines the requirement to reference all coastal navigation projects to Mean Lower Low Water (MLLW).

The project benchmarks referenced below have been incorporated into the National Spatial Reference System database:

(1) SOUTHWEST PASS PROJECT BENCHMARK

Mississippi River at Venice

DESIGNATION:	876 0849 A TIDAL		
PID:	AT1390		
LAT/LON:	N 29 16 00.52795	W 089 21 10.35484	NAD83 (2011)
NORTH/EAST:	N 284,325.15	E 3,912,287.82	SPC LA S (US feet)
ELEVATION:	1.38 feet	NAVD88 (2009.55)	
MARKER:	BENCH MARK DISK		
STAMPING:	0849 A 1985		

DESCRIPTION: THE STATION IS LOCATED IN VENICE, 8 MILES SOUTH SOUTHEAST OF BURAS, AT THE END OF HWY. 23 ON A GRAVEL ROAD LEADING TO NEW CONSTRUCTION AT THE TIME OF RECON AND A RED AND WHITE TOWER. (LOCATION OF NEW BUILDING WILL BE A WILDLIFE AND FISHERIES HEADQUARTER). OWNERSHIP- PLAQUEMINES PARISH. TO REACH THE STATION FROM THE INTERSECTION OF THE POST OFFICE AND HWY. 23 GO SOUTHEAST ON HWY. 23 FOR .9 MILES TO A CURVE TO THE RIGHT, GO AROUND CURVE TO A CROSS ROAD (JUMP BASIN RD.), TURN LEFT FOR .05 MILES TO A SHELL ROAS TO RIGHT (OFFSHORE SHIPYARD RD.) TURN RIGHT AND GO SOUTHEAST FOR .15 MILES TO A MARK ON THE LEFT ALONG A FENCE LINE JUST BEFORE ENTERING INTO A GATE. 23.7 M NORTH FROM THE NORTH 1 OF 2 YELLOW KEYPAD SUPPORT POSTS, 13.7 M EAST FROM A RED FIRE HYDRANT, 8.0 M NORTHEAST FROM THE CENTER OF A GRAVEL ROAD, 1.0 M NORTHEAST FROM A METAL POST WITH WITNESS SIGN ATTACHED, 0.5 M FROM A CARSONITE WITNESS POST, AND 0.3 M BELOW THE LEVEL OF THE GROUND.

(2) CALCASIEU RIVER BAR CHANNEL PROJECT BENCHMARK

Calcasieu River at Cameron

DESIGNATION:	876 8094 E TIDAL		
PID:	DJ9387		
LAT/LON:	N 29 46 05.85405	W 093 20 29.04536	NAD83 (NA2011)
NORTH/EAST:	N 466,812.80	E 2,643,771.70	SPC LA S (US feet)
ELEVATION:	4.56 feet	NAVD88 (2009.55)	
ELEVATION:	6.86 feet	MLG	
MARKER:	FLANGE-ENCASED ROD		
STAMPING:	8094 E 2004		

DESCRIPTION: TO REACH FROM THE JUNCTION OF LA-27 AND DAVIS ROAD IN CAMERON, GO 2.55 MI SOUTH ON DAVIS ROAD TO THE BOAT RAMP AREA AND THE MARK ON THE NORTH SIDE NEAR ENTRANCE. MARK IS 91 FT NORTHWEST OF DAVIS ROAD CENTERLINE, 42 FT NORTH OF THE BOAT RAMP PARKING AREA, 18 FT SOUTH OF TOP OF BANK, 3.75 FT SOUTH OF A WITNESS POST AND 3.5 FT EAST-SOUTHEAST OF SECURITY TIE DOWN.

2.3 COMMUNICATIONS EQUIPMENT

The Contractor shall furnish and maintain the following communications equipment for the dredge, throughout the period of the contract. Final approval of the plant will not be made until this equipment is installed and in good working order.

2.3.1 Cellular Telephone

The Contractor shall provide a portable cellular telephone aboard the dredge, with two rechargeable power packs and all necessary recharging equipment and cables. The telephone shall be available for official use by the Government Inspectors on a 24 hour a day basis to exclusively conduct Government business and emergency calls.

2.3.2 Satellite Telephone

The Contractor shall provide functioning 24-hour satellite telephone service with voice and facsimile capability aboard the dredge. The satellite telephone service shall have, as a minimum, voice capability of 4.8 kb/s (kilobytes per second) voice coding and fax speed of 2.4 kb/s. The satellite telephone shall be made available for official use by the Government inspectors on a 24-hour per day basis to exclusively conduct Government business and emergency calls.

2.3.3 Marine VHF-FM Radio

The Contractor shall furnish and maintain one VHF-FM ship's radio transceiver for the dredge, with power not in excess of 25 watts, and output of at least 15 watts on the maritime frequencies of 156.800 (Channel 16) and 156.375 (Channel 67) MHz 16F3 emission, with plus or minus five KHz at 100% modulation. Marine radio equipment shall be operated in accordance with applicable FCC regulations.

2.3.4 Automatic Identification System (AIS)

The dredge shall be equipped with an Automatic Identification System (AIS) in accordance with the Code of Federal Regulations, 33 CFR 164, reference the note to 164.46(a). The system shall be operable at all times throughout the contract period. For further information, go to: http://edocket.access.gpo.gov/cfr_2005/julqtr/pdf/33cfr164.46.pdf.

PART 3 EXECUTION

3.1 LOCATION AND DESCRIPTION OF WORK

a. The dredge will primarily be used for maintenance dredging operations in the location described in the paragraph entitled "Primary Dredging Region". Other locations are possible, as described in the paragraph entitled "Secondary Dredging Regions".

b. The work shall consist of removal and satisfactory disposal of material from the navigation channel(s) as directed by the Contracting Officer. The materials to be dredged may consist of trash, roots, rip rap, gravel, sand, silt, mud, clay and may include debris such as logs, rope, chain, cable, old piles, etc.

c. Some portions of the designated disposal areas may be too shallow for the dredge to safely navigate. The Contractor shall be responsible for locating a safely usable portion of the disposal area through surveys obtained by the Contractor. Disposal of material outside of the designated disposal areas shall be handled as per the provisions of the clause entitled "Obstruction of Navigable Waterways" (DFARS 252.236-7002).

d. The Contractor shall record the x and y coordinates of the dredge's location, immediately before and after placing a load of dredged material at a given designated disposal area. A printout of this data shall be supplied daily with the Mate's Log to the Government Inspector.

e. The authorized dimensions are listed in the Primary Dredging and Secondary Dredging Region paragraphs of this section. Advance maintenance dredging below the authorized dimensions may be required. If advance maintenance is required, then the dimensions will be specified in the dredging assignments. Structures and utilities may exist within a dredging assignment. The Contractor shall verify that dredging areas are clear of structures and utilities prior to working in the vicinity of the structures or utilities. For further information concerning dredging dimensions near structures and utilities, refer to the paragraph entitled "Working in the Vicinity of Structures and Utility Crossings".

3.2 ORDER OF WORK

a. The order of work to be performed under this contract cannot be determined except as the work progresses. Successive dredging location assignments may be either upstream or downstream and may not be at consecutive or contiguous locations. Repetitive assignments may be required at the same locations.

b. Assignments will be determined by the Administrative Contracting Officer and will be given to the Contractor's representative aboard the dredge. Assignments may be changed at any time without any prior notice. The Contractor may be required to stop work at any time without completing an assignment.

c. The Contractor shall endeavor to meet the schedule of dredging operations as determined by the Contracting Officer. Operations shall be performed 24 hours a day, seven days a week, including those days which have been declared by Congress to be legal holidays for per diem employees of the Federal Government.

3.3 PRIMARY DREDGING REGION

It is anticipated that the dredging assignments will be principally in the region described below. Other dredging assignments are possible in other regions, which are described in the paragraph entitled "Secondary Dredging Regions". Dredging coordinates shall be provided with each new dredging assignment.

3.3.1 Mississippi River and Southwest Pass, Louisiana

The maintained dimensions of the channel are -50 feet Mean Lower Low Water (MLLW) datum by 750 feet bottom width from New Orleans to Mile 17.5 Below Head of Passes, then narrowing to 600 feet wide through the jetty channel and bar channel. The specified elevation in the dredging assignment will not exceed 6 feet below the maintained elevation and may be specified above the maintained dimensions when determined to be beneficial to the Government. See the attached Southwest Pass & Mississippi River Hopper Disposal Areas plate at the end of this section. When it becomes necessary to empty the hopper, the dredged material shall be placed in the designated disposal areas as directed by the Contracting Officer's Representative. If conditions are such that it would be beneficial, the Government may modify the contract to add hopper pump-out in order to pump-out dredge material into the disposal areas adjacent to the channel.

3.4 SECONDARY DREDGING REGIONS

Dredging at another region in the New Orleans District or outside of the New Orleans District may become necessary during the term of this contract. Payment for work performed in these other regions will be made at the contract unit price per hour, as described in the paragraph entitled "Dredging and Option Dredging Items". It should be noted that secondary dredging regions are not limited to the following areas and may include dredging areas in any USACE district. If secondary dredging regions are utilized, additional information will be provided. Movement between primary or secondary dredging regions will be paid in accordance with the terms of the paragraph entitled, "Dredging and Option Dredging Items". The Contractor shall verify all datums prior to beginning work.

3.4.1 Calcasieu River Bar Channel, Louisiana

The authorized dimensions of the Calcasieu River Bar Channel are -43 feet Mean Lower Low Water (MLLW) datum by 800 feet wide from the end of the rock jetties (Mile -1.7) through the end of the bar channel (Mile -31.97). The specified elevation in the dredging assignment will not exceed 2 feet below the authorized elevation and may be specified above the authorized dimensions when determined to be beneficial to the Government.

a. Reference Information. The Calcasieu River Bar Channel is 32.0 miles in length and is divided into three tangents (all in NAD 83) as follows:

(1) Tangent No. 1 runs from station 0+00 (approximately mile -1.7) at the end of the jettied channel, to PI station 430+62 (approximately mile -9.84). The true azimuth of this tangent is 171 degrees, 49 minutes, 23.0 seconds and the grid azimuth is 172 degrees, 49 minutes, 36.5 seconds. The coordinates of station 0+00 are x = 2,643,799 and y = 457,568, Lambert; those of P.C. station 415+51 are x = 2,648,987 and y = 416,343, Lambert.

(2) Tangent No. 2 runs from PI station 430+62 (approximately mile -9.84) to station 924+79.3 (approximately mile -19.20). The true azimuth of this tangent is 141 degrees, 36 minutes, 47.6 seconds with a grid azimuth of 142 degrees, 36 minutes, 26.4 seconds. The coordinates of PT station 445+73 are x = 2,650,120 and y = 413,579, Lambert, and the coordinates of PC station 906+03 are x = 2,678,073 and y = 377,008, Lambert.

(3) Tangent No. 3 runs from station 924+79.3 (approximately mile -19.20) to station 1597+67.5 (approximately mile -31.76). The true azimuth of this tangent is 179 degrees, 11 minutes, 11.3 seconds, and the grid azimuth is 180 degrees, 07 minutes, 56.1 seconds. The coordinates of PT station 943+55.5 are x = 2,679,250 and y = 373,515, Lambert; those of station 1597+67.5 are x=2,679,099 and y = 308,104, Lambert.

Disposal areas are listed below.

Disposal Site No. 1:

LATITUDE	LONGITUDE	NAD 83 STATE PLANE GRID	
		X	Y
29° 44' 31" North	93° 20' 43" West	2,642,326.49	457,336.45
29° 39' 45" North	93° 19' 56" West	2,645,964.72	428,379.64
29° 39' 34" North	93° 20' 46" West	2,641,534.65	427,345.97
29° 44' 25" North	93° 21' 33" West	2,637,908.74	456,808.19

Disposal Site No. 2:

LATITUDE	LONGITUDE	NAD 83 STATE PLANE GRID	
		X	Y
29° 37' 50" North	93° 19' 37" West	2,647,438.45	416,736.14
29° 37' 25" North	93° 19' 33" West	2,647,747.45	414,205.16
29° 33' 55" North	93° 16' 23" West	2,664,154.69	392,708.48
29° 33' 49" North	93° 16' 25" West	2,663,967.82	392,105.51
29° 30' 59" North	93° 13' 51" West	2,677,281.29	374,708.53
29° 29' 10" North	93° 13' 49" West	2,677,275.59	363,697.09
29° 29' 05" North	93° 14' 23" West	2,674,262.67	363,242.02
29° 30' 49" North	93° 14' 25" West	2,674,260.86	373,748.49
29° 37' 26" North	93° 20' 24" West	2,643,248.73	414,384.75
29° 37' 44" North	93° 20' 27" West	2,643,015.88	416,207.27

b. A rock barge filled with rocks sunk at approx. Mile -3.7 on the west side of the Calcasieu River Bar Channel in October of 2020. The rock barge filled with rocks was removed in November of 2020. However, the Contractor should exercise caution and be aware that some rocks may still exist in the channel in the vicinity of Mile -3.7.

3.4.2 Mississippi River Crossings Between New Orleans and Baton Rouge, Louisiana

a. The maintained bottom width is 500-ft. The maintained depth varies; see table below. The maintained depth may change during the course of the contract for completed new construction work. The specified elevation in the dredging assignment will not exceed 3 feet below the maintained elevation and may be specified above the maintained dimensions when determined to be beneficial to the Government.

Deep Draft Crossing	Mileage Range, AHP	LWRP (NAVD88), ft	Maintained depth, ft LWRP 2007
Fairview	117.0 to 111.0	0.7	-50
Belmont	156.0 to 151.0	1.2	-50
Rich Bend	160.0 to 156.0	1.2	-50
Smoke Bend	178.0 to 172.0	1.4	-50
Philadelphia	185.0 to 182.0	1.5	-45
Alhambra	192.0 to 189.0	1.7	-45
Bayou Goula	199.0 to 196.0	1.8	-45
Granada	206.0 to 203.0	1.9	-45
Medora	213.0 to 208.0	2.1	-45
Sardine Point	220.0 to 216.0	2.3	-45
Red Eye	225.0 to 222.0	2.4	-45
Baton Rouge Front	233.8 to 229.0	2.6	-45

b. Dredging may be performed at any of these crossings as conditions dictate, and there may be multiple assignments at one or more crossings. Conversely, some crossings may not require dredging at all and dredging may be performed in other areas not listed. The most recent available hydrographic survey of each crossing will be given to the Contractor if an assignment is given in this region. Authorized disposal areas will also be identified on these survey charts.

3.4.3 Mobile District

The following projects represent the Secondary Regions of the Mobile District: Mobile Harbor, Pascagoula Harbor, Gulfport Harbor, Pensacola Harbor and possible other areas. The authorized dimensions of these channels vary throughout the waterway and when necessary will be provided by the Contracting Officer.

3.4.4 Galveston District

The following projects represent the Secondary Regions of the Galveston District: Sabine-Neches Waterway, Galveston Harbor and Channel, Matagorda Ship Channel, Corpus Christi Ship Channel, Brazos Island Harbor, Houston Ship Channel, and Texas City and possible other areas. The authorized dimensions of these channels vary throughout the waterway and when necessary will be provided by the Contracting Officer.

3.5 MOVEMENT OF NAVIGATION AIDS

The Contractor shall not relocate any navigation aids (buoys, markers, etc.) during this contract. The Contractor shall conduct a survey of navigation aids to determine if any must be temporarily relocated to accomplish the work. For navigation aids in which the Contractor determines that relocation is necessary, the Contractor shall notify the Contracting Officer or his/her authorized representative and the U.S. Coast Guard, Aids to Navigation (985-384-7000) at least seven days prior to the need for relocation. All relocation of navigation aids shall be performed by the Coast Guard. The Government will not be responsible for any delays to the work due to the Contractor giving less than a seven day notification to the Coast Guard.

3.6 WORKING IN THE VICINITY OF STRUCTURES AND UTILITY CROSSINGS

a. The Contractor shall exercise caution when working in the vicinity of structures, such as bridges, and utility crossings, such as pipelines and cables. If dredging to the assigned elevation has the potential to endanger a particular structure or utility, the Contracting Officer, upon request, may elect to reduce the extent of the required excavation in the vicinity of the structure or utility.

b. Unless otherwise directed, the Contractor shall provide at least project channel dimensions over all structures and utility crossings. Prior to dredging, the Contractor shall contact Louisiana One Call at 811 to verify all utilities within the primary dredging region, including the dredging channel and disposal areas. Within 48 hours after issuance of Notice to Proceed, the Contractor shall submit a detailed plan of operation at each structure/utility crossing located within the primary dredging region. The plan shall contain at least the following:

(1) Louisiana One Call ticket number along with the utility's size, elevation, owner information and type of utility.

(2) The Contractor shall investigate the current nautical charts published by NOAA and any other pertinent information or databases available.

(3) The Contractor shall notify the owners of all utilities located in the primary dredging region electronically and in writing by certified mail. The Contractor shall submit a copy of this notification letter via RMS. The letter shall reference the following:

(a) The dredge start date, the anticipated date(s) the Contractor will dredge over the utility and the anticipated completion date for work.
(b) The anticipated elevation and width of dredge cut over the utility.
(c) Point(s) of contact and telephone number(s).
(d) Emergency procedures.
(e) Any other information from the Contractor the utility owner would consider significant for safe dredging operations over the utility crossing.
(f) Request that the owner verify the location of the utility and provide the most recent as-built plan and the most recent and accurate profile surveys.

(4) Emergency measures to be taken in the event of an accident.

The Contractor shall also provide transportation, meals, and/or lodging for any representatives of owners of structures or utility crossings who are deemed necessary to be present for safety reasons, by the Contracting

Officer's Representative, to remain aboard the dredge while the Contractor is working in the vicinity of these crossings.

c. The Government will not be responsible for any damages to structures or utilities, loss of service costs of such structures/utilities, or damage to the Contractor's plant.

3.6.1 Utility Marking Required

Prior to dredging, the Contractor shall verify that the established location of all utilities within the dredging reach are visibly marked. If no markings exist, the Contractor shall contact the utility owner to visibly mark the crossing.

3.6.2 Existing Structures or Utilities

Information pertaining to existing structures, such as bridges, and/or utility crossings, such as pipelines and cables, within the primary dredging region is detailed within the attached tables. The listed data has been provided by the owners, or taken from permit applications, and has not been confirmed by the Government. The Contractor shall verify this data prior to working in the vicinity of the structures or utilities. If the Contractor detects a discrepancy in the data with actual conditions, the Contractor shall notify the Contracting Officer of the discrepancy within 24 hours of this occurrence. Large-scale drawings with pipeline crossings will be available to the Contractor upon request. The Government will provide existing structure and utility information prior to any work performed at secondary dredging regions that are not addressed.

Additional abandoned structures and utilities may also exist within the dredging and disposal areas. The Contractor shall make his own investigation of submerged, surface and overhead structures in the work areas and other locations he finds necessary to traverse. The exact location, depths and heights of submarine cables, pipes, powerlines, docks, piers, bulkheads, bridges, etc. (as applicable) are not known and it may be necessary for the Contractor to ascertain interference problems and notify the respective owners in advance of dredging operations.

Upon completion of dredging, the Contractor shall submit to the Contracting Officer's Representative, the following:

a. A listing of all structures and utilities within the dredging reach and disposal areas, including owner name, location, elevation of utilities and owner point of contact.

b. A copy of any structure or utility as-builts, surveys, etc. received from the owner.

3.6.3 Location of Submerged Objects

a. If the Contractor should locate a submerged object within the area of work, which endangers dredging operations or poses a hazard to general navigation, the Contractor shall note the location of the object, as determined from the electronic positioning system aboard its vessel. This location shall be reported to the Government Inspector. Dredging in the immediate vicinity of the reported object shall be curtailed until the nature of the object and the degree of hazard can be determined. Dredging shall resume at the location of the reported object when the Contracting Officer determines that a hazard no longer exists.

b. If the Contractor issues a false report of a sunken object, the cost of the investigation shall be deducted from any amounts due, or to become due, the Contractor.

c. This clause applies in the case of submerged objects which are created by others. Submerged objects or hazards created by the Contractor shall be considered an obstruction of navigable waterways as described in the clause entitled "Obstruction of Navigable Waterways" (DFARS 252.236-7002).

3.7 DREDGE PRODUCTION RATE

3.7.1 Economic Bin Load

Hopper dredge operations shall be conducted in a manner that results in the most productive operating cycles. An economic bin load is defined as that hopper load, measured in cubic yards of dredged material as determined by the paragraph entitled "Example Economic Bin Load Calculations", dredged and hauled during a single dredging cycle which will yield, for the particular dredge, the maximum rate of removal of material from the project area and which will result in a minimum cost per cubic yard hauled. Once the economic load is achieved, the dredge shall discontinue pumping and proceed to the disposal area. Economic loading shall be determined using the average of the initial three complete cycles for each project assignment. These determinations shall be used to establish the operating procedures for the hopper dredge throughout the remainder of the assignment.

3.7.2 Production Rate Test

a. A Contractor shall only submit a bid for the dredge bid lot that matches the dredge's pumping rate and hopper capacity established by the Government. The Government must perform a Production Rate Test on any untested dredge to determine the dredge's pumping rate and hopper capacity prior to the Contractor submitting a bid.

b. Throughout the duration of the contract, the Government will monitor dredge performance. If there is an indication of a deficient dredge performance trend, the Government may perform a production rate test. The production rate test shall be conducted by the Government to determine the dredge's pumping rate and hopper capacity, which will be correlated to documented dredge-and-haul and agitation production rates of the retired Government Dredge LANGFITT. The correlated dredge-and-haul and agitation production rates will be used for contractual pay adjustments.

c. Following the test, the contract may continue in force, with the hourly rate (Dredging or Option Dredging Payment Item) adjusted using the production rate test results in such a way that the total contract price will remain unchanged. The Contractor will be given written notice to that effect and the adjusted rate will become effective on the day and hour the test was completed, for tested production rates at or above the theoretical production rate. If the tested production rates are below the theoretical production rate, the Contractor will be notified that the adjusted rate will become effective on the day and hour that the test started. Payment for this pumping test will be made at the applicable hourly rate for dredging, in accordance with the paragraph entitled "Dredging and Option Dredging Items".

d. The latest tested production rates for the dredge will be used by the Government on future solicitations, to determine the quantities on the bidding schedules, whether this contract continues in force or not.

3.8 WORK FOR OTHERS

The dredge may be released from this contract for the convenience of the Contractor, upon approval of the Contracting Officer. The dredge shall remain on 72-hour call by the Contracting Officer during the release period. Regardless of the pay status of the dredge at the time it is released, the dredge will immediately go to a non-pay status, and remain so until it is recalled to work. Demobilization at the time of release, and mobilization at the time of recall, will not be paid. Payment will cease when the last load dumped prior to release if in the dredge-and-haul mode. If in the agitation mode, payment will cease when material stops flowing into the hopper. Payment will resume:

a. If the dredge returns to an assignment in the same dredging region, when dredged material starts flowing into the hopper;

b. If the dredge returns to an assignment in a different dredging region, when the plant enters the route between assignments that would have been taken had the dredge not been released;

c. If the dredge returns to an assignment in another dredging region and the dredge never enters the route that would have been taken had the dredge not been released, when dredged material starts flowing into the hopper; or

d. If the dredge is already located at some point along the route between the previous and new assignments, upon departure for the new assignment.

3.9 PRODUCTION DATA TABLE

PRODUCTION DATA TABLE OF EMPIRICAL RAW WATER AND SEDIMENT DATA FOR NEW ORLEANS DISTRICT HOPPER DREDGING REGIONS

Dredging Region	Sediment Bulk Density (g/L)	Raw Water Density (g/L)	Sediment Specific Gravity (g/L)	D20 (mm)	D50 (mm)	D80 (mm)
Miss. River SW Pass and Jetty Channel	1598	1013	2720	0.0052	0.037	0.072
Miss. River South Pass	1642	1007	2673	0.0013	0.017	0.070
Miss. River Head of Passes	1923	1003	2640	0.0120	0.045	0.090

Dredging Region	Sediment Bulk Density (g/L)	Raw Water Density (g/L)	Sediment Specific Gravity (g/L)	D20 (mm)	D50 (mm)	D80 (mm)
Miss. River Belmont Crossing	1968	1000	2680	0.1000	0.140	0.150
Miss. River Smoke Bend Crossing	1968	1000	2680	0.1000	0.140	0.150
Miss. River Philadelphia Crossing	1995	1000	2706	0.1167	0.137	0.167
Miss. River Alhambra Crossing	1995	1000	2663	0.1600	0.190	0.210
Miss. River Bayou Goula Crossing	1974	1000	2663	0.1600	0.180	0.220
Miss. River Granada Crossing	2019	1000	2652	0.1600	0.190	0.200
Miss. River Medora Crossing	2012	1000	2659	0.1400	0.170	0.200
Miss. River Red Eye Crossing	1995	1000	2670	0.1600	0.190	0.230
Calcasieu River Bar Channel	1450	1025	2679	0.0014	0.045	0.110

3.10 LIST OF UTILITIES

3.10.1 Mississippi River & Southwest Pass Channel

Utility Dia. (inches)	Approximate Station and/or Mile	Approximate Elevation (feet) MLLW	Owner and Telephone Number
(2) 12" Oil Pipelines (Abandoned)	11.6 AHP	Unknown	Chevron Pipe Line Company Attn: Land Manager 1400 Smith St Houston, TX 77002-7327 Steven Fontana 985-791-9150 SFontana@chevron.com Matt Posner 985-634-0480, 985-773-6045 Matthew.Posner@chevron.com
Submerged Cable	11.3 AHP	Unknown	Entergy 1001 Virgil St Gretna, LA 70054 Holly Houston 504-365-2945 hhousto@entergy.com Parris Chavis 504-365-2925 pchavi1@entergy.com
10" Oil Pipeline	9.9 AHP	Unknown	Chevron Pipe Line Company (see above)
(2) 24" Gas Pipelines	7.2 AHP	Unknown	Enbridge 4088 Hwy 56 Houma, LA 70363 Aaron Cheramie 985-266-9952 Aaron.Cheramie@enbridge.com Roger Blanchard 832-214-1648, 985-217-5540 roger.blanchard@enbridge.com
10.75" Oil Pipeline (Idle)	7.1 AHP	Unknown	Chevron Pipe Line Company (see above)

Utility Dia. (inches)	Approximate Station and/or Mile	Approximate Elevation (feet) MLLW	Owner and Telephone Number
10" CO2 Pipeline (Abandoned)	7.0 AHP	Unknown	Chevron Pipe Line Company (see above)
6-5/8" Gas Pipeline	162+32 1.9 BHP	Unknown	Guardian Decommissioning 16340 Park Ten Pl, Suite 130 Houston, TX 77084 Trisha Hackett 985-347-8749 trisha.hackett@guardiandecom.com Melanie Jarrell 904-537-3507 melanie.jarell@guardiandecom.com
20" Gas Pipeline	302+65 4.5 BHP	-83.5 ft.	Kinetica Partners, LLC 224 Aviation Rd Houma, LA 70363 Shaun Harwood 985-223-6127, 985-665-0981 shaun.harwood@kineticallc.com
4", 6", & 8" Oil and Gas Pipeline Bundle	318+96 4.8 BHP	-90.5 ft.	Texas Petroleum Investment Company 101 La Rue France, Suite 406 Lafayette, LA 70508 Cypress Melville 337-232-1702 cmelville@txpetinv.com
8" Oil Pipeline	534+13 8.9 BHP	-93.5 ft.	Harvest Midstream 1111 Travis St Houston, TX 77002 Jason Wu 832-305-1202 jwu@harvestmidstream.com
36" Gas Pipeline	680+20 11.7 BHP	-81.5 ft.	Kinetica Partners, LLC (see above)

3.11 HOPPER DREDGE AND ATTENDANT PLANT DATA SHEET

Submittal Date:

HOPPER DREDGE AND ATTENDANT PLANT DATA SHEET (Version February 2022)

In compliance with the contract requirements to submit plant data and subject to all conditions thereof, the undersigned _______________________, a corporation/joint venture/individual (indicate appropriate status) organized and existing under the laws of the City of _____________________ and the State of ___________________, hereby correctly describes the Contractor's plant to the Government, which is performing work under the following named Contract ____ and Contract No.:__________________.

Printed:____________________________ Signed:_______________________________
Certifying Officer of the Contractor's Firm

Title:______________________________________

One trailing suction type hopper dredge and attendant plant with the following characteristics (in English units of measurement):

1. DREDGE GENERAL INFORMATION:

(a) Bid lot number _________________

(b) Dredge name _______________________ Dredge official number ____________

(c) Owner name and address ____
____
____
____

(d) Minimum width of channel in which dredge can successfully operate and turn around,in feet ____

(e) Minimum depth of water in which dredge can operate with hoppers full
____

(f) Maximum draft of dredge ____

(g) Loaded freeboard ____

(h) Depth range to which dredge will dig
(Maximum) _________________________(Minimum) _________________________

(i) Overall length of dredge hull _______________________________________

(j) Length and width of dragheads ____

(k) Hopper capacity, measured as volume below level of high overflow weir
___________________ (This item must agree with hopper size in bid lot used)

(l) Type(s) of production rate monitoring equipment on board the dredge (measuring cy/hr of material dredged) _____________________________________

(m) Hopper dredge bin dump mechanism:_____________________________________
(ex.: bottom door, split hull, etc.)

(n) Shallowest draft the dredge can dispose bin material while fully loaded:____

(o) Completion date of each dredge pump engine re build:____________________
____

(p) Agitation outlet dimension(s):______________________________

(q) Inside hopper outflow dimension(s):__________________________

2. DREDGING PUMPS AND PROPULSION: (Two propellers required)

(a) Number of pumps __________________ Number of dragarms ___________________

(b) Inside diameter of dredge suction inlet ______________________________
(This item must agree with the bid lot used)

(c) Inside diameter of pump discharge ______________________________

(d) Brake horsepower and corresponding engine RPMs (during dredging operations) applied to each pump impeller at rated drive of the prime mover
____

(e) Maximum available brake horsepower and corresponding RPMs applied to each _________________ propeller during dredging operations _________________

(f) Number and power of bow thrusters:______________________________

(g) Length of suction and discharge lines ______________________________

(h) Suction lift (Elevation of main dredge pump relative to the water surface level) ____

(i) Diameter of each pump impeller eye ______________________________

(j) Number of Pump-Out pumps ___________________

(k) Inside diameter of Pump-Out suction inlet for each pump ________________
____

(l) Inside diameter of Pump-Out discharge for each pump ____________________
____

(m) Diameter of pipe at location of velocity meter ______________________

(n) Brake horsepower and corresponding engine RPMs (during dredging operations) applied to each pump impeller at rated drive of the prime mover for Pump-Out ____
____

(o) Length of suction lines on dredge for Pump-Out _________________________

(p) Length of discharge lines on dredge for Pump-Out _______________________

(q) Total installed horsepower ___________________

3. ADDITIONAL REQUIRED EQUIPMENT (List type and model):

(a) Electronic positioning system ______________________________

(b) Recording Depthsounder ______________________________

(c) Radar ______________________________

4. THE DREDGE MAY BE INSPECTED AT (List location of equipment):

____

5. CREW BOAT:

(a) Length and beam ______________________________

(b) Owner, name and address ______________________________

(c) Total horsepower ______________________________

(d) VHF FM marine radio type and model ______________________________

(e) Radar type and model ______________________________

(f) The crewboat may be inspected at the following location ______________________________

(g) Electronic positioning equipment ______________________________

(h) Recording depthsounder ______________________________

6. REQUIRED SUBMITTAL: Hopper dredge ullage tables showing bin volume filled as a function of vessel draft

7. DREDGE OWNER INFORMATION:

Firm name ______________________________

Point of contact ______________________________

Title ______________________________

Business address ______________________________

Street ______________________________

City ______________________________

Parish/County ______________________________

State ______________________ Zip+4 ______________________

Telephone no. (________)__________________________

Facsimile no. (________)__________________________

(Additional signature block to be used for joint venture partner(s))

Firm name ____

Point of contact ____

Title ____

Business address ____

Street ____

City ____

Parish/County ____

State ______________________ Zip+4 ______________________

Telephone no. (________)__________________________

Facsimile no. (________)__________________________

3.12 DAILY HOPPER LOAD DISPOSAL DATA

Date:	
Contractor:	
Contract Number:	
Dredge:	

Load Number	Dump Start		Dump End		Assignment Number	Gross Cubic Yards	Dump Grid Location
	X	Y	X	Y			

-- End of Section --

DAILY REPORT OF OPERATIONS -- HOPPER DREDGES

REPORTS CONTROL SYMBOL ENG-CWO-13

DISTRICT			DREDGE
EXACT LOCATION OF WORK		☐ MAINTENANCE ☐ NEW WORK	DATE NUMBER OF PERSONS IN CREW
AV. LENGTH OF CUT FT.	CHARACTER OF MATERIAL		HOPPER CAPACITY CU. YDS.
AV. WIDTH OF CUT FT.	DENSITY OF MAT. IN PLACE GMS/LITER		AV. VOL. OF BIN WATER CU. YDS.
AV. DIST. TO DUMP MILES	DENSITY OF WATER GMS/LITER AT °F		AV. UNFILLED CAPACITY CU. YDS.

NAVIGATION AND OTHER DREDGING AIDS *(Describe and include statement on adequacy and recommendations)*

WORK PERFORMED				DRAFT FOR LOAD NO. *(for one load only)*		
DREDGING AND HAULING			AGITATING		LIGHT	LOADED
NO. OF LOADS	TOT. CU. YDS.	DISPOSAL AREA	TOT. CU. YDS.	FORWARD		
				AFT		
				DRAG DEPTH MAX. MIN.		
				INDICATORS LAST CHECKED ON		
				GAS EJECTORS USED % OF PUMPING TIME		

DISTRIBUTION OF TIME AND MILES RUN

	AGITATING *(Minutes)*	DREDGING AND HAULING *(Minutes)*	MILES RUN *(Stat. Miles)*
EFFECTIVE WORKING TIME			
PUMPING			
TURNING			
TO DUMP			
DUMPING			
TO CUT			
TOTALS			
NON-EFFECTIVE WORKING TIME			
TAKING ON FUEL AND SUPPLIES			
TO AND FROM WHARF OR ANCHORAGE			
LOSS DUE TO NATURAL ELEMENTS			
LOSS DUE TO TRAFFIC AND BRIDGES			
MINOR OPERATING REPAIRS			
TRANSFERRING BETWEEN WORKS			
LAY TIME			
FIRE AND BOAT DRILLS			
MISCELLANEOUS			
TOTALS			
LOST TIME			
MAJOR REPAIRS AND ALTERATIONS			
CESSATION			
COLLISIONS			
TOTAL LOST TIME			
TOTAL TIME IN PERIOD			

AVERAGE SPEED OF DREDGE		MINUTES RADAR IN USE	
LOADING	FEET/MINUTE	TIDE DATA WAS OBTAINED BY MEANS OF	
AGITATING		WEATHER	
GALS. OF FUEL OIL CONSUMED		NUMBER OF INSPECTIONS BY SUPERVISORY PERSONNEL	
GALS. OF WATER CONSUMED		FIELD	OFFICE

REMARKS

SUBMITTED BY

(SEE REVERSE SIDE)

ENG FORM 27A, Apr 73 REPLACES COST FORM 27A, 1 SEP 63, WHICH MAY BE USED (Proponent: CECW-OD)

BREAKDOWN OF LOADS DREDGED AND HAULED																DATE		
LOAD NO	UNWATERED *	TIME PUMP		MINUTES						CUBIC YARDS RETAINED (In terms of in place material)						MID-DEPTH SAMPLES		
		STARTED	STOPPED	PUMPING	TURNING	TO DUMP	DUMPING	TO CUT	TOTAL	SETTLED SOLIDS ***	SUSPENDED SOLIDS ***	BIN WATER SOLIDS	TOTAL **	PER PUMPING MINUTE	PER ELAPSED MINUTE	DENSITY GMS/LITER ***	% SOLIDS (in place) ***	MATE AND DRAGTENDERS
			AVERAGE															

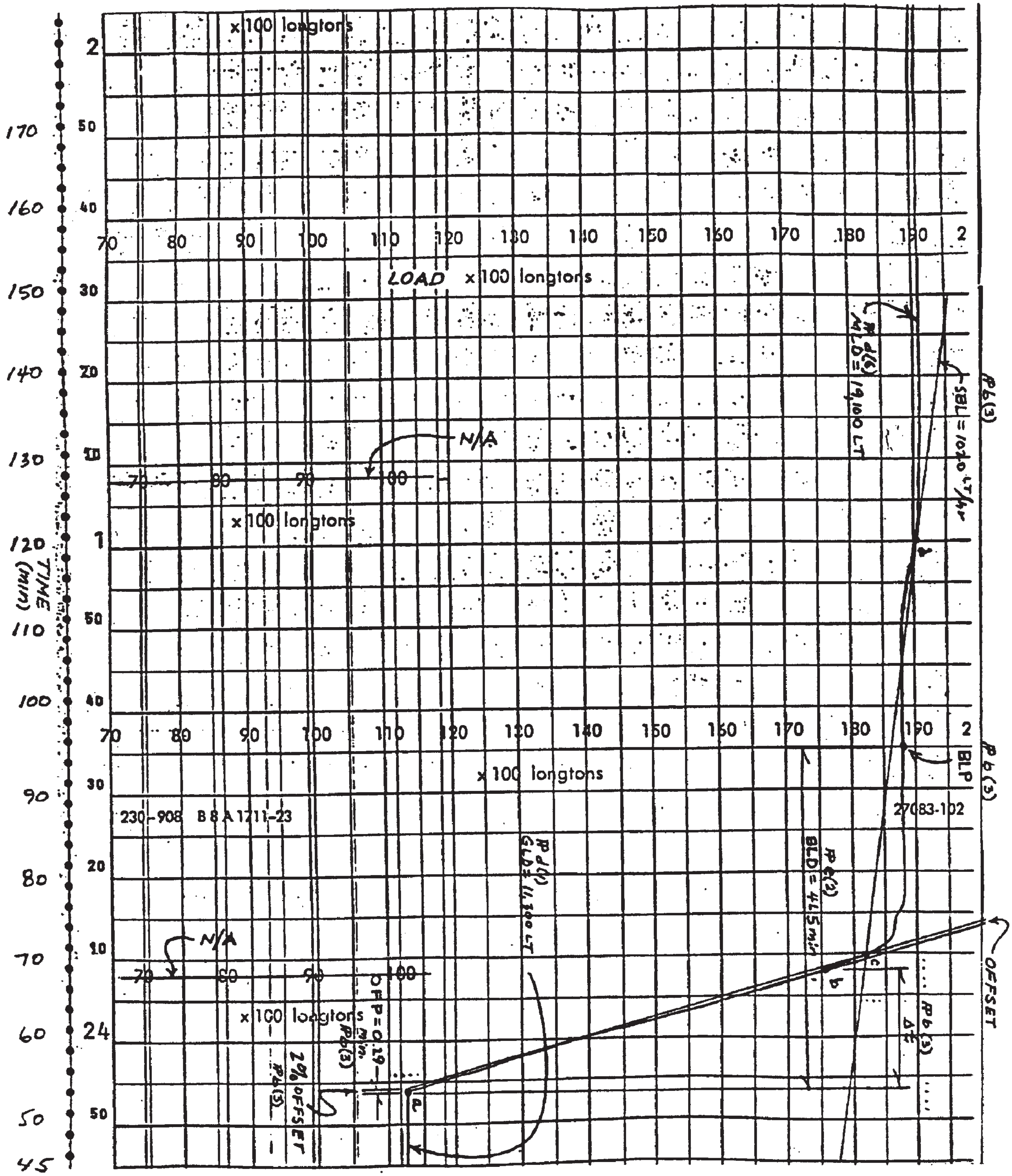
ECONOMIC LOAD DATA

PUMPING TIME (Minutes)	ECONOMIC LOAD *(Cu Yds)*	TEST LOAD NO.	DATE OF TEST

REMARKS

NOTE: * WHEN LOAD IS DREDGED WITH HOPPERS UNWATERED, INDICATE BY LETTER "U".
** TOTAL CUBIC YARDS RETAINED = SETTLED SOLIDS + SUSPENDED SOLIDS - BIN WATER SOLIDS OR DETERMINED DIRECTLY BY YARDAGE METER.
*** NOT NECESSARY WHEN MEASURING LOAD BY YARDAGE METER.

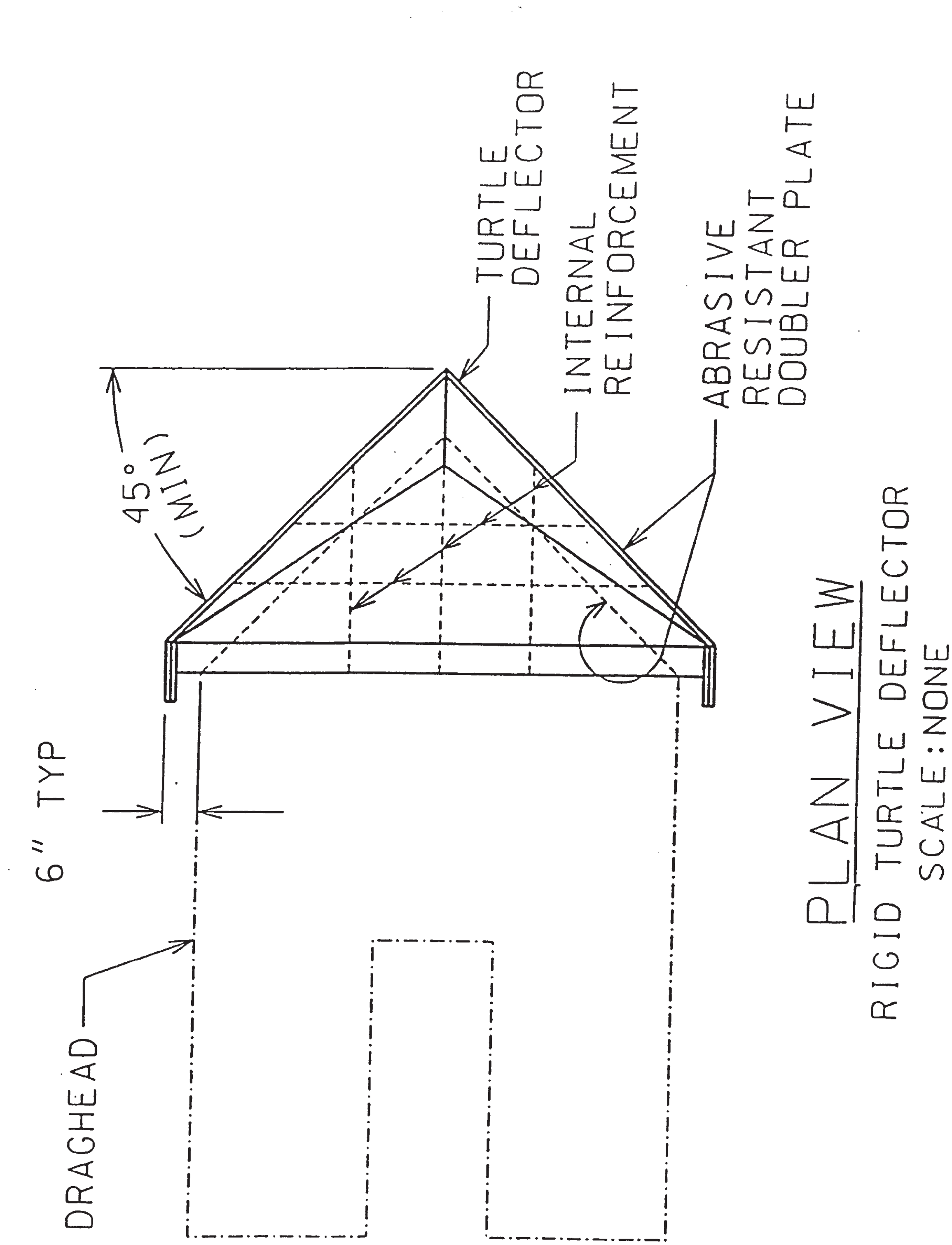
EXAMPLE LOAD DISPLACEMENT CHART



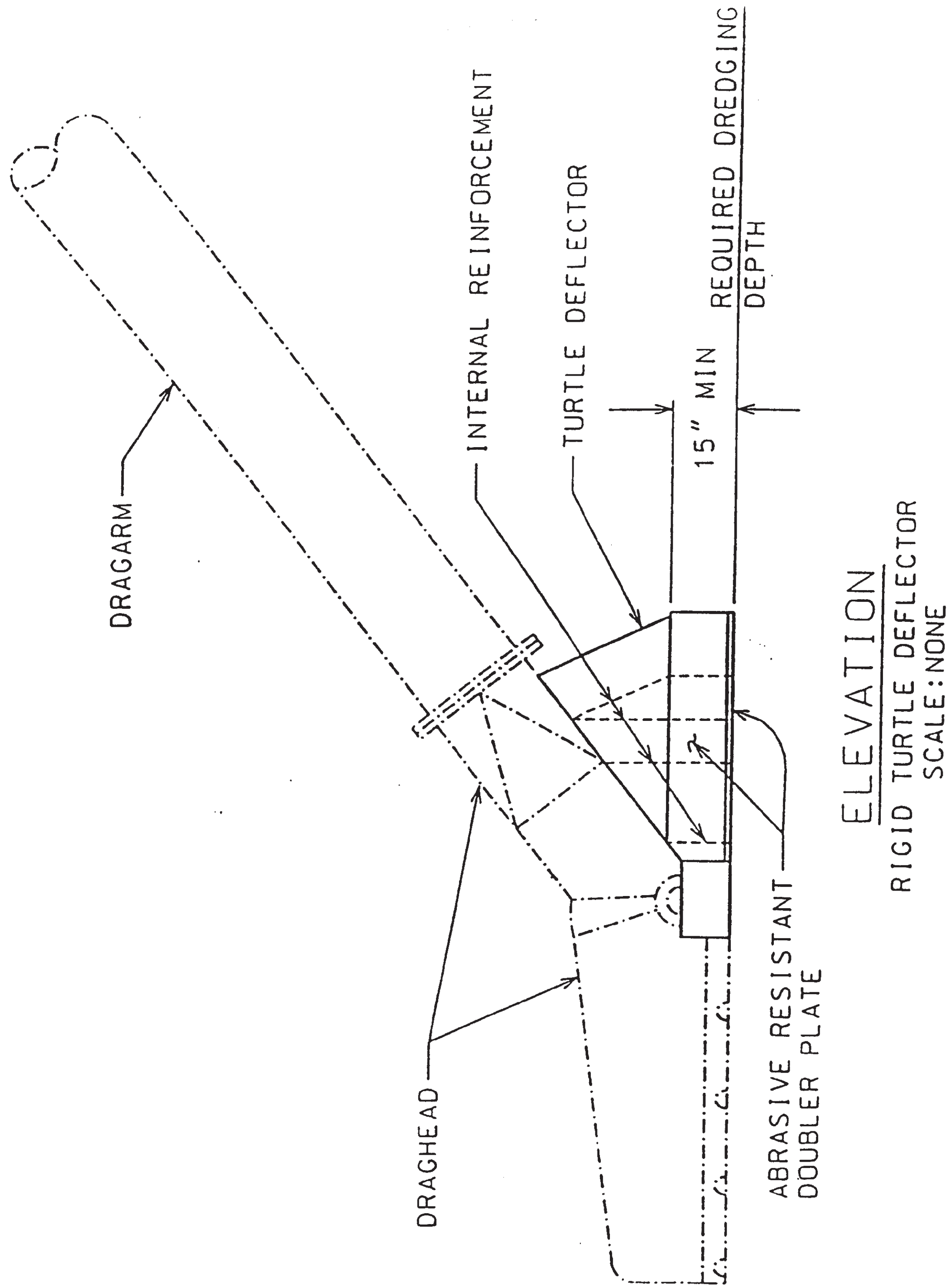
ECONOMIC BIN LOAD CHART

		Pump Time																								
	UNITS	5 min	10 min	15 min	20 min	25 min	30 min	35 min	40 min	45 min	50 min	55 min	60 min	65 min	**70 min**	75 min	80 min	85 min	90 min	95 min	100 min	105 min	110 min	115 min	120 min	124 min
Raw Water Density (RWD):	g/L	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	**1,013**	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013	1,013
Sediment Bulk Density (SBD):	g/L	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	**1,598**	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598	1,598
Gross Light Displacement (GLD):	LT	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	**5,740**	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740	5,740
Material Loaded Displacement (MLD):	LT	8,125	9,800	9,930	10,030	10,070	10,125	10,310	10,390	10,550	10,645	10,716	10,659	10,690	**10,760**	10,557	10,680	10,736	10,760	10,705	10,720	10,679	10,782	10,687	10,760	10,705
Dredged Slurry Volume (DSV):	cy	3,100	5,150	5,235	5,225	5,212	5,225	5,227	5,230	5,202	5,218	5,223	5,090	5,012	**4,953**	4,916	4,970	4,897	4,760	4,686	4,620	4,510	4,412	4,253	4,240	4,159
Bin Water Volume (BWV):	cy	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	**105.31**	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31	105.31
Residual Bin Water Weight (BWW):	LT	80	80	80	80	80	80	80	80	80	80	80	80	80	**80**	80	80	80	80	80	80	80	80	80	80	80
Corrected Light Displacement (CLD):	LT	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	**5,660**	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660	5,660
Net Bin Load (NBL):	LT	2,465	4,140	4,270	4,370	4,410	4,465	4,650	4,730	4,890	4,985	5,056	4,999	5,030	**5,100**	4,897	5,020	5,076	5,100	5,045	5,060	5,019	5,122	5,027	5,100	5,045
Average Bin Density (ABD):	g/L	1,057	1,068	1,084	1,111	1,124	1,136	1,182	1,202	1,249	1,270	1,286	1,305	1,334	**1,368**	1,324	1,342	1,377	1,424	1,431	1,455	1,479	1,543	1,571	1,598	1,612
Bin Solids Ratio (BSR):		0.0752	0.094	0.1214	0.1675	0.1897	0.2103	0.2889	0.3231	0.4034	0.4393	0.4667	0.4991	0.5487	**0.6068**	0.5316	0.5624	0.6222	0.7026	0.7145	0.7556	0.7966	0.906	0.9538	1	1.0239
Bin Load Quantity (BLQ):	cy	233	484	636	875	989	1,099	1,510	1,690	2,098	2,292	2,438	2,540	2,750	**3,005**	2,613	2,795	3,047	3,344	3,348	3,491	3,593	3,997	4,057	4,240	4,258
Minutes Per Load	min.	50	55	60	65	70	75	80	85	90	95	100	105	110	**115**	120	125	130	135	140	145	150	155	160	165	169
Number of loads obtained in 1 hour	ea.	1.200	1.091	1.000	0.923	0.857	0.800	0.750	0.706	0.667	0.632	0.600	0.571	0.545	**0.522**	0.500	0.480	0.462	0.444	0.429	0.414	0.400	0.387	0.375	0.364	0.355
Number of loads obtained in 24 hours	ea.	28.800	26.182	24.000	22.154	20.571	19.200	18.000	16.941	16.000	15.158	14.400	13.714	13.091	**12.522**	12.000	11.520	11.077	10.667	10.286	9.931	9.600	9.290	9.000	8.727	8.521
Total cy for one day	cy	6,710	12,672	15,264	19,385	20,345	21,101	27,180	28,631	33,568	34,742	35,107	34,834	36,000	**37,628**	31,356	32,198	33,751	35,669	34,437	34,669	34,493	37,133	36,513	37,004	36,281
Total cy/hr	cy/hr	280	528	636	808	848	879	1,133	1,193	1,399	1,448	1,463	1,451	1,500	**1,568**	1,307	1,342	1,406	1,486	1,435	1,445	1,437	1,547	1,521	1,542	1,512

Plan View - Rigid Sea Turtle Deflector

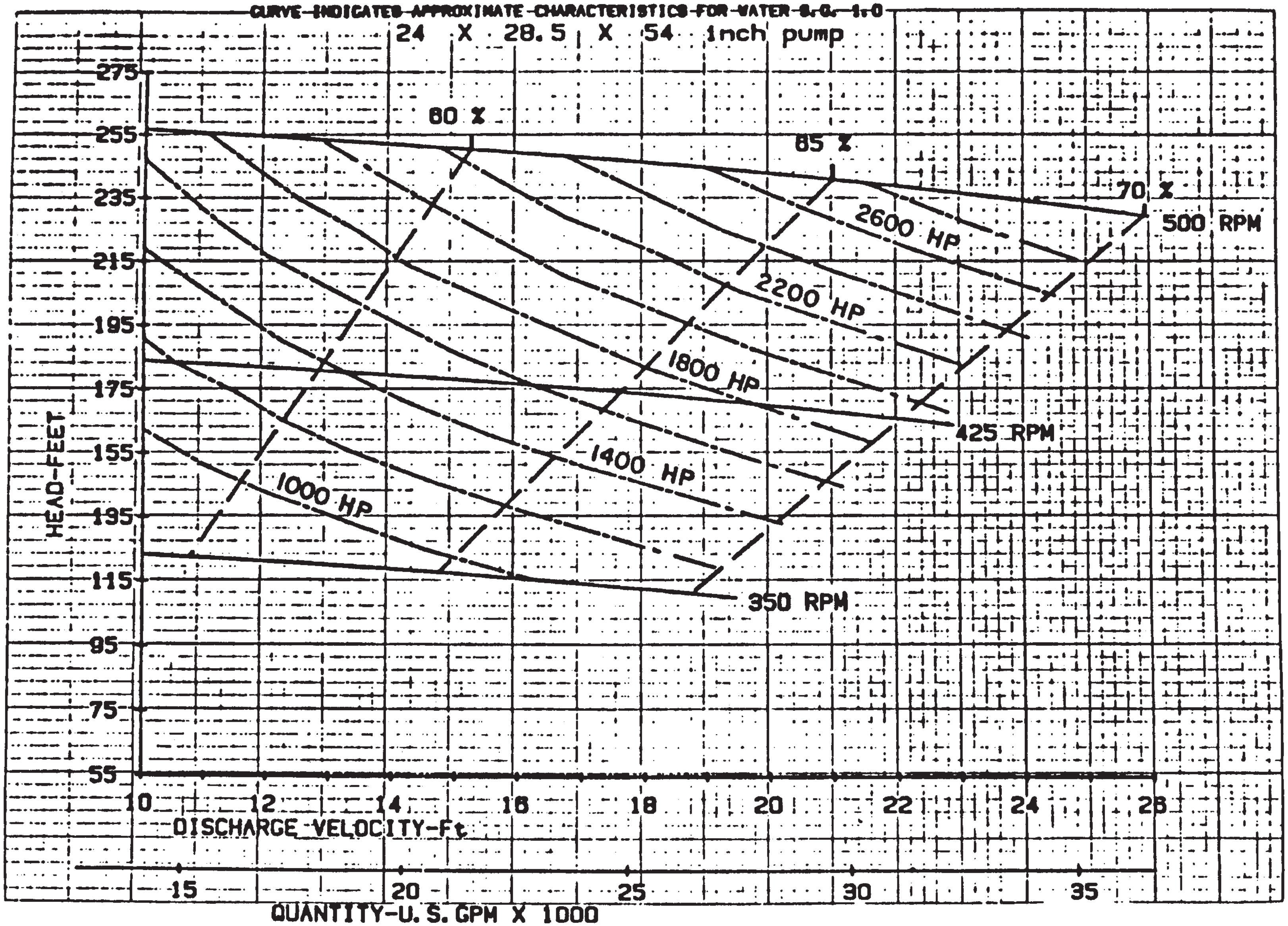


Elevation View - Rigid Sea Turtle Deflector

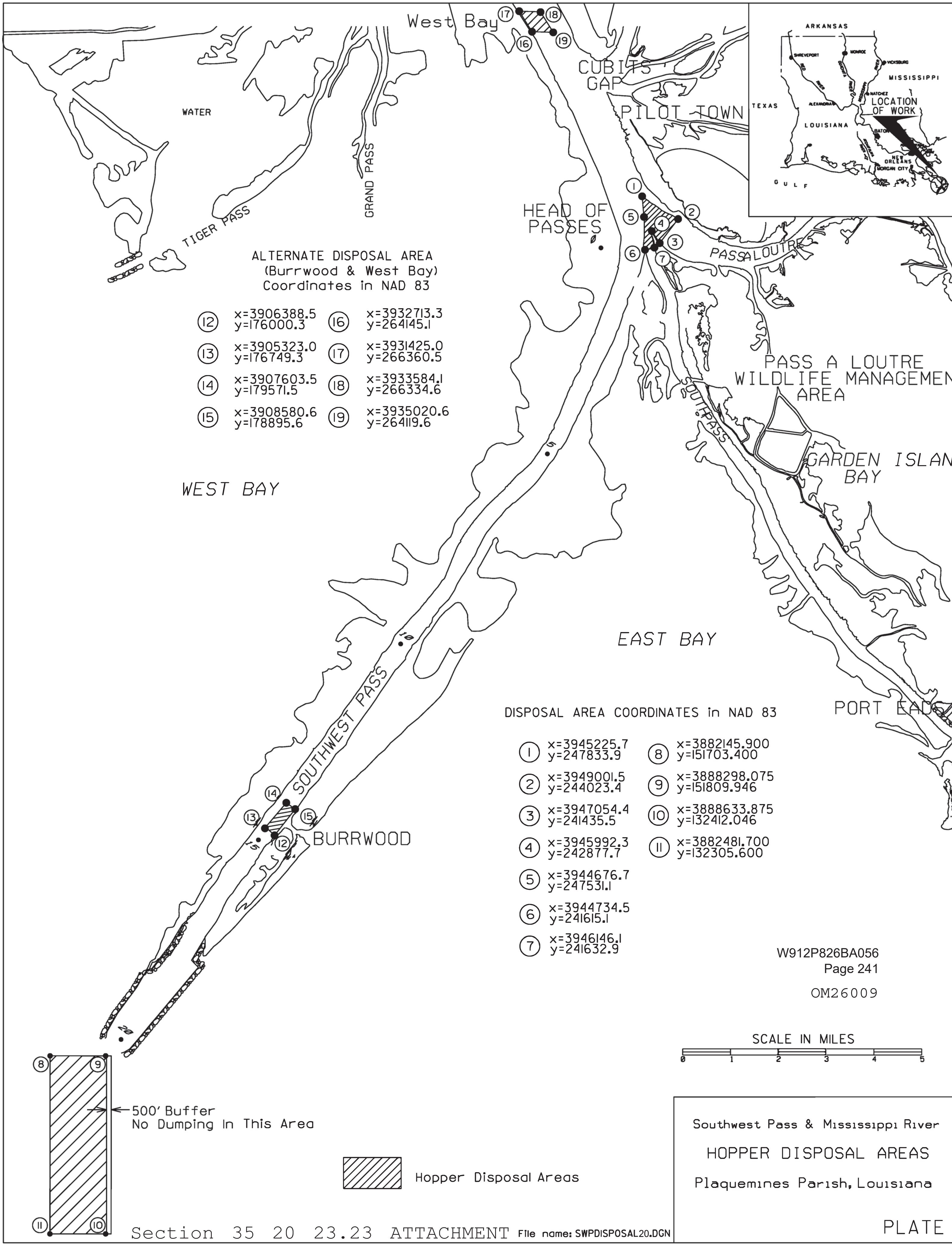


Contract Number: 05-C-XXXX   Dredge Name: ______________   Pump Function: (main, ladder, or booster, etc.)

MANUFACTURER'S PERFORMANCE CURVE



SAMPLE



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Page 241
OM26009

Section 35 20 23.23 ATTACHMENT File name: SWPDISPOSAL20.DGN

SECTION TABLE OF CONTENTS

DIVISION 35 - WATERWAY AND MARINE CONSTRUCTION

SECTION 35 20 23.26

NATIONAL DREDGING QUALITY MANAGEMENT PROGRAM HOPPER DREDGE

-- End of Section Table of Contents --

SECTION 35 20 23.26

NATIONAL DREDGING QUALITY MANAGEMENT PROGRAM
HOPPER DREDGE

PART 1 GENERAL

1.1 DESCRIPTION

The work under this contract requires use of the National Dredging Quality Management Program (DQM)to monitor the dredge's status at all times during the contract and to manage data history.

This performance-based specification section identifies the minimum required output as well as the precision and instrumentation requirements. The requirements may be satisfied using equipment and technical procedures selected by the Contractor.

1.2 MEASUREMENT AND PAYMENT

No separate measurement or payment shall be made for installation, operation, and maintenance of the DQM-certified system as specified herein for the duration of the dredging operations. All costs in connection therewith are considered a subsidiary obligation of the Contractor and shall be included in the contract unit price per hour in the "Dredging" and "Option Dredging" items on the bidding schedule.

1.3 NATIONAL DREDGING QUALITY MANAGEMENT PROGRAM CERTIFICATION

1.3.1 Certification

The Contractor is required to have a current certification from DQM for the hopper dredge instrumentation system to be used under this contract. Criteria for certification is based on the most recent specification posted on the DQM website (https://dqm.usace.army.mil). Verify compliance with these criteria by annual onsite quality assurance (QA) checks conducted by the DQM Support Center Data Acquisition and Analysis Team and by periodic review of the transmitted data. DQM Certification is valid for one year from the date of the annual QA checks. Certification is contingent upon the system's ability to continuously meet the performance requirements as outlined in paragraph entitled "Performance Requirements". If issues with data quality are not corrected within 48 hours, the system certification will be revoked and additional QA checks by the Data Acquisition and Analysis Team may be necessary.

Annual DQM Certification shall be based on the following:

- A series of quality assurance checks as outlined on the DQM website (https://dqm.usace.army.mil);

- Verification of data acquisition and transfer as described in the paragraph entitled "Performance Requirements"; and

- Review of the Dredge Plant Instrumentation Plan (DPIP) as described in the paragraph entitled "Dredge Plant Instrumentation Plan (DPIP)".

1.3.2 Recertification

The owner or operator of the dredge shall contact DQM at DQM-AnnualQA@rpsgroup.com on an annual basis, or at least three weeks prior to certification expiration, to schedule QA checks for renewal. This notification is meant to make the Data Acquisition and Analysis Team aware of a target date for the annual QA checks for the dredge. At least one week prior to the target date, the Contractor shall contact the Data Acquisition and Analysis Team and verbally coordinate a specific date and location. The Contractor shall then follow up this conversation with a written email confirmation. The owner/operator shall coordinate the QA checks with all local authorities, including but not limited to, the local USACE Contracting Officer's Representative (COR).

Recertification is required for any yard work which produces modification to displacement (change in dredge lines, or repositioning or repainting hull marks), modification to bin volume (change in bin dimensions, or addition or subtraction of structure), or changes in sensor type or location; these changes shall be reported in the sensor log section of the DPIP. A system does not have to be transmitting data between jobs; however, in order to retain its certification during this period, the system sensors or hardware should not be disconnected or removed from the dredge. If the system is powered down, calibration coefficients shall be retained.

1.4 DREDGE PLANT INSTRUMENTATION PLAN (DPIP)

The Contractor shall have a digital copy of the DPIP on file with the DQM Support Center. While working on site, the Contractor shall also maintain on the dredge a copy of the DPIP, which is easily accessible to Government personnel at all times. This document shall describe the sensors used, configuration of the system, how sensor data will be collected, how quality control on the data will be performed, and how sensors/data reporting equipment will be calibrated and repaired if they fail. A description of the computed dredge-specific data and how the sensor data will be transmitted to the DQM database will also be included.

A complete list of the required DPIP contents is provided on the DQM website (https://dqm.usace.army.mil).

The Contractor shall submit to the DQM Support Center any addendum or modifications made to the plan, subsequent to its original submission, prior to the start of work. Any changes to the computation methods shall be approved by the DQM Support Center prior to their implementation.

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION

3.1 REQUIREMENTS FOR REPORTED DATA

The Contractor shall provide, operate, and maintain all hardware and software to meet these specifications. The Contractor shall be responsible for replacement, repair, and calibration of sensors and other necessary data acquisition equipment needed to supply the required data.

Repairs shall be completed within 48 hours of any sensor failure. Upon completion of a repair, replacement, installation, modification, or calibration, the Contractor shall notify the COR. The COR may request recalibration of sensors or other hardware components at any time during the contract as deemed necessary.

The Contractor shall keep a log of sensor repair, replacement, installation, modification, and calibration in the dredge's onboard copy of the DPIP. The log shall contain a three-year history of sensor maintenance, including the time of the sensor failures (and subsequent repairs), the time and results of sensor calibrations, the time of sensor replacements, and the time that backup sensor systems were initiated to provide required data. It shall also contain the name of the person responsible for the sensor work.

Sensors installed shall be capable of collecting parameters within specified accuracies and resolutions indicated in the following subparagraphs.

Reported sensor values for ullage, draft, and draghead depth should represent a weighted average with the highest and lowest values not included in the calculated average for the given interval. This information should be documented in the DPIP sections that say "Calculations done external to the instrumentation".

3.1.1 Date and Time

The date and time shall be reported to the nearest second and referenced to UTC time based on a 24-hour format: mm/dd/yyyy hh:mm:ss. The reported time shall be the time reported by the GPS in the NMEA string.

3.1.2 Load Number

A load number shall document the end of a disposal event. Load numbering will begin at number 1 at the start of the contract and will be incremented by 1 at the completion of each disposal event or emptying of the hopper. Whenever possible, the load number shall be calculated off of the sensors aboard the dredge and shall be a mathematically repeatable routine. Efforts shall be made to include logic that avoids false load number increments while also not allowing the routine to miss any disposal event. If manual incrementing of the load number is in place, extra attention shall be paid to this value in the quality control process.

3.1.3 Horizontal Positioning

All locations shall be obtained using a positioning system operating with a minimum accuracy level of 1 to 3 meters horizontal Circular Error Probable (CEP). Positions shall be reported as Latitude/Longitude WGS 84 in decimal degrees. West Longitude and South Latitude values are reported as negative.

3.1.3.1 Vessel Horizontal Positioning

Vessel horizontal positioning shall be recorded as geographic coordinates of the vessel as indicated by the location of the GPS antenna.

3.1.3.2 Draghead Horizontal Positioning

Draghead horizontal positioning shall be recorded as geographic coordinates of the heel on the centerline of the draghead(s). Any offset calculations from the GPS antenna should be described in the DPIP.

3.1.4 Hull Status

Open/closed status of the hopper dredge, corresponding to the split/non-split condition of a split-hull hopper dredge, shall be monitored. For dredges with hopper doors, the status of a single door that is the first opened during normal disposal operations may be monitored. An "open" value shall indicate that the hopper door is open or, in the case of split-hull dredges, that the hull is split. A "closed" value indicates that the hopper doors are closed or, in the case of split-hull dredges, that the hull is not split.

For this contract, hull status shall register closed prior to leaving the disposal area.

3.1.5 Dredge Course

Dredge course-over-ground (COG) shall be provided using industry-standard equipment. The Contractor shall provide dredge course-over-ground to the nearest whole degree with values from 000 (true north) to 359 degrees referenced to a clockwise positive direction convention.

3.1.6 Dredge Speed

Dredge speed-over-ground shall be provided in knots using industry-standard equipment with a minimum accuracy of 1 knot and resolution to the nearest 0.1 knot.

3.1.7 Dredge Heading

Dredge heading shall be provided using industry-standard equipment. The dredge heading shall be accurate to within 5 degrees and reported to the nearest whole degree with values from 000 (true north) to 359 degrees referenced to a clockwise positive direction convention.

3.1.8 Tide

Tide data shall be obtained using appropriate equipment to give the water level with an accuracy of +/- 0.1 foot and a resolution of 0.01 foot. Tide values above project datum described in the dredging specification shall be entered with a positive sign and those below with a negative sign.

3.1.9 Draft

All reported draft measurements shall be in feet, tenths, and hundredths with an accuracy of +/- 0.1 foot relative to observed physical draft readings. The measurements shall be reported at a resolution of two decimal places (hundredths of a foot). The reported forward draft value shall be equal to the sum of the visual forward port and starboard draft mark readings divided by two. The reported aft draft value shall be equal to the sum of the visual aft port and starboard draft mark readings divided by two. Forward draft, aft draft, and average draft will be reported. Sensors shall be placed at an optimum location on the vessel to be reflective of observed physical draft mark readings at any trim or list. Minimum accuracies are conditional to relatively calm water. The sensor value reported shall be an average of at least ten samples per event, with at least one maximum value and one minimum value removed, and the minimum eight remaining values averaged. When the average draft is calculated for the purpose of determining displacement, significant digits for average draft shall be maintained such that if forward draft was 0.15 and aft draft was 0.1, then the average draft would be 0.125.

3.1.10 Hopper Ullage Sounding

All reported ullage soundings shall be in feet, tenths, and hundredths with an accuracy of +/- 0.1 foot with respect to the combing and be representative of the forward and aft extents of the hopper as close to the centerline as is possible. The measurements shall be reported at a resolution of two decimal places (hundredths of a foot). Forward ullage and aft ullage soundings will be reported. Sensors should be mounted so as to avoid discharge flume turbulence, foam, and any structure that could produce sidelobe errors. If sensors must be offset from the centerline of the hopper, they should be offset to opposite sides of the vessel. If more than one fore or one aft sensor are used, they shall be placed near the corners of the hopper, and the average value of the fore sensors and the average value of the aft sensors shall be reported. The sensor value reported shall be an average of at least ten samples per event, with at least one maximum value and one minimum value removed, and the minimum eight remaining values averaged. When the average ullage is calculated for the purpose of determining hopper volume, significant digits for average ullage shall be maintained such that if forward ullage was 0.15 and aft ullage was 0.1, then the average ullage would be 0.125.

3.1.11 Hopper Volume

Hopper volume shall be reported in cubic yards, based on the most accurate method available for the dredge. The minimum standard of accuracy for hopper volume is interpolation from the certified hopper volume table, based on the average fore and aft electronic ullage soundings.

3.1.12 Displacement

Dredge displacement shall be reported in long tons, based on the most accurate method available for the dredge. The minimum standard of accuracy for displacement is interpolation from the displacement table, based on the average draft. For this contract the density of water used to calculate displacement shall be 1025 kg/cubic meter, and it shall be used for an additional interpolation between the fresh and salt water tables.

3.1.13 Empty Displacement

Empty displacement shall be reported in long tons and shall be the lightship value of the dredge, or the weight of the dredge with no material in the hopper, adjusted for fuel and water consumption.

3.1.14 Draghead Depths

Draghead depths shall be reported with an accuracy of +/- 0.5 foot and a resolution to the nearest 0.1 foot as measured from the surface of the water with no tidal adjustments. Minimum accuracies are conditional to relatively calm water. The sensor value reported shall be an average of at least ten samples per event, with at least one maximum value and one minimum value removed and the minimum eight remaining values averaged.

3.1.15 Slurry Densities

A density metering device, calibrated according to the manufacturer's specifications, shall be used to record the slurry density of each dragarm to the nearest 0.001 g/cc with an accuracy of +/- 0.01 g/cc. If the manufacturer does not specify a frequency of recalibration, calibration shall be conducted prior to commencement of work.

3.1.16 Slurry Velocities

A flow-metering device, calibrated according to the manufacturer's specifications, shall be used to record the slurry velocity of each dragarm to the nearest 0.01 fps with an accuracy of +/- 0.5 fps. If the manufacturer does not specify a frequency of recalibration, calibration shall be conducted prior to commencement of work. The slurry velocity shall be measured in the same pipeline inside diameter as that used for the slurry density measurement.

3.1.17 Pump RPM

The RPM of any pump being used to move material shall be measured with the highest level of accuracy that is standard on the vessel operational displays, either at the bridge, at the drag tender's controls, or in the engine room. Dredges with multiple pumps per side shall report RPM for the pump that best describes the dredging process (typically the outboard pump).

3.1.18 Sea Suction Valve for Dragarm

If sea suction can be taken to bypass suction through the draghead, the sea suction location and valve status will be reported. The status of the valve will change from "closed" to "open" when the valve starts to open and will register "closed" when the valve is fully closed. When applicable, the state of the latch will be reported as "true" or "false". The sea suction location shall be reported in a standard non-changing name string of no more than 20 characters. These field values will always occur in the XML string as a set. The DQM system can accommodate only up to four unique sea suction locations. Suggested options for the naming convention can be found in the example dataset in paragraph entitled "Data Format".

3.1.19 Pumpout

When the hopper dredge is being pumped out, a "true" value shall be reported; when it is not, a "false" value shall be reported. The only permissible values are "true" and "false".

3.2 NATIONAL DREDGING QUALITY MANAGEMENT PROGRAM SYSTEM REQUIREMENTS

The Contractor's DQM system shall be capable of collecting, displaying, and transmitting information to the DQM database. The applicable parameters from paragraph entitled "Requirements for Reported Data", shall be recorded as events locally and continually transmitted to the DQM database anytime an Internet connection is available. The Dredge shall be equipped with a DQM computer system, consisting of a computer, monitor, keyboard, mouse, data modem, UPS, and network hub. The computer system shall be a standalone system, exclusive to the DQM monitoring system, and will have USACE DQM software installed on it. If a hardware problem occurs, or if a part of the system is physically damaged, then the Contractor shall be responsible for repairing it within 48 hours of determination of the condition.

3.2.1 Computer Requirements

The Contractor shall provide a dedicated onboard computer for use by the DQM system. This computer shall run USACE software and receive data from the Contractor's data-reporting interface. This computer must meet or exceed the following performance specifications:

CPU:	Intel or AMD processor with a (non-overclocked) clock speed of at least 1.6 gigahertz (GHz)
Hard drive:	250 gigabytes (GB); internal
RAM:	4 gigabytes (GB)
Ethernet adapter:	Internal network card with an RJ-45 connector
Ports:	1 free serial port with standard 9-pin connectors; 1 free USB port
Other hardware:	Keyboard, mouse, monitor

The Contractor shall install a fully licensed copy of Windows 11 or newer Professional Operating System on the computer specified above. The Contractor shall also install any necessary manufacturer-provided drivers for the installed hardware.

This computer shall be located and oriented to allow data entry and data viewing as well as to provide access to data ports for the connection of external hardware.

3.2.2 Software

The DQM computer's primary function is to transmit data to the DQM shoreside database. No other software which conflicts with this function shall be installed on this computer. The DQM computer will have the USACE-provided Dredging Quality Management Onboard Software (DQMOBS) installed on it by DQM personnel along with USACE-selected software for remote support and management.

3.2.3 UPS

The Contractor shall supply an Uninterruptible Power Supply (UPS) for the computer and networking equipment. The UPS shall provide backup power at 1 kVA for a minimum of ten minutes. The UPS shall interface with the DQM computer to communicate UPS status. The Contractor shall ensure that sufficient power outlets are available to run all specified equipment.

3.2.4 Internet Access

The Contractor shall maintain an Internet connection capable of transmitting real-time data to the DQM server and supporting remote access as well as enough additional bandwidth to clear historically queued data when a connection is re-obtained. If connectivity is lost, unsent data shall be queued and transmitted upon restoration of connectivity. Delays in pushing real-time data to the DQM database should not exceed four hours. Exceptions to these requirements may be granted by the DQM Support Center on a case-by-case basis with consideration for contract-specific requirements, site-specific conditions, and extreme weather events.

The Contractor shall acquire and install all necessary hardware and software to make the Internet connection available for data transmission to the DQM web service. The hardware and software shall be configured to allow the DQM Support Center remote access to this computer. Coordination between the dredging company's IT and the DQM Support Center may be required in order to configure remote access though any security, firewall, router, and telemetry systems. Telemetry systems must be capable of meeting these minimum reporting requirements in all operating conditions.

3.2.5 Data Routing Requirements

Onboard sensors shall continually monitor dredge conditions, operations and efficiency and route this information into the shipboard dredge-specific system (DSS) computer to assist in guiding dredge operations. Portions of this Contractor-collected information shall be routed to the DQM computer on a real-time basis. Standard sensor data shall be sent to the DQM computer via an RS-232 9600- or 19200-baud serial interface. The serial interface shall be configured as 8 bits, no parity, and no flow control.

3.2.6 Data Reporting Frequency

Data shall be logged as a series of events. Each event will consist of a dataset containing dredge information as per paragraph entitled "Requirements for Reported Data". Each set of measurements (time, position, etc.) will be considered an event. Any required information in paragraph entitled "Requirements for Reported Data" that is not an averaged variable (draft and ullage) shall be collected within 1 second of the reported time. A data string for an event shall be sent to the DQM computer every 6 to 12 seconds, and this interval shall remain constant throughout the contract; data strings shall never be transmitted more frequently than once per every 5 seconds. Any averaged variable must be collected and computed within this sampling interval.

3.2.7 Data Format

Data shall be reported as an Extensible Markup Language (W3C standard XML 1.0) document as indicated below. Line breaks and spaces are added for readability, but the carriage return, line feed character combination is added only to delineate records (HOPPER_DREDGING_DATA tag) for actual data transmission.

```
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 &lt;HOPPER_DREDGING_DATA version = "2.0"&gt;
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   &lt;DREDGE_NAME&gt;string32&lt;/DREDGE_NAME&gt;
   &lt;HOPPER_DATA_RECORD&gt;
    &lt;DATE_TIME&gt;time date string&lt;/DATE_TIME&gt;
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```

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</HOPPER_DREDGING_DATA>
Carriage Return - ASCII value 13
Line Feed - ASCII value 10

Example


```
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        <VALVE_4_STATUS>open</VALVE_4_STATUS>
        <VALVE_4_LATCHED>false</VALVE_4_LATCHED>
        <PUMP_OUT_ON>false</PUMP_OUT_ON>
       </HOPPER_DATA_RECORD>
     </HOPPER_DREDGING_DATA>
    <cr>
    <lf>
```


3.2.8 Data Reporting

The system shall transmit correctly formatted event data XML strings to the DQM database continuously from mobilization until the last post-dredging survey has been accepted. If the Internet connection (paragraph entitled "Internet Access") is non-operable, manual backups from the dredge computer of the XML data string, which would have been transmitted to the DQM computer over the serial connection, shall be performed for each day the device is inoperable and submitted to the DQM Support Center within 48 hours. This submission does not replace the requirement of correcting the issue affecting the automatic transmission of data. In the event of data transfer, transmission, or hardware failure, a manually recorded disposal log shall be maintained. It shall consist of a series of events. These events are start of dredging, end of dredging, pre-disposal, and post-disposal. Each event shall include time stamp (GMT), position (Latitude and Longitude WGS84), draft, ullage, volume, and displacement. Disposal logs shall be submitted on a daily basis to the COR during the time when the system is not operational.

3.2.9 Contractor Data Backup

The Contractor shall maintain an archive of all data sent to the DQM computer during the dredging contract. The COR may require, at no increase in the contract price, that the Contractor provide a copy of these data covering specified time periods. The data shall be provided in the XML format which would have been transmitted to the DQM computer. There shall be no line breaks between the parameters; each record string shall be on separate line. The naming convention for the files shall be <dredgename>_<StartYYYYMMddhhmmss>_<EndYYYYMMddhhmmss>.txt. Data submission shall be via storage medium acceptable to the COR.

At the end of the dredging contract, the Contractor shall contact the DQM Support Center prior to discarding the data. The DQM Support Center will verify that all data has been received and appropriately archived before giving the Contractor discard permission. The Contractor shall record in a separate section at the end of the dredge's onboard copy of the DPIP the following information:

- Person who made the call
- Date of the call
- DQM representative who gave permission to discard

3.3 PERFORMANCE REQUIREMENTS

The Contractor's DQM system shall be fully operational at the start of dredging operations and fully certified prior to moving dredge material on the contract (see paragraph entitled "National Dredging Quality Management Program Certification"). To meet contract requirements for operability, in addition to certification, the Contractor's system shall provide a data string with all values for all parameters while operating, as described in the specifications. Additionally, all hardware shall be compliant with hardware requirements (paragraph entitled "Computer Requirements"). Quality data strings are considered to be those providing accurate values for all parameters reported when operating according to the specification. Repairs necessary to restore data return compliance shall be made within 48 hours. Failure by the Contractor to report the required data within the specified time window for dredge measurements (see paragraph entitled "Data Reporting Frequency" and paragraph entitled "Data Reporting") will result in withholding of up to 10% of the contract progress payment per FAR clause 52.232-5 entitled "Payment Under Fixed-Price Construction Contracts".

3.4 LIST OF ITEMS TO BE PROVIDED BY THE CONTRACTOR

DPIP	https://dqm.usace.army.mil
DQM System	
Sensor instrumentation Reported	Paragraph entitled "Requirements for Data"
DQM computer Dredging Requirements"	Paragraph entitled "National Quality Management Program System
Dredge Data	
Event documentation	Paragraph entitled "Data Reporting"
Dredge data backups	Paragraph entitled "Contractor Data Backup"
QA Equipment on the Dredge	
Dragarm depth chain	
Ullage tape	
Refractometer	
Water-sampling device	

-- End of Section --